

Dispute Chamber

Decision on the merits 07/2024 of January 16, 2024

File number: DOS-2021-01224

Subject: Complaint regarding the unlawful processing and commercialization of personal data by a data broker

The Dispute Chamber of the Data Protection Authority (hereinafter, DPA), composed of Mr. Hielke Hijmans, chair, and Messrs. Dirk Van Der Kelen and Yves Poulet, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter GDPR;

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter WOG;

Considering the internal rules of procedure, as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainants:

[X], [...], hereinafter "the complainants," represented by [...], with registered office at [...], registered with the Crossroads Bank for Enterprises under number [...].

The respondent:

BLACK TIGER BELGIUM (formerly BISNODE BELGIUM NV), with registered office at [...], registered with the Crossroads Bank for Enterprises under number [...], hereinafter "the respondent," represented by attorneys DOCQUIR and CORNETTE, with offices at [...].

Decision on the merits 07/2024 - 2/114

I.

Facts and procedure

3

II.

Reasoning

9

II.1.

Jurisdiction of the Belgian Data Protection Authority

9

II.2.

Description of the disputed processing activities by the respondent

11

II.2.1.

Controller of processing

12

II.2.2.

Data processing

14

II.3.

Legality of the processing (Article 5.1.a) and 5.2, as well as Article 6.1 GDPR)

16

II.3.1.

Position of the Inspection Service

16

II.3.2.

Position of the parties

16

II.3.3.

Judgment of the Dispute Chamber

28

II.4.

Transparency towards the data subjects (Article 12.1, Article 13.1 and 13.2, Article 14.1 and 14.2, Article 5.2, Article 24.1, and Article 25.1 GDPR)

57

II.4.1.

Position of the Inspection Service

57

II.4.2.

Position of the parties

57

II.4.3.

Judgment of the Dispute Chamber

59

II.5.

Handling of requests from data subjects to exercise their rights (Article 12.1 and 12.2, Article 15.1, Article 5.2, Article 24.1, and Article 25.1 GDPR)

68

II.5.1.

Position of the Inspection Service

68

II.5.2.

Position of the parties

68

II.5.3.

Judgment of the Dispute Chamber

71

II.6.

Use of cookies on the respondent's websites (Article 4.11, Article 5.1.a) and 5.2, Article 6.1.a), as well as Article 7.1 and 7.3 GDPR)

76

II.6.1.

Position of the Inspection Service

76

II.6.2.

Position of the respondent

76

II.6.3.

Judgment of the Dispute Chamber

77

II.7.

Accountability of the respondent (Article 5.2, Article 24.1, as well as Article 25.1 and 25.2 GDPR)

77

II.7.1.

Position of the Inspection Service

77

II.7.2.

Position of the respondent

78

II.7.3.

Judgment of the Dispute Chamber

79

II.8.

Register of processing activities (Article 30.1, 30.2, and 30.3 GDPR)

81

II.8.1.

Position of the Inspection Service

81

II.8.2.

Position of the respondent

81

II.8.3.

Judgment of the Dispute Chamber

82

II.9.

Involvement of the DPO (Article 38.1 and Article 39.1 GDPR)

83

II.9.1.

Position of the Inspection Service

83

II.9.2.

Position of the respondent

84

II.9.3.

Judgment of the Dispute Chamber

84

II.10. Additional considerations regarding the inspection report

85

III. Sanctions and corrective measures

87

III.1.

Established violations

87

III.2. Measures imposed by the Dispute Chamber

89

III.2.1.

Corrective measures to bring processing into compliance with the GDPR

89

III.2.2.

Administrative fines

91

III.3. Other grievances

112

IV. Publication of the decision

112

Decision on the Merits 07/2024 - 3/114

I.

Facts and Procedure

1.

The subject of the complaint concerns the alleged unlawful processing and commercialization of personal data of the complainants by the former NV BISNODE BELGIUM, now known as "BLACK TIGER BELGIUM"¹.

2.

BISNODE BELGIUM claims to be a direct marketing and big data specialist that has been active in the B2B market in Belgium for several decades. For several years, this company was active in the field of data broking (broker in personal data), whereby BISNODE BELGIUM purchased data from sources and processed this data on behalf of its clients, who themselves carried out direct marketing activities, either for businesses or for individuals and consumers².

3.

On October 23, 2020, and on November 27, 2020, the two complainants, each separately, submitted a request to the respondent, exercising their right of access in accordance with Article 15 GDPR.

4.

On November 13, 2020, and December 23, 2020, they each received a response to their request. Both responses were sent by regular mail by the respondent and provided further explanation regarding the various files in which the personal data of the complainants may or may not be included, as well as a summary of the categories of personal data held by the respondent, the purposes of processing, and the legal basis (Article 6.1.f) GDPR). Furthermore, the respondent provided a list “of the (potentially) involved sectors” within which companies may be active that could potentially receive personal data of the complainants from the respondent. The respondent then clarified that the personal data of the complainants would be retained for 15 years from the last registration in its database, and mentioned the sources of the personal data in the consumer file [the company Z8] respectively the business file (Belgian Official Gazette and Crossroads Bank for Enterprises). The respondent also emphasized that it does not use automated decision-making, but assesses the so-called “marketing potential” of data subjects to create a marketing segmentation profile for each user. The respondent also stated that it, or “one of its clients,” may transfer the personal data of the complainants “in certain cases” to countries outside the EEA. Finally, the respondent reminded the complainants of the possibility to exercise their other rights and to consult more information regarding this on the website www.bisnodeenu.be as well as the possibility to file a complaint with the Data Protection Authority.

1 See paragraph 36 in this decision.

2 Conclusions of the respondent dated March 7, 2022, p. 2.

Decision on the Merits 07/2024 - 4/114

5.

On January 28, 2021, the complainants submitted a joint complaint to the Data Protection Authority against the respondent. The complainants complain that as a data broker, it processes a large number of their personal data without their knowledge, and thus in violation of Article 13 or 14 GDPR, nor with prior consent. According to the complainants, this personal data was purchased from various parties, possibly enriched, and subsequently resold to third parties for commercial purposes. The complainants also assert that some personal data is more than 15 years old and therefore incorrect. Additionally, the complainants believe that the respondent applies profiling to their personal data before selling this profile data. In conclusion, the complainants state that the respondent has violated Article 12.3 GDPR by providing the requested information on paper while the exercise of their rights by data subjects should necessarily have occurred electronically.

6.

On March 15, 2021, the complaint was deemed admissible by the First Line Service based on Articles 58 and 60 WOG and the complaint was forwarded to the Litigation Chamber based on Article 62, § 1 WOG.

7.

On March 22, 2021, the Litigation Chamber decided based on Articles 63, 2° and 94, 1° WOG to request an investigation by the Inspection Service.

8.

On March 24, 2021, in accordance with Article 96, § 1 WOG, the request from the Litigation Chamber for an investigation was forwarded to the Inspection Service, along with the complaint and the inventory of documents.

9.

On March 31, 2021, BISNODE BELGIUM was taken over by [the parent company Z1]³ and the former

directors were replaced by new directors⁴, including [...] who also serves as chairperson on the board of directors of [the parent company Z1]⁵.

10.

On May 20, 2021, the investigation by the Inspection Service was completed, the report was added to the file, and the file was forwarded by the inspector-general to the Chair of the Litigation Chamber (Article 91, § 1 and § 2 WOG).

The report contains findings regarding the subject of the complaint and concludes that the respondent has violated the following provisions of the GDPR:

i.

Article 5.1.a) and 5.2, as well as Article 6.1 GDPR;

ii.

Article 12.1 and 12.2, Article 15.1, Article 5.2, Article 24.1, and Article 25.1 GDPR;

3 [Z1], located at [...], registered in the National Trade and Companies Register (Registre national du commerce et des sociétés) of France with SIREN number [...]. At the General Meeting dated [...] June 2023, the name of the company was changed to "Z2"; the minutes of this General Meeting were registered on [...] November 2023 at the Commercial Court of Paris (see paragraphs 28 and 34 in this decision).

4 B.S., April 21, 2021 – <https://www.ejustice.just.fgov.be/>[...].

5 See the French government website L'Annuaire des Entreprises:

<https://annuaire-entreprises.data.gouv.fr/>[...].

Decision on the Merits 07/2024 - 5/114

iii.

Article 12.1, Article 13.1 and 13.2, Article 14.1 and 14.2, Article 5.2, Article 24.1, and Article 25.1 GDPR.

The report also contains findings that go beyond the subject of the complaint. The Inspection Service specifically finds that the respondent has violated the following provisions of the GDPR:

iv.

Article 4.11), Article 5.1.a) and 5.2, Article 6.1.a), as well as Article 7.1 and 7.3 GDPR;

v.

Article 5, Article 24.1, as well as Article 25.1 and 25.2 GDPR;

vi.

Article 30.1, 30.2, and 30.3 GDPR;

vii.

Article 38.1 and Article 39.1 GDPR.

The Inspection Service finally finds that the processing of personal data is part of the core activities of the respondent, and that it systematically and on a large scale processes personal data for, among other things, direct marketing purposes.

11.

On June 15, 2021, the name of BISNODE BELGIUM is changed to BLACK TIGER BELGIUM⁶. The company number [...] remains unchanged.

12.

On September 30, 2021, the Disputes Chamber decides based on Article 95, § 1, 1° and Article 98 WOG that the file is ready for substantive treatment. The parties involved are notified by registered mail of the provisions as mentioned in Article 95, § 2, as well as those in Article 98 WOG. They are also informed based on Article 99 WOG of the deadlines to submit their defenses.

13.

On October 4, 2021, and October 8, 2021, the respondent and the complainant respectively request a copy of the file (Article 95, § 2, 3° WOG), which was provided to them on October 8, 2021. Both parties agree to further exchanges of documents electronically.

14.

On October 13, 2021, the respondent indicates a desire to be heard, in accordance with Article 98 WOG, and requests to express himself in French, both in the context of his conclusions and during the

hearing before the Disputes Chamber, as the respondent is based in the bilingual region of Brussels-Capital, is registered in French with the Crossroads Bank for Enterprises, has statutes in French, and is part of the French "BLACK TIGER GROUP"⁷.

15.

On November 3, 2021, the parties are informed of the suspension of the previously communicated deadlines for conclusions, pending a decision from the Disputes Chamber regarding the language of the procedure. The complainant states on November 6, 2021, that he opposes the change of the procedural language to French, as he does not sufficiently master French, nor has the means to have French documents translated. On November 13, 2021, the complainant reports that he is being represented by [...].

16.

On November 29, 2021, the Disputes Chamber decides not to grant the respondent's request to change the language of the procedure to French, for the following reasons:

-

The position of the respondent — The Disputes Chamber finds that the respondent must be regarded as a large company, with more than 100 full-time employees in 2020. The Disputes Chamber also notes based on the documents in the file that the respondent targets both a Dutch-speaking and a French-speaking audience.

-

The position of the complainant — The Disputes Chamber finds that the complainant has a direct interest in a decision from the Disputes Chamber, as the complaint concerns the exercise of his rights regarding personal data that are collected and processed by the respondent.

-

Abuse of the option to object to complicate the procedure — Given the bilingual nature of the respondent, as evidenced by the responses the complainant received in Dutch as well as the bilingual website of the respondent, also located in the bilingual region of Brussels-Capital, the Disputes Chamber concludes that the respondent's request to change the procedural language unnecessarily complicates the procedure for the Disputes Chamber.

-

Other specific circumstances in the case — The Disputes Chamber takes note of the fact that the respondent has consistently expressed itself in French during the investigation by the Inspection Service; however, the Disputes Chamber considers this argument insufficient to justify a change in the procedural language, taking into account the preceding elements. Finally, the Disputes Chamber wishes to emphasize that it does not see how the acquisition of BISNODE BELGIUM by the French group BLACK TIGER can justify a change in the language in which the dispute resolution procedure will be conducted.

Consequently, both parties must submit their defenses in Dutch. However, the parties are free to submit any evidence in their original language, without the GBA being responsible for its translation.

Decision on the Merits 07/2024 - 7/114

The parties involved are also notified by registered mail of the new deadlines for submitting their defenses, in accordance with Articles 98 and 99 WOG.

Regarding the findings related to the subject of the complaint, the deadline for receipt of the defendant's response was set for January 24, 2022, for the claimant's reply on February 14, 2022, and finally for the defendant's rejoinder on March 7, 2022.

As for the findings that go beyond the subject of the complaint, the deadline for receipt of the defendant's response was set for January 24, 2022.

17.

On January 24, 2022, the Dispute Chamber received the responses from the defendant regarding the findings related to the subject of the complaint. The Dispute Chamber notes that the defendant did not further object to the use of Dutch by the Dispute Chamber and submitted his written comments in Dutch.

18.

On February 15, 2022, the Dispute Chamber received the claimant's replies regarding the findings

related to the subject of the complaint.

19.

On March 7, 2022, the Dispute Chamber received the defendant's rejoinders regarding the findings related to the subject of the complaint.

20. On August 3, 2022, the Dispute Chamber decided to initiate a procedure under Article 56 GDPR to identify the lead supervisory authority as well as, if applicable, other involved supervisory authorities. The reason for this is the potential transfer of data processing responsibility in the context of the acquisition of BISNODE BELGIUM by BLACK TIGER on March 31, 2021, as well as the statements by the defendant that his services were explained to the French supervisory authority (CNIL). There is also a possibility that individuals in other Member States may experience significant consequences from the disputed processing of personal data by BISNODE BELGIUM, now BLACK TIGER BELGIUM.

21.

On October 6, 2022, the CNIL confirmed that it is investigating to what extent it acts as the lead supervisory authority following the acquisition by BLACK TIGER. On October 19 and 27, 2022, the Polish and Italian supervisory authorities respectively informed the GBA that they wish to act as involved authorities.

22.

On November 15, 2022, the CNIL confirmed to the GBA that BLACK TIGER had contacted the CNIL but only regarding the development of the "Data Quality" platform, which contains a specific module dedicated to compliance with the GDPR.

Decision on the Merits 07/2024 - 8/114

The CNIL clarified, however, that it cannot yet confirm whether exchanges have taken place between its services and BLACK TIGER regarding the potentially cross-border nature of BLACK TIGER's processing activities. Regarding its authority over the processing activities of the BLACK TIGER group, the CNIL confirmed that it is trying to determine whether the group's main establishment has changed in the period following the acquisition of the Belgian company by the French company. The CNIL concluded by stating that it is awaiting additional elements on this point.

23.

On December 22, 2022, the CNIL informed the GBA that based on the information provided by BLACK TIGER, it has concluded that BLACK TIGER BELGIUM retained its decision-making bodies after the acquisition in March 2021 of BISNODE BELGIUM by [Z1], the French parent company of the BLACK TIGER group. The CNIL specifically noted that the executive body of BLACK TIGER BELGIUM remained responsible for the formal decision to cease the Data Delivery activities as a data broker despite the acquisition. Therefore, the CNIL concluded that the Belgian establishment BLACK TIGER BELGIUM is the main establishment for the disputed processing, and the authority of the GBA as the lead supervisory authority remains unchanged.

24.

On January 19, 2023, the parties were notified that the hearing would take place on February 22, 2023.

25.

On February 22, 2023, the parties were heard by the Dispute Chamber.

26.

On March 2, 2023, the minutes of the hearing were submitted to the parties.

27.

On March 10, 2023, the Dispute Chamber received some comments from the defendant regarding the minutes, which it decided to include in its deliberation.

28.

On [...] June 2023, the General Assembly of [the parent company Z1] unanimously approved the tenth decision, changing the name of the company to "[the parent company Z2]."

29.

On August 7, 2023, the Dispute Chamber decided to reopen the debates on specific points related to

the present case.

30. On August 8, 2023, the involved supervisory authorities were formally informed through a request for mutual assistance regarding the withdrawal of the cooperation procedure in accordance with Article 60 GDPR, given the lack of

8 Article 61.1 GDPR — "The supervisory authorities shall provide each other with relevant information and mutual assistance to ensure the consistent application and enforcement of this Regulation and take measures to cooperate effectively. Mutual assistance shall cover, in particular, information requests and supervisory measures, such as requests for prior authorization and consultations, inspections, and investigations."

Decision on the Merits 07/2024 - 9/114

Determination in the present case of cross-border data processing within the meaning of Article 4.23) GDPR.

31.

On September 6, 2023, the Dispute Chamber received the response from the complainant.

32.

On September 11, 2023, the Dispute Chamber received the reply from the respondent, which it decided to include in its deliberations.

33. On October 31, 2023, the Dispute Chamber informed the respondent of its intention to impose an administrative fine as well as the amount thereof, in order to give the respondent the opportunity to defend itself before the sanction is effectively imposed.

34. On [...] November 2023, the clerk of the Commercial Court of Paris registered under file number [...] the deed of incorporation containing the minutes of the General Meeting held on [...] June 2023 as well as the articles of association of [the parent company Z2], as updated following the decisions of the General Meeting.

35. On November 24, 2023, the Dispute Chamber received the response from the respondent regarding the intention to impose corrective measures and an administrative fine, as well as regarding the amount thereof. The Dispute Chamber takes this response into consideration in the context of its deliberations.

II. Justification

II.1. Jurisdiction of the Belgian Data Protection Authority

36. Between 2007 and 2020, BISNODE BELGIUM was part of [the company Z3], hereinafter referred to as '[Z3]', an international holding consisting of entities primarily in Northern and Eastern Europe. On October 8, 2020, the Swedish private equity firm [Z4], also the majority shareholder (70%) of BISNODE AB, announced the sale to [the company Z5] of all its shares in the holding BISNODE AB, except for the operational activities of BISNODE BELGIUM.

37.

The Dispute Chamber notes that BISNODE BELGIUM was acquired on March 31, 2021, by the French company [Z1] — now [Z2]⁹ — operating under the commercial name BLACK TIGER GROUP. As a result of the acquisition, the name BISNODE BELGIUM was changed to BLACK TIGER BELGIUM on June 15, 2021.

⁹ See paragraphs 28 and 34 in this decision.

Decision on the Merits 07/2024 - 10/114

38. The Dispute Chamber rules that this acquisition of BISNODE BELGIUM by the French group BLACK TIGER and the name change to BLACK TIGER BELGIUM do not impact the jurisdiction of the GBA regarding the alleged violations of the GDPR, for the following reasons.

39. First, the Dispute Chamber points out that the original complaint was directed against BISNODE BELGIUM NV, established in Belgium, and that the website <https://bisnodeandyou.be>, which is no longer accessible, explicitly mentioned BISNODE BELGIUM as the data controller for the processing of personal data as of March 31, 2021.¹⁰

40. Pursuant to Article 55 GDPR, each supervisory authority has the competence to carry out the tasks and exercise the powers assigned or conferred upon it by the GDPR within the territory of its Member

State. It follows that the Belgian Data Protection Authority was competent at the time of the complaint regarding the processing activities carried out by BISNODE BELGIUM. The fact that BISNODE BELGIUM was still owned by the Swedish publicly traded group [Z4]¹¹ until March 31, 2021, cannot lead to a lack of jurisdiction on the part of the GBA. The respondent's assertion that BISNODE BELGIUM had only "limited leeway to determine [...] its own strategies and policies regarding personal data"¹² does not convince the Dispute Chamber either. Indeed, after the transfer of the parent company BISNODE AB to [the company Z5] in October 2020, BISNODE BELGIUM could no longer be considered bound by the former policy choices imposed by BISNODE AB.

41.

That the respondent was taken over by a French group at the time of the investigation does not lead to the conclusion that the GBA would not be competent for the processing of personal data until the aforementioned date of acquisition. In this case, the Dispute Chamber finds that the processing activities of the respondent, including the various websites managed by it, are aimed at a Belgian target audience and

10 Document 12 ("Screenshots of the website <https://bisnodeandyou.be/>") in the inventory, p. 4.

11 In October 2020, [Z4], a Swedish publicly traded group and also the majority shareholder (70%) of the BISNODE group (BISNODE AB SWEDEN), announced the sale of all its shares to [the company Z5], except for the operational activities related to BISNODE BELGIUM.

12 Conclusion in reply dated March 7, 2022, from the respondent, p. 2.

Decision on the Merits 07/2024 - 11/114

concerned parties established in Belgium. The respondent's statement that "Bisnode Belgium [before and after the entry into force of the GDPR] ensured [that the company] had an appropriate internal organization to comply with its obligations regarding the individuals whose personal data it holds," as well as that "the new buyer was in no way involved [sic] in the course of these events [the alleged infringements]" also confirms the competence of the GBA.

42.

Finally, and by way of surplus, the Dispute Chamber notes that the respondent at no time questioned the competence of the GBA to address the complaint on the merits. On the contrary, both during and following the hearing of February 22, 2023, the respondent disputed that there would be cross-border processing within the meaning of Article 4.23) GDPR, resulting in the application of Article 60 GDPR not being relevant according to the respondent. The mere fact that the website of BLACK TIGER BELGIUM mentions a presence in Poland cannot, according to the respondent, suffice to make the existence of cross-border processing plausible. The GBA has terminated the cooperation procedure under Article 60 GDPR in relation to the above circumstances.

43. The Dispute Chamber will subsequently summarize the data processing activities carried out by the respondent, before assessing each of the findings included in the report of the Inspection Service in light of the arguments presented by the parties regarding them.

II.2. Description of the disputed processing activities by the respondent

44. Based on the submitted documents, the Dispute Chamber understands that the respondent had three different databases containing personal data under its management at the time of the complaints:

i.

the consumer database Consu-Matrix (hereinafter, "CMX"), which contains personal data of consumers that the respondent has collected from various external sources ("source partners"). These sources provide their own customer databases to BISNODE BELGIUM for commercialization for direct marketing purposes. CMX is a B2C information database intended for

marketing, analysis, profiling, statistics, verification and control purposes (data quality), as well as for reference and “other” purposes.

ii.

the business database Spectron, which contains company and contact information of Belgian companies that the respondent has obtained through public/government sources (Crossroads Bank for Enterprises, National Bank of Belgium) as well as through commercial data sources.

Spectron is a B2B information database intended for marketing profiling, analysis, credit purposes, statistics, verification and control purposes (data quality), as well as for reference and “other” purposes.

iii.

the direct marketing database Permesso, which contains personal data of “Permesso members” that the respondent has collected via an online marketing platform. Personal data included in Permesso are intended for marketing and direct marketing purposes (marketing, analysis, profiling and statistics).

45. Unlike Permesso, which contains personal data that has been directly collected from the data subjects for direct marketing purposes, based on the consent of the data subjects (Article 6.1.a) GDPR), CMX and Spectron are exclusively supplemented with personal data that has been indirectly collected, based on the legitimate interest of the respondent and its clients (Article 6.1.f) GDPR).

II.2.1. Data Controller

46. A data controller is defined as “a natural or legal person, a public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data” (Article 4.7) GDPR). It is an autonomous concept, specific to data protection legislation, which must be assessed based on the criteria established therein: the determination of the purposes of the relevant data processing and the means for that processing.

Decision on the Merits 07/2024 - 13/114

47.

The aforementioned databases were established and managed by BISNODE BELGIUM, as irrefutably demonstrated by the internal documentation submitted to the GBA during the investigation (own underlining and filtering)¹⁸:

48. Given the information available, the Dispute Chamber considers it sufficiently proven that BISNODE BELGIUM acted as the data controller for the aforementioned processing activities at the time of the complaints.

49. Until March 2021, BISNODE BELGIUM offered its customers in the Belgian B2B market two separate activities: on the one hand, a “Data Quality” service, which consists of improving the quality or relevance of customer data, and on the other hand, a “Data Delivery” service, which consists of providing data to customers who do not yet possess it, enabling them to carry out direct marketing campaigns. Both Spectron and CMX were processed by the respondent for Data Quality (DQ) and Data Delivery (DD) purposes¹⁹. Specifically, the data from CMX was sold to the respondent's customers for enrichment purposes or rented out for direct marketing purposes (mainly by mail)²⁰. The Spectron business database was also commercialized to the respondent's customers, who could use the data from this database for their own direct marketing purposes²¹.

18 Document 1 (“DPIA Bisnode May 23, 2018 - Consu -Spectron-Permesso”) and Document 30 (“Bisnode Belgium - Copy of Record of Processing”), submitted by the respondent to the Inspection Service in the context of the investigation.

19 Document 30 (“Bisnode Belgium – Copy of Record of Processing”) submitted to the Inspection Service.

20 Conclusion in reply dated March 7, 2022, from the respondent, p. 3.

21 Document 6 ("Legitimate Interest Assessment Spectron 27082020") submitted with the respondent's reply conclusions, p. 1: "Bisnode compiles data from different sources: [...] (ii) via public sources such as, for example, the Crossroads Bank for Enterprises. [...] The purpose of such processing operation for Bisnode is to enhance and increase its proprietary B2B database Spectron, in order to deliver better services. Those services may include [...] delivery of data sets for direct marketing purposes on the basis of specific criteria (segmentation) covering offline and digital channels, including social media."

Decision on the Merits 07/2024 - 14/114

50. Following the acquisition by BLACK TIGER GROUP on March 31, 2021, the newly renewed board of directors of BLACK TIGER BELGIUM chose on June 25, 2021, to cease all activities related to the Data Delivery service. It was also decided to destroy the CMX consumer database on July 30, 2021, as well as the Permeso direct marketing database²³. Until that date, the data from CMX — including the personal data of the complainants — was sold, rented, or made available to companies for use in direct marketing purposes, specifically for sending advertising messages as well as for validation, identification, and analysis purposes. All customers of the respondent also received communication informing them that BLACK TIGER BELGIUM intended to cease the "B2C Data Delivery" activity. Although existing contracts with customers of this service were terminated, the respondent's customers who had received data before or on July 30, 2021, could use the already provided personal data until October 30, 2021²⁴, in accordance with the contractual provisions.

51.

The Data Delivery service for the professional market ("B2B Data Delivery"), which related to the Spectron business database, was transferred by BLACK TIGER BELGIUM to [company Z6]²⁵ as of December 1, 2021. However, customers of the respondent who had received data until November 30, 2021, were contractually entitled to use this data for an additional three months, until the end of February 2022²⁶. This decision also demonstrates the responsibility of BLACK TIGER BELGIUM regarding the transferred processing activities.

II.2.2. Data Processing

52.

Article 4.2) of the GDPR defines the processing of personal data as "an operation or a set of operations performed on personal data or a set of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, updating or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction of data."

22 Ibid.

23 Conclusion in reply dated March 7, 2022, from the respondent, p. 3.

24 Ibid.

25 Ibid.

26 Ibid.

Decision on the Merits 07/2024 - 15/114

53. Based on this definition and the documentation provided in the context of the investigation as well as the conclusion phase, the Dispute Chamber distinguishes four different processing activities carried out by the respondent, namely:

A. The processing of consumer data in the CMX database in the context of the "B2C Data Delivery" service, whereby the respondent collects and enriches personal data of consumers based on Article 6.1.f) GDPR, with a view to commercially supplying the personal data to its clients, who use this personal data for direct marketing purposes, and in particular for sending advertising messages, as well as for validation, identification, and analysis purposes;

B. The processing of consumer data in the CMX database in the context of the "B2C Data Quality" service, whereby the respondent collects, enriches, and consolidates personal data of consumers based on Article 6.1.f) GDPR to assign a reliability score to personal data of consumers already in the possession of BLACK TIGER BELGIUM's clients, for a fee, so that they can improve the quality of their

data by formatting, standardizing, correcting, and/or internally linking (matching) them;

C. The processing of business data in the Spectron database in the context of the "B2B Data Delivery" service, whereby the respondent collects and enriches personal data of natural persons connected to businesses based on Article 6.1.f) GDPR, with a view to commercially supplying the personal data to its clients, who use this personal data for sending advertising messages²⁷ and for segmentation purposes (validation, identification, and analysis of profiles);

D. The processing of business data in the Spectron database in the context of the "B2B Data Quality" service, whereby the respondent collects, enriches, and consolidates personal data of natural persons connected to businesses based on Article 6.1.f) GDPR to assign a reliability score to personal data already in the possession of clients of BLACK TIGER BELGIUM, for a fee, so that they can improve the quality of their data by formatting, standardizing, correcting, and/or internally linking (matching) them.

54. Since BISNODE BELGIUM has determined both the means and purposes for each of these processing activities in the present case, BLACK TIGER BELGIUM, in its capacity as the legal successor of BISNODE BELGIUM, must be regarded as the data controller. In light of the preceding elements, the Dispute Chamber will subsequently assess the findings by the Inspection Service in the investigation report as well as the documents provided by the parties and their defenses step by step.

II.3. Legality of the processing (Article 5.1.a) and 5.2, as well as Article 6.1 GDPR)

II.3.1. Position of the Inspection Service

55. According to the Inspection Service, the respondent improperly invokes its legitimate interests for the processing of the personal data of the complainants in the context of its commercial activities, and consequently violates Article 6.1 GDPR.

56. The Inspection Service particularly notes that the respondent processes various personal data (including general personal information, contact details, professional data, and family data) that are partly obtained from the data subjects themselves and partly through other sources — so-called "partners" of the respondent — on a large scale. This implies, according to the Inspection Service, that data subjects cannot reasonably expect that their personal data will be systematically made available to the respondent's clients for marketing campaigns without their consent, nor that it will be processed in the context of the respondent's freedom to conduct business. Consequently, the third condition of Article 6.1.f) GDPR, the so-called balancing test between the interests of the respondent, on the one hand, and the fundamental freedoms and rights of the data subjects, on the other hand²⁸, cannot be met.

57. Furthermore, according to the Inspection Service, the respondent does not demonstrate that its interests outweigh those of the data subjects, thereby also violating Article 5.1.a) and 5.2 GDPR.

II.3.2. Position of the parties

II.3.2.1. Invocation of a legitimate interest (6.1.f) GDPR) as a basis for the processing of personal data and balancing of interests by BLACK TIGER BELGIUM

58. The complainants primarily argue that the processing of their personal data by the respondent for commercial purposes is unlawful, as the complainants were not informed of this and furthermore

²⁸ See Title II.3.3.3 below in this decision.

Decision on the Merits 07/2024 - 17/114

never given their consent. The complainant asserts, in other words, that the respondent cannot invoke a legitimate interest for the collection and subsequent commercialization of his personal data.

59. The respondent, on the other hand, states that he is indeed permitted to process personal data of the complainants as well as other parties involved based on his legitimate interest, as well as that of his customers and partners. According to the respondent, the Inspection Service did not take into account all the elements that the respondent had nevertheless presented to demonstrate his legitimate interest and the proportionality of the processing. The respondent would have specifically pointed out to the Inspection Service during the investigation the relevant passages from the various Legitimate Interest Assessment (LIA) reports²⁹ that related to the identification of the data in question, but also to the legality, necessity, and proportionality assessment. The finding of the Inspection Service that the respondent did not consider the three aforementioned cumulative conditions would therefore evidently

be incorrect.

60. The respondent also complains that the Inspection Service made no attempt to establish the precise factual circumstances of the case.

61.

Legality Assessment — First of all, the respondent argues that direct marketing as such constitutes a legitimate purpose, as defined in recital 47 of the GDPR and reiterated in recommendation 01/2020 of the GBA³⁰. The respondent also contends that his legitimate interest lies in ensuring the continuation of his service regarding big data expertise, which he has been offering to his customers for years, based on his fundamental freedom to conduct a business as provided in Article II.3 of the Code of Economic Law and Article 16 of the EU Charter of Fundamental Rights³¹. The consideration of the freedom to conduct a business in the assessment of the balancing of interests by the Dispute Chamber would therefore be essential. Consequently, the processing activities of the respondent in the context of his Data Delivery activity meet the purpose or legality assessment.

62.

Furthermore, the Data Quality service would serve the legitimate interests of customers of BLACK TIGER BELGIUM, specifically to conduct effective marketing campaigns and to maintain databases that contain only accurate and up-to-date information, as required by the GDPR, according to the respondent. Thus, the Data Quality service would also meet the legality assessment.

29 Legitimate Interest Assessment reports; see paragraphs 95 and 130 in this decision.

30 GBA — Recommendation No. 01/2020 of January 17, 2020, regarding the processing of personal data for direct marketing purposes,

<https://www.gegevensbeschermingsautoriteit.be/publications/aanbeveling-nr.-01-2020.pdf>.

31 Article 16 of the Charter of Fundamental Rights of the European Union — “The freedom to conduct a business is recognized in accordance with Union law and national laws and practices.”

Decision on the Merits 07/2024 - 18/114

63. Necessity Test — Secondly, the necessity to process data for the intended direct marketing activities cannot be disputed by the defendant, as sending mail is not intrusive, is not prohibited by any law, and direct marketing by mail is not subject to a specific regulation requiring prior consent from recipients (unlike direct marketing by email). Consequently, the defendant asserts that the processing activities of BLACK TIGER BELGIUM in the context of its Data Delivery activity also meet the necessity test. According to the defendant, the report from the Inspection Service does not adequately explain why there would be a lack of proportionality, as the defendant's activity consists precisely of collecting data of various kinds on a large scale. On the contrary, it would be “completely normal and legitimate” for the defendant to “collect various data to characterize the family or socio-professional situation of a person,” “since the defendant has been professionally active in the sector for many years.” The defendant emphasizes that the large-scale processing of personal data falls within its expertise in big data, and according to him, no argument can be derived from the fact that data is collected from various sources, nor from the scale of the processing, to condemn BLACK TIGER BELGIUM in the abstract.

64. Balancing Test — Thirdly, the defendant contends that, contrary to what the Inspection Service claims, he has duly and meticulously conducted a balancing of interests between his interests and the rights and freedoms of the data subjects, taking into account the nature of the processing, its consequences for the data subjects, and the interests of the business. The defendant specifically refers to the documented balancing of interests³² — which according to the defendant only applies to direct marketing campaigns by mail — that was submitted to the Inspection Service and which took into account:

- the economic interest of the defendant and his clients;
- the fundamental freedom of entrepreneurship of the defendant;
- the negative and positive consequences of the processing, whereby it is not necessary according to the defendant to avoid every negative consequence for the data subject, but rather the intention is to prevent an disproportionate impact on these data subjects;
- the “rather innocuous” nature of the data;

32 Document 5 (“Legitimate Interest Assessment Consu-Matrix 27082020”) submitted with the defendant's response conclusions; Document 6 (“Legitimate Interest Assessment Spectron 27082020”) submitted with the defendant's response conclusions.

Decision on the Merits 07/2024 - 19/114

- the reuse and further processing of publicly available personal data from, among others, the KBO and the NBB;
- “the right of objection of the data subjects/opt-out”; and
- the publication of transparent information on, among others, the defendant's website and that of his data sources, as well as the mandatory mention of BISNODE BELGIUM in the advertising messages directed by clients to their target audience.

65. The defendant posits that, keeping these balancing considerations in mind, he concluded that the negative consequences for the data subjects do not outweigh the positive consequences for the defendant and his clients, considering the freedom of entrepreneurship, as well as the positive consequences for the data subjects themselves, who as a result of the processing of their personal data no longer receive irrelevant advertising.

66. Consequently, the legitimate interests invoked by the defendant can, according to him, provide an appropriate basis for the processing of personal data of data subjects, as the defendant has taken a series of measures to ensure that the balance between the relevant interests is maintained at all times within the framework of the proportionality test, as well as to demonstrate this in accordance with the accountability obligation resting on the defendant. In this regard, the defendant specifically refers to the following measures he has already implemented³³:

- a comprehensive due diligence of the data sources regarding data protection, including thorough analyses of licenses of public sources concerning the reuse of public data;
- the obligation for data sources to inform data subjects about the transfer of their data to the defendant, so that the defendant or other companies can provide personalized offers to the data subjects;
- the mandatory mention of “BISNODE BELGIUM” in the advertising message and the defendant's right to review the advertising message, in combination with conducting campaigns through the media to increase the visibility of the defendant among data subjects;
- compliance with the principle of minimal data processing as well as the fact that “data enrichment is only applied to data already in the possession of Bismode Belgium's clients”³⁴;

33 Defendant's response conclusions dated January 24, 2022, p. 7.

34 Defendant's response conclusions dated January 24, 2022, p. 7 in fine.

Decision on the Merits 07/2024 - 20/114

- the effective ability of data subjects to exercise their rights under the GDPR; and

▪ the implementation of appropriate technical and organizational measures.

67.

Reasonable Expectations of Data Subjects — In the alternative, the defendant argues that, in assessing the legitimate interest of the data controller, it is not necessary to take into account the reasonable expectations of the data subject. Thus, the finding by the Inspection Service that data subjects do not expect their data to be processed “without their consent” and “for payment” would be irrelevant, as the criterion of reasonable expectations mentioned in Recital 47 of the GDPR³⁵, according to the defendant, would only relate to the hypothesis of further processing of personal data in the sense of Article 6.4 GDPR³⁶. By systematically considering the reasonable expectations of data subjects at the time of collection, the legality of the processing would, according to the defendant, fully rely on the subjective viewpoint of the data subjects at a specific time, thereby reducing the other criteria for assessing the proportionality of the processing to unnecessary considerations. Such reasoning would more specifically “almost necessarily lead to the conclusion [that] BLACK TIGER BELGIUM has no higher legitimate interest, as the data subjects, by definition, cannot or can only with difficulty expect that their data will be subjected to a technical processing such as that carried out by

the defendant (which moreover is part of its secret know-how)”³⁷, making de facto any activity of Data Delivery in a broad sense impossible. The defendant argues that the criterion of reasonable expectations cannot therefore be used as the sole criterion for assessing proportionality.

Moreover, account must also be taken of (i) the degree of transparency of the data processing; (ii) the efforts of the defendant to inform the data subjects; and (iii) encouraging the data sources and the customers of the defendant to “actively contribute to the data subjects”³⁸. Furthermore, the defendant states that the choice of a legitimate interest as the basis for the processing of personal data “by definition” entails a certain infringement of the fundamental rights and freedoms of data subjects, but does not lead to a limitation of the obligations of a data controller under the GDPR³⁹. Data subjects

35 Recital 47 GDPR — “[...] In any case, a careful assessment is required to determine whether there is a legitimate interest, as well as to determine whether a data subject may reasonably expect that processing for that purpose may take place at the time and in the context of the collection of personal data [...]”.

36 Conclusion in reply dated March 7, 2022, from the defendant, p. 15.

37 Conclusion in reply dated March 7, 2022, from the defendant, p. 16.

38 Conclusion of response dated January 24, 2022, from the defendant, p. 8.

39 Conclusion of response dated January 24, 2022, from the defendant, p. 9.

Decision on the Merits 07/2024 - 21/114

they can always exercise their right of objection, thanks to the transparent information on the website of the respondent as well as the mandatory mention of BISNODE BELGIUM in the advertising messages sent to customers.

68. However, if the Dispute Chamber were to reject the arguments put forward by the respondent, the respondent requests the suspension of the case and the submission of a preliminary question to the Court of Justice of the European Union regarding the interpretation of Article 6 GDPR and the freedom of entrepreneurship under the Charter of Fundamental Rights of the European Union. According to the respondent, the Dispute Chamber is:

“a ‘judicial authority of a Member State’ [...] within the meaning of Article 267 of the Treaty on the Functioning of the European Union, in the sense that the Court of Justice has given to this autonomous concept of Union law. It was established by the law of December 3, 2017, has a permanent character, is certainly independent or at least should be according to both EU law and Belgian law, and it issues binding judicial decisions at the end of an adversarial procedure that complies with legal rules that are particularly established in a clear separation between the investigative function on the one hand, and the adjudicative function on the other hand. As such, it has the right to request the Court of Justice of the European Union for a preliminary ruling on the interpretation and validity of the treaties and the acts of the institutions, bodies, and agencies of the Union.”

69. In his reply conclusions, the respondent finally emphasizes that the following elements are essential to properly assess the role of the respondent:

i.
BLACK TIGER BELGIUM is a big data specialist, i.e., a technical expert in processing vast amounts of data.

ii.
The now discontinued activities in the field of Data Delivery included
i. purchasing data from various sources;
ii. processing this data to generate suitable data sets; and
iii. delivering these data sets to professional clients who use them to enrich their own data or to attempt to reach new customers by conducting direct marketing campaigns on their own behalf.

iii.
Since the personal data is collected by the partner sources of BLACK TIGER BELGIUM, either directly from the data subjects or from third parties, it is primarily up to these sources to ensure the lawfulness of the initial processing and to provide the data subjects with information about the processing, the purposes, etc.

Decision on the Merits 07/2024 - 22/114

iv.

Since BLACK TIGER BELGIUM primarily carried out technical processing to compile datasets that met the needs of its professional clients, the respondent maintains that it acted in this context as a processor and its clients as data controllers. Therefore, the role of the respondent as a data controller remained strictly limited to the aggregation of data, being the technical processing within the framework of its know-how that was maintained in its CMX database for direct marketing purposes for the benefit of its clients.

v.

It is then the professional clients of the respondent who, after receiving the datasets that precisely matched their requests, personally sent the direct marketing communications to the data subjects. Since the respondent has never conducted a prospecting campaign by mail for its own needs regarding consumers, the clients of the respondent are the only ones responsible for the processing of personal data in the context of the sent direct marketing communications, as they are the initiators of this for their own needs.

vi.

The activities in the field of Data Delivery were almost exclusively related to the postal channel, as opposed to emails, mobile phone numbers, or other digital channels. These activities, extensively described in the response letter to the Inspection Service dated April 27, 2021, were moreover governed by clear contractual agreements with both the sources and the professional clients of the respondent.

II.3.2.2.

Continuation of the Data Delivery service after the acquisition of BISNODE BELGIUM by BLACK TIGER

70. The complainant refers in his conclusions to the webpage of the respondent⁴⁰ on which, as of February 14, 2022, the purposes for the processing of personal data were still mentioned, namely: (a) Data Delivery, (b) Data Quality, and (c) Internal use⁴¹.

40 <https://avg.blacktigerbelgium.tech/uw-professionele-gegevens/waarom-professioneel/>.

41 The Dispute Chamber emphasizes that the complaints do not relate to internal use and that no investigation was conducted into internal use, resulting in the Dispute Chamber limiting its assessment to the first two processing activities.

Decision on the Merits 07/2024 - 23/114

71.

The complainant particularly believes that the respondent, in February 2022, provided the following explanation regarding its Data Delivery services:

“In the context of our Data Delivery activities, we commercialize your personal data for prospecting and direct marketing purposes, to enrich the databases provided by our clients, to create marketing profiles, and/or to conduct market research.”⁴²

In other words, the complainant argues that the respondent, contrary to its conclusions, was still engaged in direct marketing activities in 2022 as part of its Data Delivery activities — including the creation of profiles of data subjects — based on data from public sources such as the Crossroads Bank for Enterprises, while such data is primarily intended to allow third parties to verify business information. Furthermore, regarding the processing of personal data of consumers, the respondent would have indicated that this data is processed by it and, in some cases, also provided to its clients.

72.

In its synthesis conclusion, the respondent clarifies that the disputed statement on the website is solely the result of the transition periods specified in the agreements with clients of the B2B Data Delivery service, who had received data from Spectron until November 30, 2021. Notwithstanding the transfer of the service to [Company Z6] on December 1, 2021⁴³, these clients had the right to use the provided data for an additional three months, until the end of February 2022. For that reason, the respondent has maintained information on its website regarding the categories of collected data, the purposes of processing, and the rights of the data subjects. The respondent states that this is explicitly mentioned

on the webpage <https://avg.blacktigerbelgium.tech/uw-professionele-gegevens/>, which precedes the webpage that describes the processing purposes cited by the complainant.

42 Complainant's reply conclusions dated February 15, 2022, p. 2.

43 See paragraph 51 in this decision.

Decision on the Merits 07/2024 - 24/114

Processing of Government Data from the KBO for Direct Marketing Purposes by BLACK TIGER BELGIUM

73.

The complainant asserts that the contact details of the entities registered with the Crossroads Bank for Enterprises are made available both via the “public search” webpage and through so-called “KBO Web Services” or reuse files. Although it is legally possible to purchase a data license from the KBO for the reuse of business data, the complainant argues that it is unclear whether the respondent possesses the necessary KBO annual subscription to use this data.

Aside from this reuse license, the complainant states that, according to Belgian law on the KBO, it is explicitly prohibited to use KBO data for direct marketing, resulting in the use of KBO data for direct marketing purposes by BLACK TIGER BELGIUM constituting at least a violation of the law.

The complainant contends that the provision of KBO data via the “public search” functionality is in accordance with Article III.31 of the Economic Law Code⁴⁴ and in accordance with Article 1 of the Royal Decree of March 28, 2014, implementing Article III.31 of the Economic Law Code⁴⁵, particularly the

44 Economic Law Code, B.S., March 29, 2013, Article III.31 — “All natural persons, legal entities, or entities have access, via the internet, to data referred to in Article III.29, § 1, registered in the Crossroads Bank for Enterprises. A freely accessible website must be provided where this data can be found in a readable format [...]”.

45 Royal Decree implementing Article III.31 of the Economic Law Code, particularly the provision of the data of the Crossroads Bank for Enterprises that is accessible via the internet as well as the conditions for consulting it, B.S., April 28, 2014, Article 1 — “§ 1. The following data from the Crossroads Bank for Enterprises is accessible via the Internet:

- 1° the enterprise number and the establishment unit number(s);
- 2° the names of the registered entity and/or its establishment units;
- 3° the addresses of the registered entity and/or its establishment units;
- 4° the legal form;
- 5° the legal status;
- 6° the economic activities of the registered entity and its establishment units;
- 7° the capacities under which the registered entity is registered in the Crossroads Bank for Enterprises;
- 8° [...];
- 9° the name and first name of the founders and of the persons who perform a function in the registered entity that is subject to disclosure;
- 10° the reference to the website of the registered entity, its telephone and fax number as well as its email address; [...]

§ 2. The name and address of the residence of the natural person are not displayed when accessing the data mentioned in paragraph 1, unless:

- a) either this name corresponds to the name of the registered entity or its establishment unit;
- b) or the address of the residence corresponds to the address of its establishment unit.

§ 3. Only the active data referred to in paragraph 1 are mentioned.

§ 4. The data that have a start date in the future or that have been discontinued are not mentioned.

Decision on the Merits 07/2024 - 25/114

Determination of the data of the KBO that is accessible via the internet as well as the conditions for consulting it.

Regarding the provision of contact details in the context of web services or reuse files, the complainant

believes that the KBO makes a number of data available through the complete dataset for data reuse. Among these data are, among other things, information concerning the entity and natural person as well as the names and first names of the individuals who, within legal entities, perform functions or demonstrate entrepreneurial skills.

74.

The complainant adds that as the responsible party for a company, one can also provide so-called "declarative" additional contact details. The provision of such contact details in the context of the web services or reuse files of the KBO must, in principle, be done in accordance with Article III.33 of the Economic Law Code⁴⁶ and the royal decree on the reuse of public data from the Crossroads Bank for Enterprises⁴⁷, which expressly prohibits the use of public data from the KBO for direct marketing purposes and/or redistribution:

"Article 2 — § 1. The public data of the Crossroads Bank for Enterprises may be transmitted to third parties for reuse in accordance with the detailed rules and conditions of this decree. However, third parties may not use and/or redistribute personal data for direct marketing purposes.

§ 2. The management service may not transmit either the identification number in the National Register or the identification number in the Crossroads Bank of Social Security to third parties.

§ 3. The special conditions for reuse are established in a license agreement between the licensee and the Belgian State."

According to the complainant, this prohibition would also be included in the privacy statements as well as the license agreements of the Crossroads Bank for Enterprises:

"2.2 The licensee may not use personal data for direct marketing purposes, in accordance with Article 2 of the royal decree of July 18, 2008.

Notwithstanding the first paragraph, in the case of a discontinued registered entity, the data referred to in paragraph 1 are mentioned that were active at the time of the discontinuation of the registered entity."

⁴⁶ Economic Law Code, B.S., March 29, 2013, Article III.33 — "Without prejudice to the provisions of Articles III.29 and III.30, the King, after consulting the Supervisory Committee, determines the data of the Crossroads Bank for Enterprises that may be subject to commercial or non-commercial reuse as well as the modalities regarding their availability. Only the management service may provide these basic data to enterprises."

⁴⁷ Royal Decree of July 18, 2008, concerning the commercial reuse of public data from the Crossroads Bank for Enterprises, B.S., October 29, 2008.

Decision on the Merits 07/2024 - 26/114

Regarding the reuse of public data from the Crossroads Bank for Enterprises."

75.

In his conclusions of the reply, the respondent states that he has entered into a data license with the KBO and also adheres to the terms of use of this license. According to the respondent, it is therefore established that he does not use KBO data for direct marketing purposes, but processes it solely for Data Quality purposes. The respondent further emphasizes that "direct marketing" is nowhere mentioned as a pursued commercial purpose in the license agreement concluded between BLACK TIGER BELGIUM and the Federal Public Service Economy.

76.

Although he would have explicitly stated in his initial defenses that the business and contact details of Belgian companies in the reference file "Spectron" — which were indirectly obtained through both public/government sources (KBO, NBB) and through commercial data sources — were also used for direct marketing purposes, the respondent states during the hearing dated February 22, 2023, that "it is nonetheless clear that BLACK TIGER BELGIUM does not process data from the KBO for direct marketing purposes."

77.

In his written remarks regarding the minutes of the hearing dated February 22, 2023, the respondent additionally emphasizes that BLACK TIGER BELGIUM has never been the sender of promotional messages, nor the designer of the content of such messages. It is always the clients of the respondent

who are responsible for selecting addresses and sending advertising messages to these addresses. In any case, according to the respondent, this does not prevent his clients from processing the same data themselves for direct marketing purposes, provided that they carry out these processes using data they already possess, and thus were in no way supplied by BLACK TIGER BELGIUM. Finally, the respondent argues that the only processing at issue concerns promotional campaigns by mail, excluding all digital or other communication means.

II.3.2.4.

Massive processing of personal data of minors without consent

78.

The complainant states based on the responses to the requests for access that the respondent processes personal data of minors, specifically the minor children of the complainants. This data would have been obtained via [the company Z7], as well as other commercial companies such as [the company Z8] and [the company Z9].

Decision on the Merits 07/2024 - 27/114

The complainant refers in this regard to the alleged share of 21.10% of the Belgian population from which [the company Z6] processes personal data, to conclude that the respondent processes an even larger volume of data, among other things due to the data that the respondent purchases from additional suppliers.

79.

In his rebuttal conclusions, on the other hand, the respondent points out that he only has limited data (date of birth and gender of the child, in relation to the parent identified in the source file) of minors. This data is used solely for segmentation purposes. In no case has the respondent provided data of minors to his clients, allowing them to send advertisements directly to minors.

II.3.2.5.

Retention periods applicable to the collected personal data

80. During the hearing dated February 22, 2023, the complainant regrets the exceptionally long retention periods of 15 years after the last registration in the respondent's databases. The complainant states that if data is registered again in any way in the respondent's databases, a new period of 15 years begins. This would also appear from the information that the complainants received in the respondent's response, which includes data that is more than 15 years old, including data of their children and a number of "outdated email addresses dating back to the mid-90s."

81.

In response to the question from the Dispute Chamber during the hearing dated February 22, 2023, regarding what measures were taken to assess and ensure the quality of personal data that is 15 years old, the respondent merely confirms that personal data is retained in principle for a period of 15 years. When the complainant subsequently raises that the current privacy statement mentions a retention period of 3 or 10 years, depending on the category of the data subject, the respondent replies that the current privacy statement is not relevant since the complaint, as well as the investigation report, both of which are the subject of the current procedure before the Dispute Chamber, relate to the period before June 2021.

82.

Furthermore, the respondent emphasizes in the context of the reopening of the debates that the old privacy statement has "now been completely nullified and replaced." The respondent further states that the privacy statement on the website is intended for the general public, in contrast to the privacy statement that applies to data subjects who have received direct marketing communications, which the respondent is named in.

48 Conclusions of the respondent ("Supplementary Conclusion Black Tiger (1002387.1)") submitted to the Dispute Chamber on September 11, 2023.

49 <https://www.blacktigerbelgium.tech/privacy-policy>.

Decision on the Merits 07/2024 - 28/114

This distinction, which according to the respondent does not relate to the nature of the personal data, is also expressly emphasized on the first page of the revised general privacy statement — which would

nonetheless be insufficient for the present case, according to the respondent.

II.3.2.6.

Enrichment of personal data with personal impact

83. The complainant asserts that the respondent enriches personal profiles using statistical data from the National Institute of Statistics, and that the consequences of this enrichment are significant and directly felt by the data subjects. The complainant specifically refers to a particular company that would determine the creditworthiness of its customers based on profile data as well as data provided by the respondent. The respondent's response to the requests for access would also indicate that the profiles of the complainants are classified as "Social class: elite class."

84. In his rebuttal conclusions, the respondent disputes this claim of the complainant, which is not supported by the documents in the file.

85. During the hearing before the Dispute Chamber on February 22, 2023, the respondent is asked to what extent his Data Quality service — whereby the respondent's clients share their own customer files with the respondent for quality control, i.e., to verify whether the personal data is sufficiently reliable — also involves (a form of) data enrichment. The respondent replies that upon receiving customer data about a specific data subject, he will only check whether there is more relevant data known about that same data subject — for example, an email address that has been used more recently — before assigning a score regarding the provided data and communicating this score to the client. According to the respondent, no new personal data is therefore transmitted to the clients in the context of the Data Quality service.

II.3.3. Opinion of the Dispute Chamber

86. Prior to its substantive assessment of the lawfulness of the processing of the complainant's personal data by the respondent, the Dispute Chamber wishes to emphasize that, contrary to what the respondent asserts in his response dated 24.

Decision on the Merits 07/2024 - 29/114

November 2023 regarding the sanction form⁵², would by no means create "an incomprehensible confusion" between the activities of Data Delivery and Data Quality. Furthermore, the Dispute Chamber disputes the respondent's assertion that no adversarial debate was opened regarding the Data Quality services. Neither of the two arguments is convincing, for the following reasons.

First, the grievances of the complainants relate to the processing of their personal data by the respondent, without the complainants explicitly distinguishing between the different services offered by the respondent. This is also logical; data subjects cannot be expected to explicitly mention the commercial names that a data controller assigns to the processing activities it performs in their complaint to the GBA. Moreover, the respondent, in its responses to both requests for access, makes no distinction based on the service for which the personal data of the complainant or the complainant was processed. Specifically for the complainant, however, the respondent distinguishes between the consumer database, on the one hand, and the business database, on the other hand.

Second, the investigation report explicitly refers to the response dated April 21, 2021, from the data protection officer (hereinafter, DPO) of the respondent to the questions from the Inspection Service, in which no distinction is made between the Data Quality and Data Delivery services either. That response clearly indicates that the respondent describes both services collectively as "commercial activities":

"14. As indicated in the letters in response to the requests of the complainants for the right of access, Bisnode Belgium processed their data in the context of its commercial activities based on Article 6 1 f) of the GDPR" (free translation)⁵³.

Third, during the hearing dated February 22, 2023, questions were posed to the respondent that explicitly related to the Data Quality services. However, the respondent never objected during the hearing to the posing of these questions, which he answered. Furthermore, the respondent was free to address and contest the alleged "confusion" between the two services in his response to the minutes of the hearing, which he again did not do.

Finally, the respondent can hardly deny that he already explained both services ex officio in his initial

defenses dated January 24, 2022.

52 Response of the respondent to the sanction form dated October 31, 2023, p. 2, point (i), and p. 3, point (iii).

53 “14. Comme indiqué dans les lettres en réponse aux demandes de droit d'accès des plaignants, Bisnode Belgium a traité leurs données dans le cadre de ses activités commerciales sur base de l'article 6 1 f) du RGPD”.

Decision on the Merits 07/2024 - 30/114

and hereby refers to the documented balancing of interests for the various databases⁵⁴, in which, moreover, no substantial distinction is made depending on the Data Quality or Data Delivery services⁵⁵. In other words, it is established that the respondent was able to defend itself both during the investigation and in the context of the written debates before the Dispute Chamber regarding the Data Quality as well as the Data Delivery services, which is sufficiently demonstrated by the documents submitted in the context of the responses to the conclusions.

87. According to Article 5.1.a) GDPR, personal data must be processed in a manner that is lawful, fair, and transparent with respect to the data subjects. Furthermore, Article 6.1 GDPR states that the processing of personal data is only lawful if and to the extent that it is based on a valid legal ground. The data controller must finally be able to demonstrate that the processing is lawful, given the accountability obligation imposed on it by Article 5.2 in conjunction with Article 24.1 GDPR.

88. Based on the submitted documents, the Dispute Chamber finds that the respondent invokes Article 6.1.f) GDPR (legitimate interest) for the collection and processing of personal data in CMX and Spectron, while the consent of the data subjects serves as the legal basis for data processing in the context of Permesso. However, in the context of the present case, the Dispute Chamber understands that the personal data of the complainants were not processed in Permesso⁵⁶. Therefore, the Dispute Chamber will limit its assessment in this matter to the data processing related to the CMX and Spectron databases.

89. The respondent confirms in its conclusions that it relies on Article 6.1.f) GDPR for the collection of personal data from public and private sources, as well as for the inclusion and enrichment of that same personal data in various internal databases, before commercializing this personal data to its customers in the context of both Data Delivery and Data Quality services⁵⁷, for direct marketing purposes⁵⁸. This is further supported by the respondent's responses to both complainants, following their requests for access:

54 Document 5 (“Legitimate Interest Assessment Consu-Matrix 27082020”) submitted with the respondent's response conclusions; Document 6 (“Legitimate Interest Assessment Spectron 27082020”) submitted with the respondent's response conclusions.

55 See paragraphs 64 et seq. in this decision.

56 Document 2 (“Response to the access request of November 13, 2020 from Bisnode Belgium”), as submitted to the Dispute Chamber in the context of the response conclusions.

57 Respondent's response conclusions dated January 24, 2022, p. 11; Respondent's reply conclusions dated March 7, 2022, p. 21

58 Document 5 (“Legitimate Interest Assessment Consu-Matrix 27082020”) submitted with the respondent's response conclusions; Document 6 (“Legitimate Interest Assessment Spectron 27082020”) submitted with the respondent's response conclusions.

Decision on the Merits 07/2024 - 31/114

“Your data is processed by us on the basis of the following legal ground, namely the pursuit of our legitimate interest (art. 6.1.f of the General Data Protection Regulation) in the context of our commercial activities.”⁵⁹

“As described in the Privacy Policy, available at www.bisnodeenu.be, we process your personal data in accordance with the GDPR. This data processing is necessary on the one hand to safeguard the legitimate interest of Bisnode Belgium, and on the other hand to safeguard the legitimate interest of others. (article 6.1.f GDPR).”⁶⁰

90. Since it is established that the respondent processed the personal data of the complainants solely

on the basis of article 6.1.f) GDPR, the Dispute Chamber will not consider the processing of personal data by the respondent based on the consent of the data subjects.⁶¹

91. In accordance with article 6.1.f) GDPR and the case law of the Court of Justice of the European Union (hereinafter "CJEU") in its judgment "Rīgas"⁶², three cumulative conditions must be met for a data controller to validly invoke this legal basis⁶³, namely:

"[...] firstly, the pursuit of a legitimate interest of the data controller or of the third party to whom the data are disclosed, secondly, the necessity of the processing of personal data for the pursuit of the legitimate interest, and, thirdly, the condition that the fundamental rights and freedoms of the data subject do not prevail."

92. In order to invoke legitimate interests in accordance with article 6.1.f) GDPR, a data controller must therefore demonstrate that:

- i. the interests it pursues with the processing can be recognized as legitimate (the "purpose test");
- ii. the intended processing is necessary for the realization of these interests (the "necessity test"); and
- iii. the balancing of these interests against the interests, fundamental freedoms, and rights of the data subjects weighs in favor of the data controller (the "balancing test").

59 Response of the respondent to the complainant, dated November 13, 2020.

60 Response of the respondent to the complainant, dated December 23, 2020.

61 I.e., in the context of the website www.permesso.be and in the Permessio database.

62 CJEU, May 4, 2017, C-13/16, Valsts policijas Rīgas reģiona pārvaldes Kārības policijas pārvalde v. Rīgas pašvaldības SIA "Rīgas satiksme" (ECLI:EU:C:2017:336), para. 28. See also CJEU, December 11, 2019, C-708/18, TK v. Asociația de Proprietari bloc M5A-ScaraA (ECLI:EU:C:2019:1064), para. 40.

63 See also Decision on the Merits 71/2020 of October 30, 2020, paras. 68-73 (available on the GBA website).

Decision on the Merits 07/2024 - 32/114

The Dispute Chamber will assess the contested data processing activities against the three aforementioned conditions in the following sections.

II.3.3.1.

Purpose Assessment

93. The Dispute Chamber recalls that the balancing of interests does not play a role if the interest of the data controller is unjustified, as the first threshold for the application of Article 6.1(f) GDPR is not met in such circumstances. The interest pursued by a data controller or third party must be distinguished from the objectives pursued through a specific processing activity. In the context of data protection, the "purpose" is the specific reason why the data is processed: the objective or intention of the data processing. The "interest," on the other hand, is a broader concept and relates to the value for the data controller or the benefit that the data controller, or society, may derive from the processing.

94. Since it is not appropriate for it to judge in the abstract the practice of data trading nor the broader so-called data brokerage or data intermediaries industry, the Dispute Chamber will render its judgment in the present case in concreto, based on the various documents that the parties have submitted both during the investigation and in the context of the defenses, which show a detailed analysis of the various points of concern related to the activities of the respondent as a data broker.

95. Regarding the first condition for invoking Article 6.1(f) GDPR, the respondent states in the submitted legitimate interest assessments (hereinafter 'LIA') that the processing activities associated with CMX and Spectron pursue the following purposes:

"[...] to improve and expand its own consumer database Consu-Matrix [and B2B database Spectron], in order to provide better services. These services may consist of (i) data analysis, (ii) enrichment, validation, or other 'Data Quality' services aimed at improving the quality of the data of Bisnode's customers, and

64 See paragraph 52 in this decision.

65 Article 29 Data Protection Working Party – Opinion 06/2014 on the concept of "legitimate interest of the data controller" in Article 7 of Directive 95/46/EC (WP217, April 9, 2014), p. 30.

66 Ibid, p. 29.

67 Ibid, p. 29: "A company may have an interest in ensuring the health and safety of its employees at a nuclear power plant. In this regard, the company may have the implementation of specific access control procedures as a purpose that justifies the processing of certain specified personal data to help ensure the health and safety of employees."

68 Document 2, as submitted by the respondent to the Inspectorate in the context of the investigation; Document 5, as submitted to the Dispute Chamber in the context of the response conclusions.

69 Document 3, as submitted by the respondent to the Inspectorate in the context of the investigation; Document 6, as submitted to the Dispute Chamber in the context of the response conclusions.

Decision on the Merits 07/2024 - 33/114

(iii) delivery of data sets for direct marketing purposes based on specific criteria (segmentation) covering offline and digital channels, including social media."⁷⁰

96. In particular, the respondent would pursue the following specific objectives through the processing of personal data included in the CMX database as well as the Spectron database⁷¹:

- i. the commercialization and optimization of the activities of BLACK TIGER BELGIUM as a data broker;
- ii. the improvement of the quality of the data in the customer databases, particularly by validating, correcting, and supplementing this data based on the personal data already held by BLACK TIGER BELGIUM;
- iii. the grouping of personal data that a company holds about a specific individual; and
- iv. the analysis of data and the creation of market segmentation profiles to infer the preferences of data subjects, so that (i) client companies can offer them suitable products/services that correspond to their professional and personal situation and with the products/services they already possess, and (ii) social networks or other media can tailor advertisements on client companies' web pages to the interests that data subjects have shown.

The Dispute Chamber notes, also considering the wording used by the respondent, that the pursued objectives apply to both the Data Delivery and Data Quality services, regardless of whether the processed personal data is located in the CMX database (B2C) or in the Spectron database (B2B).

97. The "justified" nature of a pursued interest can generally be assumed as long as the following three conditions are met:

- i. The pursued interest must first be lawful, that is, acceptable under EU legislation or the legislation of a member state⁷². Thus, it applies as

70 Original text: "[...] to enhance and increase its proprietary consumer database Consu-Matrix [/ B2B database Spectron], in order to deliver better services. Those services may include (i) data analysis, (ii) enrichment, validation or other "Data Quality" services aimed at improving the quality of the data held by Bisnode's customers, and (iii) delivery of data sets for direct marketing purposes on the basis of specific criteria (segmentation) covering offline and digital channels, including social media."

71 Document 2, as submitted by the respondent to the Inspection Service in the context of the investigation; Document 5, as submitted to the Dispute Chamber in the context of the reply conclusions (CMX); Document 3, as submitted by the respondent to the Inspection Service in the context of the investigation; Document 6, as submitted to the Dispute Chamber in the context of the reply conclusions (Spectron).

72 The Dispute Chamber is aware that the question of whether any interest constitutes a justified interest, provided that interest does not conflict with the law, and in particular the question of whether this also applies to a purely commercial interest, has been referred to the Court of Justice in case C-621/22, Koninklijke Nederlandse Lawn Tennisbond. What is stated here reflects the current state of the law.

Decision on the Merits 07/2024 - 34/114

the general rule that interests recognized by or derived from a legislative measure or a legal principle can form a lawful interest. Naturally, the pursued interest must not conflict with the law, including legal restrictions regarding the relevant personal data.

- ii. The pursued interest must also be established in a sufficiently clear and precise manner: the scope of the pursued lawful interest must be clearly defined so that this interest can be properly weighed

against the interests or fundamental rights and freedoms of the data subjects.

iii. Finally, the justified interest must be existing and effective at the time of data processing (and thus not fictitious or merely hypothetical⁷³).

98. In the present case, the Dispute Chamber is of the opinion that the interests put forward for the B2C Data Delivery and B2C Data Quality services, namely:

i. the interest of the respondent to enrich and commercialize its databases in the context of its freedom to conduct a business; and

ii. the interest of the respondent's customers to obtain the most up-to-date personal data in order to enrich their own databases or confirm their accuracy in light of the principle of accuracy⁷⁴, with the aim of conducting effective direct marketing campaigns;

are clearly established, delineated, real, and current, resulting in the pursued interests being legitimate.

99. Regarding the specific grievances of the complainant that the respondent would also use KBO data (in Spectron) for direct marketing purposes, the Dispute Chamber, however, finds that the relevant rebuttals from the respondent⁷⁵ do not correspond with the documentation provided by him, nor with the screenshots of his website⁷⁶:

73 CJEU, December 11, 2019, C-708/18, TK v. Asociația de Proprietari bloc M5A-ScaraA (ECLI:EU:C:2019:1064), para. 44.

74 Pursuant to recital 39 and Article 5.1.d) GDPR.

75 See paras. 75 to 77 in this decision.

76 Document 6 ("Legitimate Interest Assessment Spectron 27082020") submitted with the respondent's reply conclusions; Document 12 ("Screenshots of the website <https://bisnodeandyou.be/>") in the inventory.

Decision on the Merits 07/2024 - 35/114

100. The Dispute Chamber also notes that the conditions in Annex 2 to the license agreement for the use of data from the KBO for commercial purposes⁷⁷ not only prohibit the own use for direct marketing but also prohibit the redistribution of this data for direct marketing purposes:

Provisional Decision — Insofar as the respondent would effectively process data from the KBO for direct marketing-related purposes in the context of its B2B Data Delivery services and B2B Data Quality services, as described in the balancing of interests for the Spectron database⁷⁸, the Dispute Chamber rules that BLACK

77 Document 19 ("KBO License Agreement Bisnode (790517.1)") submitted with the respondent's reply conclusions, p. 16.

78 Document 6 ("Legitimate Interest Assessment Spectron 27082020") submitted with the respondent's response conclusions, p. 1.

Decision on the Merits 07/2024 - 36/114

TIGER BELGIUM cannot invoke Article 6.1.f) GDPR for these processing activities since the legality condition is not met.

II.3.3.2.

Necessity Test

101. In addition to the existence of a legitimate interest, the data controller must also demonstrate the necessity of the processing for that interest before being able to invoke Article 6.1.f) GDPR. The Court of Justice has emphasized that the condition regarding the necessity of the processing for the intended interest must be examined in conjunction with the principle of data minimization, as laid down in Article 5.1.c) GDPR⁷⁹. The necessity requirement is indeed important to ensure that data processing based on legitimate interest does not lead to an overly broad interpretation of the criterion regarding the necessity to process data. Personal data must therefore always be adequate, relevant, and limited to what is necessary for the purposes for which they are processed. Specifically, the respondent must ensure that there are no less intrusive means in terms of impact on the privacy of the data subjects available to achieve this interest than the intended processing⁸⁰. This assessment must also take into account the principle of storage limitation under Article 5.1.e) GDPR.

102. In order to assess whether the processing passes the necessity test, the Dispute Chamber considers it again important to take into account not only the submitted defenses but also the documentation provided during the investigation and in the context of the conclusions. The respondent explains the necessity of the disputed processing by answering three questions in the context of the assessment of the interests he presents regarding CMX and Spectron as being justified⁸¹:

i.

Why is the processing activity important for the data controller?

ii.

Why is the processing activity important for other parties to whom the data may be disclosed, if applicable?

iii.

Can the objective be achieved in another way?⁸²

79 CJEU, December 11, 2019, C-708/18, TK v. Asociația de Proprietari bloc M5A-ScaraA (ECLI:EU:C:2019:1064), para. 48.

80 Article 29 Data Protection Working Party – Opinion 06/2014 on the concept of "legitimate interests of the data controller" in Article 7 of Directive 95/46/EC (WP217, April 9, 2014), p. 35.

81 Document 5 ("Legitimate Interest Assessment Consu-Matrix 27082020") submitted with the respondent's response conclusions; Document 6 ("Legitimate Interest Assessment Spectron 27082020") submitted with the respondent's response conclusions.

82 (1) "Why is the processing activity important to the Controller?"; (2) "Why is the processing activity important to other parties the data may be disclosed to, if applicable?"; (3) "Is there another way of achieving the objective?".

Decision on the Merits 07/2024 - 37/114

103. The Dispute Chamber first establishes, based on the provided documentation, that there is no substantial difference between the assessment regarding the processing of personal data contained in the CMX database (B2C) and the assessment of the processing of personal data contained in the Spectron database (B2B). The following exposition therefore applies to both databases.

104. In response to the first question, the respondent refers to the benefit that he derives from the processing of personal data, particularly the necessity of the processing for the continuation of his economic activities. This position applies to both the Data Delivery and Data Quality services.

105. Regarding the safeguarding of the interests of third parties (second question), the respondent, on the other hand, makes a distinction depending on the service provided.

i.

B2C/B2B Data Delivery service — The respondent points to the benefit for his clients in being able to reach prospects, selecting consumer or business target groups through various channels (mail, telephone, social media, ...) and thereby increasing their revenue. The processing would, in other words, be necessary for enriching the databases of BLACK TIGER BELGIUM's clients with additional contact details of consumers and entrepreneurs, so that these clients could contact their own prospects and consumers via new communication channels for direct marketing purposes.

Additionally, BLACK TIGER BELGIUM's clients would be able to better analyze and segment their own customer databases based on enriched profiling data, again with a view to sending direct marketing communications.

ii.

B2C/B2B Data Quality service — The processing of personal data included in the CMX file as well as the Spectron database aims to improve the quality of the databases of BLACK TIGER BELGIUM's clients, allowing for the merging of duplicate entries at the individual or household level in the clients' databases and avoiding return shipments due to incorrect consumer addresses.

106. Regarding the third question, the respondent briefly posits that other methods to realize the interests would provide less certainty and would not contribute to achieving the objectives.

83 "The benefit of the processing for Bisnode Belgium is the continuation of its economic activities."

84 Document 5 ("Legitimate Interest Assessment Consu-Matrix 27082020") submitted with the respondent's reply conclusions, p. 4; Document 6 ("Legitimate Interest Assessment Spectron

27082020”) submitted with the respondent's reply conclusions, p. 4.

85 “The benefit of the processing for the Bisnode clients is multiple: [...] To improve the quality of their database: Avoid postal returns because of bad addresses [...] Be able to group a same person/household that is several times in the database.”

Decision on the Merits 07/2024 - 38/114

to deepen the relationship between the customers of BLACK TIGER BELGIUM and the parties involved.

According to the respondent, there are no less intrusive yet equally effective measures to deepen existing customer relationships and generate more sales than direct marketing. This position also applies to both the Data Delivery service and the Data Quality service.⁸⁶

Minimal Data Processing — 5.1.c) GDPR

107. In order to assess the necessity of these processing activities for the intended interests, the Dispute Chamber also considers the processed personal data. Relying on the screenshots of the privacy policy on the website, the joint data protection impact assessment (DPIA) for the three databases, the register of processing activities, as well as the response from the DPO of BISNODE BELGIUM to the questions from the Inspection Service and the detailed answers that the complainants received from the respondent — then still BISNODE BELGIUM — the Dispute Chamber finds⁸⁷ that BLACK TIGER BELGIUM processes the following categories of personal data in its databases:

i.
Screenshots of the privacy policy dated March 31, 2021⁸⁸ (CMX, B2C) — Name, first name, gender, language, age (or date of birth or presumed age group), address, landline phone, mobile phone, email address, date of last contact of the data source with the data subject, statistical data at neighborhood or municipal level (average income in the neighborhood where people live, percentage of owners/renters, gardens, unemployment rate...), observation data (land area, presence of solar panels...), derived data, marketing profiles.

ii.
Screenshots of the privacy policy dated March 31, 2021⁸⁹ (Spectron, B2B) — Company data — Company name, enterprise and VAT number, contact points, social security number, activity sector according to NACE, joint committee, size of the company, number of employed workers, date of establishment, data of and number of establishments/branches/franchise holders, web pages, financial information (including any solvency and bankruptcy).

⁸⁶ Document 5 (“Legitimate Interest Assessment Consu-Matrix 27082020”) submitted with the respondent's response conclusions, p. 5; Document 6 (“Legitimate Interest Assessment Spectron 27082020”) submitted with the respondent's response conclusions, p. 5.

⁸⁷ In accordance with a “careful fact-finding,” as emphasized by the Market Court in its interim judgment 2022/AR/292 of September 7, 2022, p. 36 and 39.

⁸⁸ Document 12 (Screenshots of the Bisnode Belgium website taken by the Inspection Service on March 31, 2021) in the inventory, p. 45-48.

⁸⁹ Document 12 (Screenshots of the Bisnode Belgium website taken by the Inspection Service on March 31, 2021) in the inventory, p. 31-33.

Decision on the Merits 07/2024 - 39/114

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Individual data — Name, first name, gender, language, professional and sometimes private address, professional landline and/or mobile phone number, professional email address, date of birth, position or title (including date of appointment), derived data, marketing profiles, date on which the information was communicated to BISNODE BELGIUM or on which changes were made.

iii.
Joint DPIA (CMX, B2C)⁹⁰ — Contact details, personal data about minors (older than 16 years), consumer interests, family typology, lifestyle data, identification data, personal characteristics.

iv.
Joint DPIA (Spectron, B2B)⁹¹ — Contact details, collection data, electronic identification data, financial data, identification data, memberships, other data, personal characteristics, vocational

training and education.

v.

Register of processing activities (CMX, B2C)⁹² — Contact details, date of birth, age, socio-demographic and lifestyle data, family typology, presence of children, neighborhood data⁹³.

vi.

Register of processing activities (Spectron, B2B)⁹⁴ — Contact details, company data (CBE number, number of employees, turnover, NACE, ...), financial data⁹⁵.

vii.

Letter to the GBA (CMX, B2C)⁹⁶ — General personal information (name, first name, gender, language, and age or date of birth or presumed age), contact details (postal address, landline phone number, mobile phone number, and email address), typologies such as family (young couple, single with or without children), housing (single-family or multi-family dwelling), statistical data at neighborhood and/or municipal level (average income, percentage of owners/renters, percentage of gardens, unemployment rate, etc.), and general physical information at neighborhood level (average plot size or the presence of solar panels, etc.).

90 Document 1 (“DPIA Bisnode May 23, 2018 - Consu -Spectron-Permesso”) submitted to the Inspection Service.

91 Ibid.

92 Document 30 (“Piece 30 - Bisnode Belgium - Copy of Record of Processing”) submitted to the Inspection Service.

93 “Contact Data, Date of Birth, Age, Socio-demo and Lifestyle data, Family typology, Presence of children, Neighborhood data.”

94 Document 30 (Bisnode Belgium - Copy of Record of Processing) submitted to the Inspection Service.

95 “Contact Data, Firmographics (CBE number, number of employees, turnover, NACE, ...), Financial data.”

96 Appendix (“Response Inspection APD April 27, 2021”) to Document 18 in the inventory.

Decision on the Merits 07/2024 - 40/114

viii.

Letter to the GBA (Spectron, B2B)⁹⁷ — Name, first name, gender, language, business address, business telephone number (landline and/or mobile), business email address, date of birth, position or title within the company, date of appointment or entry into force.

ix.

Responses to the access requests⁹⁸ — Name, first name, address, gender, language, date of birth, email address, child (including date of birth and gender), family typology, statistical data at neighborhood level (urbanization, social class, percentage of higher education, percentage of unemployed, percentage of gardens, percentage of owners).

108. The processed personal data at the time of the complaints thus includes several categories, which the Dispute Chamber outlines below per database:

CMX (B2C)

Spectron (B2B)

Identification data

Name, first name

Identification data

Name, first name

Contact details

Address, landline and/or mobile phone number, email address

Contact details

Business address, business landline and/or mobile phone number, business email address

Personal data about minors (> 16 years)

Date of birth and gender

Electronic identification data

Not further defined

Personal characteristics

Gender, language, age (or date of birth or presumed age group)

Personal characteristics

Gender, language, date of birth, position or title (including date of appointment)

Consumer interests

Not further defined

Financial specifications

Solvency, bankruptcy

Lifestyle data

Not further defined

Vocational training and education

Not further defined

Family composition

Family typology (single with or without children, young couple, etc.), date of birth and gender of child(ren)

Collection data

Not further defined

Housing

Single-family or multi-family dwelling

Memberships

Not further defined

Statistical data at neighborhood or municipal level

Average income in the neighborhood, percentage of owners/renters, gardens, social class, percentage of higher education, unemployment rate

Other data

Not further defined

Observation data (at neighborhood level)

Average plot size, presence of solar panels

Derived data

Not further defined

97 Appendix ("Réponse Inspection APD 27042021") to Document 18 in the inventory.

98 Document 2 ("Response to the access request of November 13, 2020 from Bisnode Belgium") and Document 3 ("Response to the access request of December 23, 2020 from Bisnode Belgium") submitted with the respondent's reply conclusions.

Decision on the Merits 07/2024 - 41/114

Derived Data

Not further defined

Marketing Profiles

Not further defined

Marketing Profiles

Not further defined

109. Although the Dispute Chamber will return to this matter further in the present decision, the question arises to what extent all these personal data are systematically necessary for the safeguarding of the intended interests.

In the context of the Data Delivery service, compliance with the accuracy principle pursuant to recital 39 and Article 5.1(d) GDPR is indeed presented by the respondent as an interest of the processing. According to that principle, a data controller — in this case, the respondent or his clients — must take all necessary measures to ensure that personal data that are inaccurate, considering the purposes for which they are processed, are promptly deleted or rectified. In this regard, the Dispute Chamber is of the opinion that the principle of accuracy has a narrower application than the quality of the information, which, in addition to accuracy and correctness, also includes the completeness of the information. In

other words, the Dispute Chamber rules that compliance with the accuracy principle cannot justify the unlimited collection of personal data, primarily aimed at creating as complete and accurate a profile of the data subject as possible. Therefore, the necessity of collecting and enriching the personal data included in the CMX and Spectron databases, for compliance with the accuracy principle in the context of the Data Delivery service, has not been demonstrated.

110. In a subordinate manner, the Dispute Chamber also notes that "excessive" accuracy of personal data — in light of the pursued purposes

99 See paragraphs 150 et seq. under Title II.4 in this decision.

100 Document 5 ("Legitimate Interest Assessment Consu-Matrix 27082020") submitted with the respondent's reply, p. 2; Document 6 ("Legitimate Interest Assessment Spectron 27082020") submitted with the respondent's reply, p. 2: "[...] reference is made to the legitimate interest of Bisnode's customers [...] to comply with the accurate [sic] principle of the GDPR that sets forth that data controllers must make efforts to maintain accurate personal data of their data subjects."

101 EDPB — Guidelines 4/2019 on Article 25 - Data Protection by Design and by Default (v2.0, October 20, 2020), p. 26.

102 In French "exactitude"; in English "accuracy"; in German "Richtigkeit".

103 Article 29 Data Protection Working Party – Guidelines on Automated Individual Decision-Making and Profiling for the Application of Regulation (EU) 2016/679 (WP251, February 6, 2018), p. 14. See also D. DIMITROVA, "The Rise of the Personal Data Quality Principle. Is it Legal and Does it Have an Impact on the Right to Rectification?", EJLT, 2021, p. 5-6.

104 See Article 7.2 of Directive (EU) 2016/680 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons in relation to the processing of personal data by competent authorities for the purposes of the prevention, investigation, detection, or prosecution of criminal offenses or the execution of criminal penalties, and on the free movement of such data; and Article 74 of Regulation 2018/1725 of October 23, 2018, on the protection of natural persons in relation to the processing of personal data by the institutions, bodies, and agencies of the Union and on the free movement of such data, which refers to the necessity of verifying the quality of personal data regarding their accuracy, completeness, and timeliness.

105 GBA — Recommendation 01/2020 of January 17, 2020, regarding the processing of personal data for direct marketing purposes, paragraph 111. See also A. J. BIEGA & M. FINCK, "Reviving Purpose Limitation and Data Minimisation in Data-Driven Systems", Technology and Regulation, 2021, p. 56.

Decision on the Merits 07/2024 - 42/114

as well as the context of the processing¹⁰⁶ — can, in certain situations, also play against the interests of the data subjects, particularly when data subjects are profiled or segmented in an improper and non-transparent manner based on their (indirectly collected) personal data¹⁰⁷.

The right to the protection of personal data as stated in Article 8 of the Charter of Fundamental Rights presupposes that data subjects, in addition to the right to the information included in Articles 13 and 14 of the GDPR, must also have a certain degree of control over "how accurately" their personal data is collected. The Dispute Chamber also refers to the preamble of the Convention for the Protection of Individuals with regard to the Processing of Personal Data (Convention 108)¹⁰⁸, which speaks of "personal autonomy based on a person's right to control his or her personal data and the processing of such data"¹⁰⁹, which translates, among other things, into the obligation of information and transparency towards the data subjects, as well as the rights granted to them by the GDPR¹¹⁰.

111. Regarding the B2C Data Quality service, the respondent also fails to demonstrate to what extent the lifestyle data, derived data¹¹¹, or statistical data at the neighborhood or municipal level were necessary to ensure that customers of BLACK TIGER BELGIUM would not have duplicate entries in their own databases, or to prevent returns.

112. Regarding the B2B Data Quality service, the respondent likewise does not prove that the processing of financial specifications, memberships, and vocational training in the Spectron database is necessary for achieving non-marketing-related interests — considering the prohibition on processing KBO data for marketing purposes¹¹² — such as preventing returns or duplicate entries.

Storage Limitation — 5.1.e) GDPR

113. In addition to the principle of minimal data processing, the data controller must also take into account the principle of storage limitation as set out in Article 5.1.e) of the GDPR in the context of the necessity test. In this regard, it states

106 CJEU, December 20, 2017, C-434/16, *Peter Nowak v. Data Protection Commissioner* (ECLI:EU:C:2017:994), para. 53.

107 See, among others, J. CHEN, “The Dangers of Accuracy: Exploring the Other Side of the Data Quality Principle”, EDPL, 1-2018, pp. 36–52; G. GONZALEZ FUSTER, “Inaccuracy as a privacy-enhancing tool”, *Ethics and Information Technology*, Springer, 2010, pp. 87-88.

108 Council of Europe – Convention for the Protection of Individuals with regard to Automatic Processing of Personal Data, January 28, 1981.

109 Freely translated as “personal autonomy based on a person’s right to control over his or her personal data and the processing of such data.”

110 J. CHEN, “The Dangers of Accuracy: Exploring the Other Side of the Data Quality Principle”, EDPL, 1/2018, p. 43.

111 “Other variables” in Items 5 and 6 laid down in the respondent's reply conclusions, p. 5.

112 See para. 74 in this decision.

Decision on the Merits 07/2024 - 43/114

The Dispute Chamber establishes that the respondent has not clarified at any moment, neither when the question was posed during the hearing on February 22, 2023, nor in the context of the reopening of the debates, why personal data is retained for 15 years from the last registration in the databases¹¹³ and how such a retention period—an essential element to consider in the context of the balancing of interests¹¹⁴—actually contributes to the objective of processing personal data as accurately and up-to-date as possible.

The Dispute Chamber also notes that the justification for this significant retention period of 15 years from the last entry in the database was already deemed “improvable” in the joint GEB for CMX, Permessio, and Spectron, and a period that “requires further justification” (“Add justification for 15 years owned data retention”)¹¹⁵. Furthermore, it is unclear to what extent, in addition to the most recent home addresses, a history of the previous domiciles of the individuals concerned was also maintained and, if applicable, what the necessity of this would be, keeping in mind the intended objectives.

114. In his response to the sanction form dated October 31, 2023, the respondent argues that the assertion that the unlawful processing occurred for at least 15 years would be incorrect. According to the respondent, the disputed activities would therefore have taken place at most for three years, specifically between the entry into force of the GDPR and the filing of the complaint.

In this regard, the Dispute Chamber reminds that the principle of data minimization already existed under the previous Directive 95/46¹¹⁶ and that in this case, there is irrefutable evidence of processing that continued after May 25, 2018. The respondent's argument that the disputed activities only occurred for the limited period between the entry into force of the GDPR and the date of the complaint is therefore unfounded.

115. Provisional Decision — The preceding elements lead the Dispute Chamber to conclude that the processing of personal data in the Spectron and CMX databases, as complained of by the complainants, for the Data Delivery and Data Quality services, did not meet or do not meet the necessity test. The Dispute Chamber finds the respondent's arguments regarding the necessity of the processing to be unconvincing.

113 Document 17 (“Bisnode Belgium Retention Policy”) submitted with the respondent's response conclusions.

114 See Title II.3.3.3 Balancing Test in this decision.

115 Document 1 (“DPIA Bisnode May 23, 2018 - Consu -Spectron-Permessio”) submitted to the Inspection Service, p. 6 and p. 15 in fine.

116 Article 6.1.e) of Directive 95/46/EC of the European Parliament and of the Council of October 24, 1995, on the protection of individuals with regard to the processing of personal data and on the free movement of such data (OJ L 281 of November 23, 1995).

Decision on the Merits 07/2024 - 44/114

Firstly, it is self-evident that the processing of personal data cannot be justified merely by invoking the necessity of such processing to continue economic activities¹¹⁷. Accepting such circular reasoning would, moreover, inevitably undermine the relevance and utility of the assessment adopted by the Court in its judgment *Rīgas*¹¹⁸, as the necessity test precisely aims to determine and demonstrate to what extent the collected data is concretely necessary to achieve the pursued interests. The Dispute Chamber is thus of the opinion that the analysis conducted by the respondent on this point does not meet the requirements of a proper necessity test.

Secondly, compliance with the accuracy principle under Article 5.1.d) GDPR, which is put forward by the respondent in relation to the processing of personal data originating from CMX and Spectron for the Data Delivery service, as already stated¹¹⁹, cannot in any case be used as a justification to supplement databases with missing personal data.

Thirdly, the Dispute Chamber is not convinced — and the documentation submitted by the respondent does not make it plausible — that there are no alternative, less intrusive measures to achieve the intended interest, namely the compliance with the accuracy principle by the customers of the respondent¹²⁰. The Dispute Chamber finds it insufficiently proven that the customers of the respondent could not take other measures to obtain the missing personal data, e.g., by collecting this data directly from the data subjects — who could thus have had a say regarding the ‘degree of accuracy’ of their personal data. For the aforementioned reasons, the Dispute Chamber concludes that the respondent could not invoke Article 6.1.f) GDPR for the data processing in the context of the B2C and B2B Data Delivery services.

116. Regarding the B2C Data Quality service, the Dispute Chamber also finds it unlikely that all consolidated personal data in both databases would be strictly necessary to assess the quality and reliability of the personal data already in the possession of the customers of BLACK TIGER BELGIUM, in light of the accuracy principle under Article 5.1.d) GDPR. The customers of the respondent — who, unlike the latter, will indeed come into contact with the data subjects and moreover already possess (part of) their personal data — can indeed

117 Document 5 (“Legitimate Interest Assessment Consu-Matrix 27082020”) submitted with the respondent’s reply conclusions, p. 4; Document 6 (“Legitimate Interest Assessment Spectron 27082020”) submitted with the respondent’s reply conclusions, p. 4.

118 CJEU, May 4, 2017, C-13/16, *Valsts policijas Rīgas reģiona pārvaldes Kārtības policijas pārvalde v. Rīgas pašvaldības SIA “Rīgas satiksme”* (ECLI:EU:C:2017:336), para. 30.

119 See paras. 109 and 110 in this decision.

120 See para. 109 in this decision.

Decision on the Merits 07/2024 - 45/114

directly inquire with the data subjects to what extent their personal data is still current, or whether it needs to be modified or supplemented. The Dispute Chamber also considers the retention period of 15 years to be disproportionate in relation to the intended interests.

117. Regarding the B2B Data Quality service, the Dispute Chamber rules that the principle of necessity can only be adhered to on the condition that the retention period of 15 years is shortened, and that the service is limited to assigning a reliability score, and that the Data Quality service is not used to indirectly transfer data to third parties in order to enhance the quality of the data.

Consequently, the current B2B Data Quality service does not meet the necessity test.

II.3.3.3.

Balancing Test

118. In order to rely on Article 6.1.f) of the GDPR, the data controller must finally weigh the interests and demonstrate that its own interests—or those of third parties—outweigh the interests or fundamental rights and freedoms of the data subjects.

119. The Dispute Chamber reminds that the balancing test does not aim to prevent any effect on the interests and rights of the data subjects, but to prevent disproportionate consequences as well as to assess the relative weight of these interests. The fundamental rights and freedoms of the data subjects referred to in Article 6.1.f) GDPR include not only the right to data protection and privacy but also other

fundamental rights, such as the right to freedom and security, freedom of expression and information, freedom of thought, conscience and religion, freedom of assembly and association, the prohibition of discrimination, property rights, or the right to physical and mental integrity, which may be directly or indirectly affected by the processing.

The wording of Article 6.1.f) GDPR also assumes that besides the fundamental rights of data subjects, other interests are taken into account, such as social, financial, or personal interests. In short, a data controller is expected to consider all relevant interests that may be affected by the data processing, including—but not limited to—

121 Group on Data Protection Article 29 – Opinion 06/2014 on the concept of "legitimate interest of the data controller" in Article 7 of Directive 95/46/EC (WP217, April 9, 2014), p. 49.

122 Group on Data Protection Article 29 – Opinion 06/2014 on the concept of "legitimate interest of the data controller" in Article 7 of Directive 95/46/EC (WP217, April 9, 2014), pp. 35-37.

Decision on the Merits 07/2024 - 46/114

legal interests, financial interests, social interests, or personal interests of the data subjects.

120. Once these interests have been identified, it must then be assessed what consequences the intended data processing could have for these interests. As the EDPB states:

“32. [...] The reference to abstract situations or the comparison of similar cases is not sufficient. The data controller must assess the risks of infringement on the rights of the data subjects; the determining factor here is the extent to which the infringement on the rights and freedoms of individuals is significant.

33. The significance can be determined, among other things, by the type of information collected (content of the information), its scope (information density, spatial and geographical reach), the number of data subjects, either in absolute numbers or as a percentage of the affected population, the specific situation, the actual interests of the group of data subjects, and the available alternative means, as well as based on the nature and scope of the data assessment [by the data controller].”

Nature of the Processed Personal Data

121. According to the EDPB, the data controller must take into account the categories of personal data that data subjects generally consider to be more private or more public in nature. In the present case, it is established that the respondent processes data related to the family composition of the data subjects, as well as their private email address or private mobile phone number, which are data that are rarely made publicly available by the data subjects. The exact date of birth and social class also belong, according to the Dispute Chamber, to categories of information that are generally considered more private by the data subjects than publicly available data such as their professional status.

122. Furthermore, the Dispute Chamber believes that the position taken by the respondent regarding the non-processing of special categories of personal data requires some nuance in light of the case law of the Court of Justice. In its judgment C-184/20, the Court addressed certain data that, although not intrinsically "sensitive" in the sense of Article 9 GDPR, may reveal potentially sensitive information, such as the sexual orientation of data subjects. The Court ruled that “the concepts of ‘special categories of personal data’ and ‘sensitive data’ should be interpreted broadly.”

Decision on the Merits 07/2024 - 47/114

are explained,” resulting in the processing of “personal data that may indirectly reveal sensitive information about a natural person” also constituting “processing of special categories of personal data within the meaning of those provisions”¹²⁶.

123. In the absence of specific elements available to the Dispute Chamber regarding how individuals belonging to the same household are concretely characterized and linked to each other in the databases of the respondent, and given the absence of a specific finding by the Inspection Service in this regard, the Dispute Chamber nonetheless decides not to take the processing of special categories of personal data into account in the balancing test and not to hold a violation of Article 9 GDPR by the respondent in the present case.

124. Finally, and notwithstanding the respondent's own acknowledgment that he has processed the personal data of minors belonging to the same household as the complainants for segmentation purposes¹²⁷, the Dispute Chamber first notes that the data in question is limited to the gender and

date of birth of the child. Furthermore, the Dispute Chamber does not have indications that the respondent has effectively transferred the personal data of these minors to his clients.

Context of Data Processing

125. In addition to the nature of the personal data, the data controller must also consider the volume of processed personal data, whether or not these personal data are combined with other data files, the degree of accessibility and/or public availability of the data after processing, the status of the data controller (e.g., his market position, his relationship with the data subjects), and the status of the data subjects (e.g., if they are vulnerable individuals)¹²⁸.

126. In his defenses, the respondent states that as a data broker, he maintains virtually no direct relationship with the data subjects, but makes his expertise in big data available to his clients¹²⁹. The Dispute Chamber believes that this specific context, in which the respondent does not come into direct contact with the data subjects, inevitably contributes to the processing activities he performs being characterized by a more limited transparency regarding the data subjects, notwithstanding the various initiatives and measures taken in this regard by the

126 CJEU, August 1, 2022, C-184/20, OT v. Vyriausioji tarnybinės etikos komisija (ECLI:EU:C:2022:601), paras. 125-128.

127 See para. 79 in this decision.

128 Article 29 Data Protection Working Party – Opinion 06/2014 on the concept of "legitimate interest of the data controller" in Article 7 of Directive 95/46/EC (WP217, April 9, 2014), pp. 47-49.

129 Respondent's reply conclusions dated March 7, 2022, p. 15.

Decision on the Merits 07/2024 - 48/114

Respondent. From the above, it follows that the parties involved are de facto compelled to proactively consult the privacy statement on the respondent's website — or to carefully keep track of which companies they have provided their personal data to in the past 15 years, indicating that they have transferred this personal data to BISNODE BELGIUM — in order to grasp the extent of the personal data that the respondent processes about them. Furthermore, the large-scale processing activities of the respondent, in its capacity as a data broker, inherently involve the combination of personal data with other data files. This is, moreover, not contradicted in any way by the respondent.

127. In light of these elements, the Dispute Chamber determines that the context of the processing is, in essence, more detrimental to the parties involved, whose personal data is processed in a non-transparent manner, compared to the benefit that the respondent and its clients derive from the processing. In other words, the interests of the parties involved weigh more heavily in the balance of interests.

Impact of the Processing for the Parties Involved

128. Additionally, the data controller must pay special attention to the consequences — both positive and negative — for the parties involved, including possible future decisions or actions by third parties; situations in which the processing could lead to the exclusion or discrimination of individuals or defamation; or, more broadly, situations where there is a risk of damaging the reputation, negotiating power, or autonomy of the parties involved. It is important again that this assessment pertains to the various ways in which the parties involved may experience a positive or negative impact due to the processing of their personal data.

129. During the hearing dated February 22, 2023, the complainant refers to the assessment of his creditworthiness by a company, based on data provided by the respondent, without the complainant being informed of this in advance. In the response to a request for access directed to that company, which the complainant includes in his rebuttal conclusions, it is clearly shown that the information used by the company to determine his creditworthiness originates from the respondent. Certain authors have already warned about the risks related to invisible discrimination based on profiling data.

130. The respondent does not dispute this qualification of the extent of the data processing in its rebuttal conclusions.

131. Article 29 Data Protection Working Party – Opinion 06/2014 on the concept of "legitimate interest of the data controller" in Article 7 of Directive 95/46/EC (WP217, April 9, 2014), pp. 45-46.

132. See paragraph 83 in this decision.

133. "Creditworthiness (based on the street where you live – source = bisnode" in the annex to the Complainant's Rebuttal Conclusions, submitted to the Dispute Chamber on February 15, 2022.
Decision on the Merits 07/2024 - 49/114

as the income of the data subjects, but also for the general loss of control that the data subjects experience regarding their personal data¹³⁴. It is established by the Dispute Chamber that the opaque processing of personal data of the data subjects by the respondent can have significant consequences for the data subjects who would like to obtain certain services from the respondent's clients.

130. In the so-called "Legitimate Interest Assessments" (LIAs) for both databases, the respondent describes the consequences of the processing for the data subjects as follows. By offering the clients of the respondent the possibility to create direct marketing profiles that would otherwise be difficult or impossible to generate, the privacy of the data subjects is first and foremost compromised, which can cause annoyance, irritation, or stress among them ("perceived or real lack of transparency and illegitimacy of processing"¹³⁵). Furthermore, the respondent acknowledges that the data subjects have only limited or no control over the processing of their personal data, as well as that circumventing the sources that transmit their personal data to the respondent may require significant adjustments to their lifestyle. In this same vein, the respondent accepts that the data subjects are effectively denied the possibility to refuse the processing of their personal data by the respondent; instead, they must make the effort to exercise their right to object to the respondent (opt-out)¹³⁶.

131. Furthermore, the Dispute Chamber finds that the adverse consequences identified by the respondent for the data subjects do not take into account the aforementioned risks of discrimination by the clients of the respondent based on the provided personal data. The Dispute Chamber specifically refers to the contractual provisions with the clients of the respondent, which only prohibit them from using the provided personal data for the benefit of a third party¹³⁷. For the rest, the clients of the respondent are therefore permitted to use the personal data for their own, direct marketing-related purposes, which are, by the way, not further defined in the agreement.

134 H. RUSCHMEIER, "Data Brokers and European Digital Legislation", EDPL, 2023-1, p. 30 et seq.; S. MISHRA, "The dark industry of data brokers: need for regulation?", International Journal of Law and Information Technology, Volume 29, Issue 4, 2021, p. 395–410; G. GONZÁLEZ FUSTER, "Inaccuracy as a privacy-enhancing tool", Ethics Inf Technol, 2010, p. 91 et seq.

135 In Dutch, "waargenomen of werkelijk gebrek aan transparantie en onwettigheid van de verwerking" (free translation), in Document 5 ("Legitimate Interest Assessment Consu-Matrix 27082020") submitted with the respondent's reply conclusions; Document 6 ("Legitimate Interest Assessment Spectron 27082020") submitted with the respondent's reply conclusions.

136 Document 5 ("Legitimate Interest Assessment Consu-Matrix 27082020") submitted with the respondent's reply conclusions, point 3 under title "2.3 The Balancing Test"; Document 6 ("Legitimate Interest Assessment Spectron 27082020") submitted with the respondent's reply conclusions, point 3 under title "2.3 The Balancing Test".

137 Document 12 ("Piece 12 - Template contra-client Multi - see articles 3.2 and 4.1") as provided by the respondent to the Inspection Service in the context of the investigation: "3.1. The license for use is granted by Bisnode Belgium for use specific to the Client, for an action of the type 'direct marketing' and thus to the exclusion of all services, direct or indirect, for third parties (such as, for example, any form of sale, marketing, transfer, direct or indirect, for consideration or free of charge, of licenses to third parties or any other use by third parties)".

Decision on the Merits 07/2024 - 50/114

132. In this regard, the Dispute Chamber finds it remarkable that the respondent contractually prohibits its clients from (directly or indirectly) referring to the selection criteria that were applied in their communications to the parties involved, and that the respondent furthermore oversees the content of the communications from its clients, which must be approved in advance.¹³⁸ Specifically, this means that the respondent has explicitly and therefore consciously hindered the transparency of its clients towards the parties involved. In the context of the reopening of the debates, the respondent briefly confirms that "with respect to professional clients [...] a license agreement was concluded for the use of B2C data, which indeed imposed various obligations on the clients in order to safeguard the

commercial interests of the respondent. Thus, the template agreement stipulated, among other things, that the selection criteria should not be communicated to the consumers.”

The Dispute Chamber rules that this restriction on the provision of information is contrary to the fundamental rights of the parties involved, who, if they wish to obtain more information about the precise circumstances under which their personal data was processed, are compelled to exercise their right of access against the sender of the direct marketing messages or against the respondent.

133. In summary, the Dispute Chamber is of the opinion that the consequences of the data processing for the parties involved were insufficiently taken into account by the respondent in the context of the balancing test, as the analysis by the respondent was limited to the receipt of direct marketing advertisements by post as well as the exercise of their rights (including their right to object) and thus did not take into account the known risks regarding hidden or indirect discrimination of the complainants based on their profiling data, including their creditworthiness. The Dispute Chamber must conclude that the interests of the respondent and its clients do not outweigh the interests of the parties involved in the balancing of interests.

Reasonable Expectations of the Parties Involved

134. To determine whether the third condition (balancing test) has been met, it is necessary to also consider the reasonable expectations of the parties involved, in accordance with recital 47 of the GDPR. The data controller must specifically assess to what extent the

138 Document 12 (“Piece 12 - Template contra-client Multi - see articles 3.2 and 4.1”) as submitted by the respondent to the Inspection Service in the context of the investigation: “3.3. The Client is prohibited from referring to the selection criteria used in its commercial communication to consumers, directly or indirectly. Before each campaign, Bisnode Belgium must receive, promptly, a copy, in each language, of the commercial message that will be sent to the consumer (both on the envelope, the letter, the attachments, and the telephone script). In the context of the determined campaign, the message submitted to and approved by Bisnode Belgium may be disseminated [sic].”

Decision on the Merits 07/2024 - 51/114

Data subjects may reasonably expect that data processing for the intended purpose can take place at the time and within the framework of the collection of personal data.

135. Data brokers collect and aggregate numerous data points in order to compile extensive and detailed numerical profiles of individual data subjects. Subsequently, they offer these profile data to clients (Data Delivery) or, as is the case for the defendant since the termination of the Data Delivery services, to assess and confirm the quality of data already in the possession of these clients (Data Quality). In the majority of cases, this occurs without the prior consent of the data subjects — as in the present case — or without them being fully informed of the extent of these processes.

136. The Inspection Service, referring to previous case law of the Court of Justice¹³⁹ and to guidelines adopted by the EDPB¹⁴⁰, primarily establishes that the defendant processes various personal data, obtained partly from the data subjects themselves and partly from other sources, on a large scale and outside the reasonable expectations of the data subjects. In its defenses, the defendant disputes that the reasonable expectations of users must always be taken into account in weighing the various interests at stake. Referring to legal doctrine, the defendant instead posits that “the reasonable expectations criterion only pertains to further processing in the sense of Article 6(4) GDPR”¹⁴¹ and is therefore not necessarily relevant regarding the balancing of interests under Article 6.1(f) GDPR.

137. The Dispute Chamber rules that the argument raised by the defendant, particularly that the reasonable expectations of data subjects cannot be taken into account in assessing the legitimate interest of BLACK TIGER BELGIUM, is not convincing. The Dispute Chamber first refers to the response from the DPO of BISNODE BELGIUM dated April 27, 2021, in which the defendant explicitly states that it takes into account the reasonable expectations of the data subjects (free translation and own emphasis)¹⁴²:

¹³⁹ CJEU, December 11, 2019, C-708/18, TK v. Asociația de Proprietari bloc M5A-ScaraA (ECLI:EU:C:2019:1064), paras. 56-58.

¹⁴⁰ Article 29 Data Protection Working Party – Opinion 06/2014 on the concept of “legitimate interest

of the data controller" in Article 7 of Directive 95/46/EC (WP217, April 9, 2014); EDPB – Guidelines 3/2019 on the processing of personal data through video devices (v2.0, January 29, 2020), p. 10 et seq.

141 D. DE BOT, The application of the General Data Protection Regulation in the Belgian context, Kluwer, 2020, p. 448-449, no. 1094 et seq.

142 "Bisnode Belgium also ensures that it takes into account the reasonable expectations of the data subjects by requiring its clients to systematically provide it with the draft text of the mailings they intend to send. This is so that we can ensure that they comply with our internal ethical rules, which are entirely focused on respecting the reasonable expectations of the data subjects. Always with the aim of taking into account the reasonable expectations of the data subjects, Bisnode Belgium also ensures that it is mentioned in the privacy policy of its data source partners."

Decision on the Merits 07/2024 - 52/114

"Bisnode Belgium also ensures that the reasonable expectations of the individuals involved are taken into account by asking its clients to systematically provide us with the draft text of the mailings they wish to send. This way, we can ensure that these are in accordance with our internal codes of conduct, all aimed at respecting the reasonable expectations of the data subjects. To take into account the reasonable expectations of the data subjects, Bisnode Belgium also ensures that this is mentioned in the privacy policy of its data source partners."

138. Furthermore, the Dispute Chamber reminds that Article 5.1.a) of the GDPR — which states that personal data must be processed in a manner that is lawful, fair, and transparent with respect to the data subject — must be read in conjunction with Recital 39 of the GDPR, which states that it should be transparent to data subjects "that personal data concerning them is being collected, used, consulted, or otherwise processed and to what extent the personal data is being processed or will be processed." This core principle of the GDPR thus implies that any processing of personal data, regardless of the legal basis put forward by the data controller, must comply with the principle of transparency.

139. That said, the Dispute Chamber considers it important to emphasize the distinction between the information that data subjects receive regarding the processing and the reasonable expectations that data subjects may or may not have regarding a specific data processing operation. As already stated, the data subjects do not have a direct relationship with the respondent, resulting in the fact that they cannot reasonably expect the indirect collection of their personal data by BISNODE BELGIUM and subsequently BLACK TIGER BELGIUM. From the policy documents and model agreements that the respondent has submitted to the Inspection Service, it cannot be inferred that the data sources must proactively and individually inform the data subjects about the actual transfer of the personal data they hold to the respondent. In other words, the respondent cannot guarantee in any way that data subjects, who would no longer consult the privacy policy of the data source after such an amendment to the privacy policy of the data sources to name BISNODE BELGIUM among the potential data recipients, are indeed informed of the collection and subsequent processing of their personal data by the respondent. Such a gap in the respondent's transparency policy therefore implies that a significant number of data subjects, whose personal data was processed in the databases of the respondent for the Data Delivery service, are only informed after receiving

143 See paragraph 126 in this decision.

144 Being the partners of the respondent, who provide him with personal data.

Decision on the Merits 07/2024 - 53/114

the first direct marketing communications by a customer of the respondent could be informed of the processing of their personal data by the respondent.

Due to the nature of the Data Quality services, where according to the respondent no personal data is transferred to the customers of the respondent, the data subjects may never be informed of the processing and commercialization of their personal data by the respondent¹⁴⁵.

140. The Dispute Chamber therefore concludes that the services offered by the respondent to its customers are far from falling within the reasonable expectations of the data subjects, especially since these reasonable expectations must specifically relate to the processing by the respondent. The argument that data subjects can reasonably expect that their personal data will eventually be collected and exchanged by a third party, because this was announced in a national media campaign in

2019,146 is far from convincing in this regard.

141. In a subordinate manner, the Dispute Chamber again¹⁴⁷ notes that, apart from the respondent's position that "B2B data subjects" can reasonably expect that their personal data will be processed by third parties in a professional context¹⁴⁸, there is no substantial distinction between the two assessments regarding the Spectron database (B2B) and the CMX database (B2C). This alone, according to the Dispute Chamber, sufficiently demonstrates a lack of proper consideration of all relevant circumstances of the data processing, as well as the consequences thereof for B2C data subjects, in the context of the conducted balancing assessments. The Dispute Chamber therefore rules that the analysis conducted by the respondent does not meet the requirements of a proper balancing test.

142. If, at the end of the balancing assessment, it is unclear whose interest prevails, it is of course possible for the data controller to take additional safeguards to mitigate the undesirable consequences of the processing for the data subjects¹⁴⁹. Such safeguards necessarily include proactive information to the individual data subjects about how

145 I.e., except for the limited information that may have been communicated when the personal data was passed on to the respondent by the sources, of which the Dispute Chamber has already ruled that it does not provide sufficient safeguards in light of the transparency obligation.

146 Document 14 ("Copy of excerpts from the press campaign of July 2019") as submitted by the respondent to the Inspection Service in the context of the investigation.

147 See paragraph 102 in this decision.

148 Document 6 ("Legitimate Interest Assessment Spectron 27082020") included in the respondent's reply conclusions: "It is likely or, at least, reasonable to assume that in a B2B context, data subjects are aware that personal data is being collected and commercialized (= reasonable expectations of the data subject). Indeed, it is even possible that the data subjects may even use the services of Bisnode themselves. At any rate, data brokerage is a common activity in a professional setting and the various official databases ensure a large, public propagation of professional data, including personal data. Therefore, impact should be given a lesser weight in relation to the Spectron database" (own emphasis).

149 Article 29 Data Protection Working Party – Opinion 06/2014 on the concept of "legitimate interest of the data controller" in Article 7 of Directive 95/46/EC (WP217, April 9, 2014), p. 21.

Decision on the merits 07/2024 - 54/114

their personal data is processed, as well as a simple and accessible mechanism that provides data subjects with the opportunity to object (opt-out) to the processing of their personal data by the defendant, and possibly also to exercise their right to erasure.

143. In conclusion, the Dispute Chamber rules that it does not fall within its jurisdiction, since the Dispute Chamber is a (non-autonomous) dispute resolution body of an administrative authority¹⁵⁰, to refer preliminary questions to the CJEU based on Article 267 TFEU¹⁵¹. Indeed, in order to ensure the uniform application of Union law, this provision provides for a mechanism of judicial cooperation between the CJEU and national judicial authorities, whereby a so-called preliminary question can be raised by a judicial authority that issues a ruling in the context of a procedure leading to a judicial decision¹⁵². In assessing whether a referring body is a "judicial authority" within the meaning of Article 267 TFEU, the CJEU takes into account the legal basis of the body that has submitted a request, its permanent nature and mandatory jurisdiction, the fact that the body issues a ruling after an adversarial procedure, the application of legal rules by the body, and the independence of that body¹⁵³. However, the Dispute Chamber holds that the GDPR makes a clear distinction between supervisory authorities and judicial authorities¹⁵⁴. While Article 267 TFEU aims to obtain a uniform interpretation in the judicial phase through the preliminary procedure for the CJEU, the GDPR provides for a coherence mechanism, with the Dispute Chamber particularly pointing to the procedure provided for in Article 64.2¹⁵⁵ thereof, with a similar aim but for the supervisory authorities under the GDPR. In any case, the Dispute Chamber considers itself

150 Court of Appeal Brussels (Market Court section), X v. GBA, Judgment 2023/AR/184 of March 8, 2023, p. 12; Court of Appeal Brussels (Market Court section), X v. GBA, Judgment 2022/AR/292 of

September 7, 2022, p. 36; Court of Appeal Brussels (Market Court section), X v. GBA, Judgment 2021/AR/320 of July 7, 2021, p. 24; Court of Appeal Brussels (Market Court section), X v. GBA, Judgment 2020/AR/329 of September 2, 2020, p. 13.

151 Article 267 Treaty on the Functioning of the European Union — “The Court of Justice of the European Union has jurisdiction, by way of a preliminary ruling, to give a ruling (a) on the interpretation of the Treaties, (b) on the validity and interpretation of acts of the institutions, bodies, or agencies of the Union.

If a question is raised in this regard before a judicial authority of one of the Member States, that authority may, if it considers a decision on this point necessary to give judgment, request the Court to rule on this question.

If a question is raised in this regard in a case pending before a national judicial authority whose decisions are not subject to appeal under national law, that authority is obliged to refer to the Court.” (own emphasis).

152 K. LENAERTS and P. VAN NUFFEL, *European Law*, Antwerp-Cambridge, Intersentia, 2011, paras 836-837.

153 CJEU, May 31, 2005, C-53/03, Syfait (ECLI:EU:C:2005:333), para. 29; CJEU, June 30, 1966, C-61/65, Vaassen-Göbbels (EU:C:1966:39); CJEU, December 10, 2009, C-205/08, Umweltanwalt von Kärnten (EU:C:2009:767), para. 35. See also K. LENAERTS, I. MASELIS & K. GUTMAN, *EU Procedural Law*, Oxford University Press, 2015, p. 53.

154 See, inter alia, Articles 78.3 GDPR (right to an effective remedy against a supervisory authority) and 79.2 GDPR (right to an effective remedy against a data controller or processor).

155 Article 64.2 GDPR — “2. A supervisory authority, the chair of the Committee, or the Commission may request that matters of general interest or with legal consequences in more than one Member State be examined by the Committee in order to obtain advice, particularly when a competent supervisory authority fails to fulfill its obligations of mutual assistance in accordance with Article 61, or to engage in joint operations in accordance with Article 62.”

Decision on the Merits 07/2024 - 55/114

is in no way obliged to submit a preliminary question to the CJEU¹⁵⁶, as the decisions of the Dispute Chamber of the GBA are subject to appeal to the Market Court, and since the present case does not concern the validity of an act of an institution, body, or agency of the European Union¹⁵⁷.

II.3.3.4. Decision

144. In light of the preceding elements, the Dispute Chamber concludes that there has been a violation of Article 5.1.a), 5.2, and Article 6.1 GDPR, as the respondent has not adequately demonstrated that his interests as well as those of his clients are legitimate, nor that the processing is necessary for the achievement of the pursued interests, and that these interests would outweigh the interests and fundamental rights of the data subjects. In particular, the Dispute Chamber rules:

- that the processing of business data, insofar as it concerns personal data, in the Spectron database within the framework of the “B2B” Data Delivery service, whereby the respondent collects and enriches personal data of natural persons from the KBO with the aim of commercially supplying the personal data to his clients for direct marketing-related purposes, is expressly prohibited by law and therefore cannot rely on the basis provided in Article 6.1.f) GDPR;
- that the processing of consumer data collected in the CMX database within the framework of the “B2C” Data Delivery service, whereby the respondent collected and enriched personal data of consumers with the aim of commercially supplying the personal data to his clients, could not rely on the basis provided in Article 6.1.f) GDPR due to the lack of necessity and the disproportionate consequences for the data subjects. The commercial benefits that the respondent and his clients derived from the processing do not outweigh the fundamental right of the data subjects to respect for their privacy, considering the nature of the personal data, the duration of the processing, and the limited information provided to the data subjects. Finally, the respondent fails to sufficiently demonstrate that such processing could fall within the reasonable expectations of the data subjects.
- that the processing of consumer data collected in the CMX database within the framework of the “B2C” Data Quality service, whereby the respondent collected, enriched, and consolidated personal data of consumers to assign a reliability score to personal data of consumers already in the

possession of the respondent's clients for a fee, so that they could improve the quality of their data by formatting, standardizing, correcting, and/or internally matching, could not rely on the basis provided in Article 6.1.f) GDPR. It has not been demonstrated that the processing was necessary for the compliance by the respondent's clients with the principle of accuracy in accordance with Article 5.1.d) GDPR. The Dispute Chamber finds it insufficiently proven that the clients of BLACK TIGER BELGIUM could solely achieve their interest in complying with the aforementioned principle through the Data Quality service or, in short, that the disputed processing was indeed necessary to ensure the completeness and accuracy of the personal data already in the possession of the respondent's clients. Finally, the respondent fails to sufficiently demonstrate that such processing could fall within the reasonable expectations of the data subjects.

- that the processing of business data in the Spectron database within the framework of the "B2B" Data Quality service, whereby the respondent collects, enriches, and consolidates personal data of natural persons associated with businesses to assign a reliability score to personal data already in the possession of the respondent's clients for a fee, so that they can improve the quality of their data by formatting, standardizing, correcting, and/or internally matching, cannot rely on the basis provided in Article 6.1.f) GDPR. Personal data from the KBO may not be used or disseminated for direct marketing-related purposes. Furthermore, the Dispute Chamber finds it insufficiently demonstrated that the processing of personal data in Spectron is necessary to ensure the completeness and accuracy of the personal data already in the possession of the respondent's clients, as well as to achieve non-direct marketing-related interests. In conclusion, the Dispute Chamber rules that the data subjects cannot reasonably expect, also due to the lack of proactive information provision, the processing of all categories of personal data included in the Spectron database.

Decision on the Merits 07/2024 - 57/114

II.4. Transparency Regarding the Data Subjects (Article 12.1, Article 13.1 and 13.2, Article 14.1 and 14.2, Article 5.2, Article 24.1, and Article 25.1 GDPR)

II.4.1. Position of the Inspection Service

145. The Inspection Service analyzed two websites of the respondent as part of its investigation and found that the link to the privacy statement on the first website¹⁵⁸ redirects visitors to the second website¹⁵⁹, where they can consult the privacy statement. However, the Inspection Service notes that the information provided by the respondent on the second website is neither transparent nor easily accessible for the data subjects, as the information about the processing is spread across different web pages and also contains incorrect information.

146. Furthermore, the Inspection Service finds that the information provided by the respondent is incomplete, as not all information that must be disclosed according to Articles 13 and 14 of the GDPR is effectively communicated. In particular, there is no reference to the right of data subjects to withdraw consent, nor to the right of data subjects to lodge a complaint with the GBA. Moreover, the contact details of the respondent's DPO are not mentioned on the website, although the DPO has a personal email address.

II.4.2. Position of the Parties

147. The complainant states that BLACK TIGER BELGIUM processes his personal data in a non-transparent manner, as he was not informed that the respondent had collected and processed his personal data for its own purposes. The complainant asserts that he only became aware of the extent of this processing in the context of exercising his right of access to his personal data. Regarding how the respondent has fulfilled its obligation to provide information to data subjects, the complainant specifically points out that he has not been contacted by the respondent or its processors, nor by joint controllers who may have received personal data from the complainants, at any time during the past 17 years or after the entry into force of the GDPR, with a clear explanation of which personal data they are processing. Thus, according to the complainant, the respondent, as well as any other recipient of the disputed personal data, has systematically failed to inform data subjects in accordance with Articles 13 and 14 GDPR. In this regard, the complainant states that the respondent cannot possibly invoke the exception provided for.

¹⁵⁸ <https://www.permesso.be/nl/privacybeleid>.

159 <https://bisnodeandyou.be>.

Decision on the Merits 07/2024 - 58/114

in Article 14.5.b) GDPR, as he possesses the necessary data to contact the data subjects in order to fulfill his information obligation. During the hearing on February 22, 2023, the complainant also emphasized that the respondent uses various privacy statements, making it difficult for data subjects to ascertain which rules apply to the processing of their personal data.

148. The respondent disputes the assertion that it would not be easy for data subjects to find concrete information about the data processing, and states that he consciously chose a layered approach to his privacy statement, depending on the status of the data subject (consumer/professional), in order to avoid working with overly extensive and therefore incomprehensible information. According to the respondent, this approach allows data subjects to navigate directly to the part of the statement they wish to read. Regarding the argument from the Inspection Service that "a data subject cannot reasonably expect that their data will be commercialized merely by the existence of a cooperation agreement with certain public or commercial sources," the respondent asserts that he has taken the necessary measures to ensure that data subjects are informed about the processing activities carried out. The respondent also refers to the privacy statement of the KBO, "which explicitly states that personal data is processed to enable the reuse of the data, whether or not for commercial purposes."

149. During the hearing on February 22, 2023, the Dispute Chamber asks what the responsibility of the respondent is if the sources or partners fail to inform the data subjects about the processing of their personal data by BLACK TIGER BELGIUM. According to the respondent, this primarily concerns a contractual matter between the respondent and his sources or clients, although the respondent always checks whether the standard wording is effectively included in the privacy statement of the sources or clients of the respondent. Also, prior to sending commercial messages by post through the clients of the respondent, the respondent has a right to review the draft communication as well as the right to request, if necessary, the adjustment of the communication. Furthermore, the respondent expresses concerns regarding the appropriate level of control that the Dispute Chamber would expect from the respondent concerning his partners and clients, and more specifically whether the respondent should regularly check with each partner and client whether the privacy statement contains the standard wording. Finally, the respondent believes he is aware of certain shortcomings in his privacy statement, although these shortcomings have since been remedied in the new privacy statement. The fact that the respondent does not mention the right for data subjects to withdraw their consent would also be irrelevant, as the respondent only relies on his legitimate interests for the disputed data processing.

II.4.3. Opinion of the Dispute Chamber

150. Regarding the legality of the disputed processing, it is clear that the reasonable expectations of the data subjects are indeed relevant — contrary to what the respondent argues in his defense — to assess the extent to which there may be lawful data processing based on the legitimate interests of the respondent or his clients. These reasonable expectations must also be taken into account when determining the timing of when information about the processing is communicated to the data subjects, considering the general principle that data subjects should not be surprised by the purpose of the processing of their personal data. The Dispute Chamber has repeatedly emphasized in previous decisions that transparency is crucial to give data subjects control over their personal data and to ensure effective protection of personal data. The transparency obligation in the GDPR requires that all information or communication regarding the data processing of data subjects must be easily accessible and understandable, but also must be provided to the data subjects in a timely manner.

151. In the present case, it is first established that the personal data processed by the respondent was not collected directly from the complainants. Consequently, only Article 14 GDPR is applicable, the first two paragraphs of which outline the information that must be provided to the data subjects:

- a. the identity and contact details of BLACK TIGER BELGIUM and, where applicable, of its representative;
- b. where applicable, the contact details of the DPO;
- c. the purposes of the processing for which the personal data are intended;
- d. the legal basis for the processing of personal data;

Decision on the merits 07/2024 - 60/114

e. the categories of personal data involved;

f.

where applicable, the recipients or categories of recipients of the personal data;

g.

where applicable, that BLACK TIGER BELGIUM intends to transfer the personal data to a recipient in a third country or to an international organization; whether or not there is an adequacy decision by the Commission or whether BLACK TIGER BELGIUM has provided appropriate or suitable safeguards in the case of transfers referred to in Article 46, Article 47, or Article 49.1.2° GDPR, as well as how the data subjects can obtain a copy of these safeguards or where these safeguards can be consulted;

h. the period for which the personal data will be stored, or, if that is not possible, the criteria used to determine that period;

i.

the legitimate interests of BLACK TIGER BELGIUM or of a third party, if the processing is based on Article 6.1.f) GDPR;

j.

that the data subjects have the right to request BLACK TIGER BELGIUM for access to and rectification or erasure of personal data or to restrict the processing concerning them, as well as the right to object to processing and the right to data portability;

k. when the processing is based on Article 6.1.a) GDPR or Article 9.2.a) GDPR, the fact that the data subjects have the right to withdraw their consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;

l.

that the data subjects have the right to lodge a complaint with a supervisory authority;

m. the source from which the personal data originate, and where applicable, whether they come from publicly available sources;

n. the existence of automated decision-making, including profiling referred to in Article 22.1 and 22.4 GDPR, and — at least in those cases — useful information about the underlying logic, as well as the significance and the expected consequences of that processing for the data subjects.

152. Pursuant to Article 14.3 GDPR, which specifically relates to the modalities of information provision and thus constitutes an inherent supplement to the core obligations arising from the two preceding paragraphs of Article 14 GDPR, the aforementioned information must be communicated to the data subjects within certain timeframes. Generally, the rule is that the data controller must inform the data subjects within a reasonable time but no later than one month after obtaining their personal data, depending on the specific circumstances (14.3.a) GDPR). According to the guidelines on transparency under the GDPR, this timeframe may, however, be shortened to the extent that the collected personal data are intended for contacting the data subjects, in which case the information must be provided at the time of the first contact with the data subject (14.3.b) GDPR). Finally, the one-month period may also be shortened if the personal data are communicated to a recipient within the meaning of Article 4.9) GDPR. In such circumstances, the data subjects must be informed no later than at the time their personal data are provided (14.3.c) GDPR).

153. In its defenses, BLACK TIGER BELGIUM asserts that the data subjects were informed based on the mandatory mentions of the name of the defendant in the advertising messages directed at the data subjects. This concretely means that the data subjects were informed of the existence of the defendant, as well as the fact that the defendant may have collected and processed their personal data, only for the first time through the — often unsolicited — advertising messages. The Disputes Chamber assumes that such an approach aims to comply with the timing provided under 14.3.b) GDPR, which is to inform the data subjects at the moment of effective contact with the data subject, without necessarily taking into account the time period between the initial data collection and the first contact. Nevertheless, the guidelines on transparency under the GDPR explicitly state that the one-month period provided under Article 14.3.a) GDPR is a maximum period, which cannot be extended but can only be shortened depending on the purposes of the processing.

154. The Disputes Chamber is fully aware that the data sources of the defendant have an obligation to provide information in accordance with Article 14.3.c) GDPR, particularly when they supply the

personal data in their possession to BLACK TIGER BELGIUM. However, the Disputes Chamber emphasizes that it is primarily the responsibility of the data controller transferring the data — and not the recipients, in this case, the customers of the defendant — to provide the information as stipulated under Article 14.3.c) GDPR to the data subjects, as provided under Articles 14.1 and 14.2 GDPR. Specifically, all

168 Article 29 Data Protection Working Party – Guidelines on Transparency in accordance with Regulation (EU) 2016/679 (WP260, rev. 01, April 11, 2018), adopted by the EDPB.

169 See paragraphs 64, 66, and 137 in this decision.

170 Article 29 Data Protection Working Party – Guidelines on Transparency in accordance with Regulation (EU) 2016/679 (WP260, rev. 01, April 11, 2018), paragraph 28.

Decision on the Merits 07/2024 - 62/114

successive data controllers — i.e., the partners of the respondent who provide him with personal data, the respondent himself, and the customers to whom the respondent may transfer personal data — must therefore separately inform the data subjects regarding the data processing they carry out themselves.

155. Furthermore, a contrario reading of Article 14.5.b) GDPR¹⁷¹ indicates that the information provision in accordance with Articles 14.1 and 14.2 GDPR should logically be proactive, as opposed to the previously passive information provision that Article 14.5.b) GDPR provides as an exception. The indirect collection of personal data from the data subjects does not imply that the information provision to the data subjects must also occur solely in an indirect manner. On the contrary, from the case law of the Court of Justice as well as from the provisions of the GDPR¹⁷², it follows that it is solely the responsibility of the data controller who determines the means and purposes of the processing to inform the data subjects in a fair and transparent manner. The Dispute Chamber therefore concludes that it is primarily the responsibility of the respondent to proactively inform the data subjects about the processing of their personal data by BLACK TIGER BELGIUM, in accordance with Article 14 GDPR.

156. The fact that the partners of the respondent, who transfer the personal data they have collected to the respondent for payment under their agreement, provide information to the data subjects themselves does not detract from the above. The Dispute Chamber is not convinced by the organizational measures that the respondent has taken to comply with his transparency obligation "indirectly," whereby the data sources are required to explicitly refer to the personal data processing carried out by the respondent in their privacy statement. In this regard, the Dispute Chamber refers to the template for the agreements with data sources¹⁷³, which stipulates the following (own emphasis)¹⁷⁴:

171 See paragraph 157 below.

172 Recital 60 — "In accordance with the principles of fair and transparent processing, the data subject must be informed of the fact that processing is taking place and of the purposes thereof. The data controller must provide the data subject with the additional information necessary to ensure fair and transparent processing in relation to the specific circumstances and context in which the personal data are processed. [...]"; Article 14 GDPR — "1. When personal data have not been obtained from the data subject, the data controller shall provide the data subject with the following information: [...]" (the Dispute Chamber emphasizes). See also CJEU, October 1, 2015, C-201/14, Smaranda Bara et al. v. President of the National Health Insurance House (ECLI:EU:C:2015:638), paragraph 31.

173 Document 10 ("Piece 10 – Template contracts source – see Article 5") as submitted by the respondent to the Inspection Service in the context of the investigation, p. 4.

174 "Your personal data may be transmitted to external partners, who may use them to send you commercial information or promotional offers or to market them for these purposes. We only transmit this data to external partners who guarantee the correct processing of this data, including, among others, Bisnode Belgium SA (Allée de la Recherche 65, 1070 Anderlecht). However, [X] shall not be liable in any case for

Decision on the Merits 07/2024 - 63/114

"Your Personal Data may be shared with external partners, who may use it to send you commercial information or promotional offers or to commercialize it for these purposes. We only share such data

with external partners who ensure the proper processing of this data, including Bisnode Belgium NV (Researchdreef 65, 1070 Anderlecht). [X] is, however, in no case liable for the use of this data by external partners.

Your personal data may be used or commercialized by Bisnode Belgium to provide you with personalized offers (possibly based on your marketing profile), to conduct market research, or to validate, correct, or link data already present in the databases of other companies (for more information on the processing of personal data by Bisnode Belgium, consult www.bisnodeenu.be)."

The Dispute Chamber finds that such wording ("may be used") does not provide sufficient certainty to the data subjects regarding the nature and extent of the processing of their personal data by the respondent. Consequently, there can be no question of transparent and fair information provision to the data subjects by the data sources.

157. The next question that arises is to what extent the respondent can invoke the exception to the information obligation, as provided for in that same provision. Article 14.5 GDPR states that the obligation to provide information to the data subjects does not apply when and to the extent that:

- a) the data subjects already have the information;
- b) providing that information proves impossible or would require disproportionate effort, or to the extent that providing the information threatens to make the achievement of the purposes of the intended processing impossible or seriously jeopardizes it. In such cases, the data controller takes appropriate measures to protect the rights, freedoms, and legitimate interests of the data subjects, including making the information public;
- c) obtaining or providing the data is expressly prescribed by Union or Member State law applicable to the data controller and that law provides for appropriate measures to protect the legitimate interests of the data subject; or
- d) the personal data must remain confidential under a professional secrecy obligation in accordance with Union law or Member State law, including a statutory confidentiality obligation.

158. The Dispute Chamber finds that exceptions [c] and [d] do not apply to the processing by the respondent. Exception [a] is also not met since the privacy statement on the website is incomplete and the standard paragraphs in the privacy statements of the data sources are generically worded.

Regarding exception [b], the Dispute Chamber refers to the categories of personal data processed by the respondent as well as the intended objectives, which have already been explained above. It cannot be denied that the respondent is at least in possession of the contact details of data subjects, as such data, along with the "identification data," form a common 'attribute' for the three databases, and the business model of BLACK TIGER BELGIUM precisely consists of collecting, aggregating, and then making available so-called "contact points" with which the respondent's clients can subsequently improve their marketing and communication strategies. Thus, the Dispute Chamber considers it sufficiently proven that providing the information required under Article 14 GDPR to data subjects from whom the respondent collects and processes personal data is not impossible.

159. Furthermore, it is not clear, and the respondent does not demonstrate in any way, to what extent compliance with the transparency principle regarding data subjects would seriously jeopardize the intended objectives. The only reference to the necessary efforts that the respondent claims to have made and raises in its defenses is not further substantiated by the submitted documents. In response to the question of whether data subjects would individually receive a privacy statement, the respondent briefly answers in both submitted LIAs that individual information provision "would require disproportionate effort":

176 See paragraphs 107 and 108 in this decision.

177 See paragraph 156 in this decision.

178 See paragraphs 107 and 108 in this decision.

179 CMX; Permesso and Spectron.

180 Document 5 ("Legitimate Interest Assessment Consu-Matrix 27082020") submitted with the respondent's reply conclusions; Document 6 ("Legitimate Interest Assessment Spectron 27082020") submitted with the respondent's reply conclusions.

Decision on the Merits 07/2024 - 65/114

This position, however, cannot be accepted in light of Article 14 GDPR. The impossibility or disproportionate effort must be directly related to the fact that the personal data was not obtained from the data subjects. Furthermore, a data controller wishing to invoke the exception of Article 14.5.b) GDPR on the grounds that providing the information would require disproportionate effort must weigh the effort required to provide the information to the data subject against the effect on and the consequences for the data subject when they do not receive the information¹⁸¹.

160. The Dispute Chamber emphasizes that Article 14.5 GDPR constitutes an exception to the rights of data subjects and must therefore be interpreted restrictively. It is established in this case that BLACK TIGER BELGIUM must have contact details of the data subjects in order to achieve the intended objectives of the various databases. The Dispute Chamber further emphasizes that the respondent does not necessarily need to have the contact details of all data subjects before informing them collectively and once; as soon as BLACK TIGER BELGIUM has a postal address or an email, the company is in principle able — and therefore obliged — to inform the specific data subjects directly about the collection and processing of their personal data, in accordance with Article 14 GDPR.

161. In this regard, the Dispute Chamber refers to the decision of the Polish Data Protection Authority (Urząd Ochrony Danych Osobowych, hereinafter 'UODO'), which imposed a fine on BISNODE POLAND on March 25, 2019, for failing to directly inform the data subjects from whom the company had contact details about the processing of their personal data¹⁸². The Dispute Chamber finds that the respondent in this case could have taken this 2019 decision into account in its analysis dated August 27, 2020, regarding the information obligation towards the data subjects in Belgium, although it is evident that this was not done. Regardless, the Dispute Chamber states that five years after the entry into force of the GDPR, it is unacceptable

¹⁸¹ Article 29 Data Protection Working Party – Guidelines on Transparency in Accordance with Regulation (EU) 2016/679 (WP260, April 11, 2018), paragraphs 62 and 64.

¹⁸² Urząd Ochrony Danych Osobowych – Decision ZSPR.421.3.2018 of March 15, 2019, available on the website of the Polish Data Protection Authority (UODO):

<https://uodo.gov.pl/decyzje/ZSPR.421.3.2018#>. Despite the subsequent appeal filed by BISNODE POLAND, the decision of the UODO remained in effect, but the administrative fine of EUR 220,000 was reduced.

Decision on the Merits 07/2024 - 66/114

to not directly inform the data subjects whose contact details are already known, especially when it concerns electronic contact details, about the processing of their personal data.

162. Although the Dispute Chamber acknowledges that the respondent has made efforts to at least make the information publicly available on its website in the absence of direct, individual information provision, the Dispute Chamber finds that this failure to timely and individually inform the data subjects constitutes a violation of the obligation to provide transparent—and therefore complete—information to the data subjects regarding the processing of their personal data, particularly when the personal data is collected indirectly as in this case. In such circumstances, it is clear that data subjects cannot be expected to consult the respondent's website regularly or at all.

163. Furthermore, the Dispute Chamber has already established that the categories "marketing profiles," "consumer interests," and "family composition" were not mentioned in the privacy statement dated March 31, 2021, intended for consumers, nor in the explanation on the current website of BLACK TIGER BELGIUM. The fact that the respondent clarified in its defense dated September 11, 2023, submitted in the context of the limited reopening of the debates, that the privacy statement on the BLACK TIGER BELGIUM website only indicates which personal data is processed in the context of its current activities does not negate that the privacy statement for consumers at the time of the investigation was not complete—which the respondent also acknowledges in its rebuttal conclusions dated March 7, 2022—and consequently was in violation of Article 14 GDPR.

164. In its response to the sanction form, the respondent asserts that the obligation to inform data subjects individually and proactively was not extensively discussed in the written conclusions and that no contradictory debate was opened on this point by the Dispute Chamber. The respondent also disputes the claim that it intentionally failed to provide complete and sufficiently detailed information to

the data subjects.

165. In this regard, the Dispute Chamber first notes that the manner in which the data subjects are informed by the respondent or by the data sources regarding the processing of their personal data was indeed discussed in both the written conclusions and during the hearing dated February 22, 2023. In the

183 Group Data Protection Article 29 – Guidelines on Transparency in accordance with Regulation (EU) 2016/679 (WP260, April 11, 2018), para. 64.

184 See paras. 107 to 109 in this decision.

185 Document 12 (“012 Screenshots website Bisnode Belgium”) in the inventory, pp. 45-48.

186 <https://avg.blacktigerbelgium.tech/uw-consumentengegevens/wat-consument/>, consulted on August 4, 2023.

187 Response of the respondent to the sanction form dated October 31, 2023, p. 1.

Decision on the Merits 07/2024 - 67/114

Research Report

It is pointed out to the respondent that the obligation of transparency applies both in the case of direct and indirect data collection. Furthermore, the Dispute Chamber emphasizes that the obligation of transparency arises from the GDPR, was already applicable under Directive 95/46, and therefore does not require further clarification from the Dispute Chamber. Moreover, the complainant refers in his complaint as well as in his written defenses to the fact that the processing of his personal data took place “without [his] knowledge,” “without contact” (from the respondent), and that he “has not received any notification, or notification according to Art 13 and 14 of GDPR, when they [had] collected [his] data.”¹⁸⁸

By means of the conclusion letter dated November 29, 2021, the respondent was also informed of the possible infringement of Article 14 GDPR, of which paragraphs 1 to 4 must be read and complied with collectively, as well as Article 5.2 in conjunction with 24.1 GDPR, “regarding the obligation for the data controller to provide the data subjects with concise yet complete, transparent, and understandable information about the personal data being processed, as well as the requirement for the respondent to ensure and demonstrate compliance with these obligations.” In the context of the written procedure for the Dispute Chamber, the respondent was therefore free to defend himself against the complaints of the complainant as well as the lack of evidence established by the Inspection Service that the respondent had appropriately complied with his obligations under Article 14 GDPR.

Also during the hearing, after the complainant expressed his dissatisfaction regarding “the collection of numerous personal data without being informed of it,”¹⁸⁹ the respondent was given the opportunity to explain his position regarding the obligation that rested on BISNODE BELGIUM and subsequently BLACK TIGER BELGIUM, in accordance with the provisions of Article 14 GDPR. However, the Dispute Chamber notes that the respondent merely replied that “the sources as well as the clients of BLACK TIGER BELGIUM are contractually obliged to inform the data subjects about the transfer of their personal data to, respectively, the communication thereof by BLACK TIGER BELGIUM.”

Finally, the respondent was given one last opportunity to express his position to the Dispute Chamber in response to the sanction form dated October 31, 2023. In light of the preceding elements, the Dispute Chamber concludes that the respondent has indeed been given several opportunities to defend himself against the allegation that he did not appropriately inform the data subjects — i.e., in a fully transparent and proactive manner, given the context of the processing —

188 Complaint form as submitted by the complainant on January 28, 2021.

189 Minutes of the hearing dated February 23, 2023, p. 13.

Decision on the Merits 07/2024 - 68/114

informed, in accordance with Article 14 GDPR. The argument put forth by the respondent in their response to the sanction form is therefore evidently unfounded.

166. Given the lack of a complete privacy statement¹⁹⁰ as well as the deliberate — as sufficiently demonstrated by the balancing of interests submitted to the Dispute Chamber¹⁹¹ — choice of the respondent not to inform the data subjects directly about the processing of their personal data by BLACK TIGER BELGIUM, despite the fact that the respondent possesses the contact details of the

majority of the data subjects, the Dispute Chamber finds that the respondent has violated Article 14 GDPR at least with respect to the data subjects whose contact details were known, due to serious negligence.

II.5. Handling of Requests from Data Subjects to Exercise Their Rights

(Article 12.1 and 12.2, Article 15.1, Article 5.2, Article 24.1, and Article 25.1 GDPR)

II.5.1. Position of the Inspection Service

167. According to the Inspection Service, the respondent does not demonstrate that he — in the context of handling their request for access — has effectively and transparently informed the complainants about all available information regarding the source of their personal data in accordance with Article 15.1.g) GDPR. The complainants were not informed about how the respondent obtained their personal data from the mentioned sources, and when. Furthermore, the Inspection Service notes that the information provided is too vague and too reliant on a general type of response, resulting in the complainants not receiving a sufficiently tailored answer. Finally, the respondent does not demonstrate, according to the Inspection Service, that he effectively and transparently mentioned the right to erasure and the right to object in his letter to both complainants; the Inspection Service notes that the existence of these rights was communicated to only one of the complainants.

II.5.2. Position of the Parties

168. The complainant asserts that BLACK TIGER BELGIUM has violated Article 12.3 GDPR by providing the electronically requested information on paper. The complainant argues that the respondent has not complied with his obligation under Article 12.3 GDPR, as the responses to the requests for access were sent to the data subjects via paper mail, despite the fact that the respondent requires data subjects to submit their requests electronically.

190 See paragraph 163 in this decision.

191 See screenshot at paragraph 159 in this decision: “Is a fair processing notice provided to the individual, if so, how? Are they sufficiently clear and upfront regarding the purposes of the processing? We don’t inform each and every data subject personally as this would involve a disproportionate effort. However, our sources must explicitly mention the possible use of data by Bisnode in their privacy notices, we are mentioned in every mail [...]” (own emphasis).

Decision on the Merits 07/2024 - 69/114

Requests for access to their personal data via the respondent's website must be submitted electronically, whereby the data subjects must also provide their email addresses. Regarding the mention of the sources of his personal data, the complainant states during the hearing — referring to the response to his request for access — that the respondent mentions statistical and neighborhood data about the complainant, which could not possibly originate from the sources listed by the respondent in his response. During the hearing, the complainant also indicates that he deliberately did not request the deletion of his personal data, to avoid them being removed prior to a decision by the Dispute Chamber. Furthermore, the complainant believes that he was unable to easily respond to the respondent's answer since the information was provided to him by post, rather than electronically. The complainant also refers to the recent case law of the Court of Justice¹⁹², which established that data controllers are required to inform data subjects about the precise identity of the recipients of their personal data, while the respondent would have only mentioned the categories of personal data in his response to the access requests submitted by the complainants. During the hearing, the complainant also refers to the absence of contact details for the DPO in the response to his request for access, and expresses his annoyance that he had to search for the aforementioned contact details on the website on his own initiative.

169. Regarding the information requests submitted by the complainants, the respondent states that he provided information “about the processing of their personal data: the files in which they are included and the purposes of the

processing, as well as the legal basis for the processing, the existence of a right to object, the categories of processed data and the information that is kept about the complainants, the recipients of the data, the period during which they are retained, the source of the data, etc.” in letters from his DPO on November 13, 2020, and December 23, 2020. The respondent disputes that the answers he provided to both complainants can be considered a so-called “general type response,” as the respondent informed both complainants separately about (i) the specific source of their data, (ii) the fact that this data was provided by the complainants themselves at the source in their capacity as customers, and (iii) whether the collaboration with the relevant sources is still active. According to the respondent, the use of a standard letter also demonstrates the good internal organization of the respondent to respond to requests from data subjects.

192 CJEU, January 12, 2023, C-154/21, RW v. Österreichische Post (ECLI:EU:C:2023:3).

Decision on the Merits 07/2024 - 70/114

Additionally, the respondent refutes the finding by the Inspection Service that one of the complainants was not informed of the existence of his right to erasure and to object. The respondent refers to the letter addressed to the complainant, the second point of which explicitly mentions the two aforementioned rights.

In response to the complainants' grievance regarding the sending of the response by post, the respondent clarifies that he does not require proof of identity from data subjects, precisely to promote the exercise of the rights of data subjects. In order to avoid the risk of unauthorized disclosure of data in the event of identity theft, the respondent has opted for sending by post, to the address known to him of the data subject.

Regarding compliance with his information obligation towards the data subjects, the respondent refers during the hearing to the standard wording that the sources of BLACK TIGER BELGIUM must include in their privacy statement, which informs the data subjects about the collection of their personal data by the respondent. The respondent also states that data subjects can obtain detailed information about the sources of their personal data in the context of a request for access. Therefore, the respondent does not feel obliged to mention the precise identities of all sources in the privacy statement, as there could possibly be dozens of sources listed while the personal data of an individual data subject originates from only a limited number of the listed sources.

Regarding the mention, in the response to a request for access, of the categories instead of the concrete recipients to whom the personal data of the complainants were actually transferred, the respondent asserts that this approach was adopted at the time after internal consultation and taking into account the case law at that time. According to the respondent, he cannot be blamed for not taking into account later case law from the Court of Justice. Furthermore, the respondent emphasizes that the requests for access from the complainants were answered in detail, and the complainants subsequently did not submit any additional requests to obtain, among other things, further information about the precise sources of the personal data, the concrete recipients of their personal data, or to possibly correct any incorrect information. Finally, the respondent reminds that the complainants never requested the deletion of their personal data.

Decision on the Merits 07/2024 - 71/114

II.5.3. Opinion of the Dispute Chamber

Responses by Post

170. The Dispute Chamber establishes based on the submitted documents that both complainants received a response by post, although their original requests for access were sent electronically. The respondent does not dispute this, neither in the context of the written defenses nor during the hearing.

171. Article 12.3 GDPR explicitly states:

“3. The data controller shall provide the data subject without undue delay and in any event within one month of receiving the request pursuant to Articles 15 to 22 information on the action taken in response to the request. Depending on the complexity of the requests and the number of requests, that period may be extended by a further two months if necessary. The data controller shall inform the data subject of any such extension within one month of receiving the request. When the data subject submits their request electronically, the information shall be provided electronically where possible, unless the data subject requests otherwise.”

172. Article 15, paragraph 3 in fine GDPR states that when the data subject submits their request electronically, and does not request an alternative arrangement, the information must be provided in a commonly used electronic format, with the commonality being determined from the perspective of the data subject and not the data controller. Therefore, the Dispute Chamber considers the breach of Article 12.3 GDPR sufficiently proven.

Notwithstanding that the investigation report only establishes violations of Article 12.1 and 12.2 GDPR, Article 12 GDPR must be read and complied with in its entirety, including Article 12.3 GDPR. The manner in which a data controller complies with a request is always framed within the general obligation to facilitate the exercise of rights by the data subjects as provided for in Article 12.2 GDPR, as well as within the complementary obligation in Article 12.1 GDPR to provide the communication referred to in Articles 15 to 22 GDPR “where appropriate” by electronic means. *Mutatis mutandis*, the above also applies to Article 15.3 GDPR, which must be complied with in conjunction with the other provisions of Article 15 GDPR.

Finally, the Dispute Chamber emphasizes that the respondent was indeed given the opportunity to defend themselves in the context of the substantive procedure, as is clearly evident from the conclusions in reply of the respondent and their response to the sanction form:

193 EDPB – Guidelines 01/2022 on Data Subject Rights – Right of Access (v2.0, 28 March 2023), paragraphs 32, 134, and 148 et seq.

Decision on the Merits 07/2024 - 72/114

“To promote the exercise of the rights of data subjects, Black Tiger Belgium does not require identification from the individuals concerned. Consequently, it sends its responses by post to the address known to it for the data subject, thereby avoiding the risk of unauthorized disclosure of data in the event of identity theft.” 194

“With regard to the responses that were sent by post to the data subjects, Black Tiger Belgium has already explained that this was necessary to ensure that there was no unauthorized disclosure of personal data, which demonstrates a high degree of diligence.”¹⁹⁵

173. Although it cannot be ruled out that sending by post would provide more certainty than electronic transmission in cases where no identification is requested, the Dispute Chamber is of the opinion that there are other, more secure communication channels available in addition to regular emails to provide the requested information electronically, in accordance with Article 12.3 GDPR. Furthermore, the Dispute Chamber finds that sending by post does not necessarily provide more guarantees that the information sent ultimately reaches the ‘correct’ data subject, as the respondent cannot rule out that the data subject has moved in the meantime. More generally, the Dispute Chamber judges that the respondent does not act diligently by not requesting identification or by not verifying the identity of applicants beforehand.

In this regard, the Dispute Chamber notes that the respondent already requires the (electronic) contact details of the data subjects so that they can exercise their rights on the respondent's webpage. Except for the telephone number, all fields are mandatory to fill in. Consequently, the Dispute Chamber concludes that the respondent has sufficient information to verify whether the email address corresponds with the contact details of the data subject that are already recorded in the respondent's database(s), prior to further processing of the request. In cases of doubt, the respondent could contact

the data subject using the already known contact details in the databases to ask for confirmation whether the access request is legitimate.

By deliberately providing responses to requests from data subjects by post, the respondent makes it more difficult for them to submit an additional request following the initial response, if deemed necessary. The former and current websites do not allow, for example, attaching the initial response as an annex to a new request submitted via the online contact form. The above

194 Conclusions of the respondent's reply, submitted to the Dispute Chamber on March 7, 2022, p. 25-26

195 Response of the respondent to the sanction form dated November 24, 2023, p. 2, (iii).

196 First name, last name, telephone number, email, street name, number, postal code, and city of the data subject: <https://avg.blacktigerbelgium.tech/your-rights/>. See also Document 12 (Screenshots of the Bisnode Belgium website taken by the Inspection Service on March 31, 2021) in the inventory.

Decision on the Merits 07/2024 - 73/114

was furthermore explicitly raised by the complainant during the hearing dated February 22, 2023, and the respondent was given the opportunity to defend against this during that same hearing as well as in the context of his response to the minutes of the meeting.

174. In short, the reasons put forward by the respondent for sending responses to requests for access via regular mail are not only unconvincing to the Dispute Chamber, but also contrary to Article 12.1 as well as 12.3 GDPR in conjunction with 15.3 GDPR. Furthermore, the respondent does not act in line with his obligation to facilitate the exercise of rights by the data subjects, in accordance with Article 12.2 GDPR.

In light of the above, the Dispute Chamber decides that the respondent has violated Articles 12.1 and 12.2 GDPR as well as 12.3 in conjunction with 15.3 GDPR, by sending the responses to the complainants' requests for access not electronically but only by post, thereby unnecessarily hindering the complainants in the exercise of their rights.

Sources of Personal Data

175. Regarding the failure to mention the precise sources of the complainant's personal data, the Dispute Chamber finds that the respondent only refers to the company TELE TICKET SERVICE as a data source for the consumer database (CMX). However, during the hearing and in his defenses, the respondent does not provide an explanation for the absence of information about the source of the "statistical data at neighborhood level."

176. According to Article 15.1 GDPR, the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning him or her is being processed. If that is the case, the data subject has the right to access that personal data and information referred to in Article 15.1.a) to 15.1.h), such as the purpose of the processing of the data as well as the sources and any recipients of the data. The purpose of the right to access is to enable the data subject to understand how his or her personal data is processed and what the consequences are, as well as to verify the accuracy of the processed data without having to justify his or her intention.

197 Minutes of the hearing dated February 23, 2023, p. 5.

198 "The source of your data is Tele Ticket Service, which provided us with addresses of its customers. Meanwhile, this collaboration with Tele Ticket Service has been terminated." in Document 2 ("Response to the access request of November 13, 2020 from Bisnode Belgium") recorded in the respondent's reply conclusions.

199 See Decision on the Merits 57/2023 of May 16, 2023, para. 44 (available on the GBA website).

Decision on the Merits 07/2024 - 74/114

Since it is unlikely that TELE TICKET SERVICE provides residential data to the respondent and the respondent has not provided an explanation regarding the origin of the "statistical data at neighborhood level," although the aforementioned data likely originates from the National Institute of Statistics, the Dispute Chamber finds it sufficiently proven that the respondent did not mention all relevant data sources in his response to the complainant.

In light of the above, the Dispute Chamber therefore decides that the respondent has committed a breach of Article 15.1.g) GDPR by not immediately communicating all available information about the

sources of the complainant's personal data.

Contact Details of the DPO

177. Regarding the lack of contact details of the DPO in the response as well as the alleged lack of mention of the rights of objection and data deletion, the Dispute Chamber rules that the complainant's grievance and the finding by the Inspection Service are unfounded and not supported by the documents at hand. Article 15 GDPR does not require that the contact details of the DPO be mentioned in the response to a request for access, and it is established that the aforementioned rights are effectively listed in the response to the complainants' request. Furthermore, the Dispute Chamber notes that the contact details of the DPO are adequately mentioned at the top of the contact form on the respondent's website, as shown by the screenshots provided by the Inspection Service. The GDPR does not require that the data controller shares an email address of the DPO with the data subjects. The provision of a postal address in combination with a contact form to handle requests in a structured manner is sufficient as long as the exercise of their rights by the data subjects is not hindered. Therefore, the Dispute Chamber finds that the respondent has not violated the GDPR on this point.

Recipients of Personal Data

178. With respect to the precise identification of the recipients to whom the respondent has handed over the complainant's personal data, the complainant refers to the judgment in *Österreichische Post* by the Court of Justice. In this case, the Court ruled that data controllers are obliged to provide the actual identity of the recipients to whom personal data has been or will be disclosed upon request from data subjects. Only when it is (still) not possible to identify these recipients is it...

200 See para. 83 in this decision.

Decision on the Merits 07/2024 - 75/114

the data controller allowed to limit the information provided to the relevant categories of recipients.

179. In this case, the Dispute Chamber notes that the respondent, at the time of handling the requests from the complainants, restricted his response to the categories of recipients. Notwithstanding the access requests that underpin the present procedure, which precede the ruling of the Court of Justice, the Dispute Chamber holds that the respondent was obliged to disclose the precise identity of the recipients from the first request for access to the complainants. In its judgment, the CJEU indeed rules that the right of access for data subjects is essential to enable them to exercise other rights granted by the GDPR. This interpretation is also reflected in the guidelines on the right of access from the EDPB, as well as in the guidelines on transparency, which were approved in 2017 by the Article 29 Data Protection Working Party and revised on April 11, 2018, a considerable time before the respondent received the access requests.

It is therefore established that the right of access provided for in Article 15 GDPR, in contrast to the right to information under Articles 13 and 14 GDPR, indeed requires the data controller to provide specific information about the processed personal data, with a sufficient degree of accuracy to enable the data subject to acquire "informational self-determination" and, where applicable, to assess the compliance of the practice with the GDPR. The sufficiently transparent and accurate nature of the information provided in the context of a right of access also contributes to enabling data subjects to exercise their rights under the GDPR more easily in accordance with Article 12.2 GDPR. By specifically indicating who the recipients are of the personal data concerning them, data subjects can then exercise their rights directly with these recipients.

Contrary to what the respondent argues in his response to the minutes of the hearing, there is thus no question of retroactive effect of the judgment of January 12, 2023, of the CJEU, since that judgment merely clarifies an obligation that directly arises from Article 15.1.c) GDPR, which was already applicable in advance.

201 CJEU, January 12, 2023, C-154/21, *RW v. Österreichische Post* (ECLI:EU:C:2023:3), paras. 39, 43, and 48.

202 CJEU, January 12, 2023, C-154/21, *RW v. Österreichische Post* (ECLI:EU:C:2023:3), para. 38.

203 EDPB – Guidelines 01/2022 on Data Subject Rights – Right of Access (v2.0, March 28, 2023), paras. 116-117.

204 Article 29 Data Protection Working Party – Guidelines on Transparency under Regulation (EU) 2016/679 (WP260, rev. 01, April 11, 2018), pp. 43-44: “The (names of the) actual recipients of the personal data, or categories of personal data, must be provided. In accordance with the principle of fairness, data controllers must provide information about the recipients that is most meaningful to the data subjects. In practice, this will typically be specifically named recipients, so that data subjects know exactly who has their personal data.”

205 See Decision on the Merits 15/2021 of February 9, 2021, para. 165 (available on the GBA website).

Decision on the merits 07/2024 - 76/114

Considering the preceding decision of the Dispute Chamber that the respondent has committed a violation of Article 15.1.c) GDPR, by not disclosing all available information regarding the specific recipients of the personal data of the complainants.

II.6. Use of cookies on the websites of the respondent (Article 4.11), Article 5.1.a) and 5.2, Article 6.1.a), as well as Article 7.1 and 7.3 GDPR)

II.6.1. Position of the Inspection Service

180. The Inspection Service has established that the information provided by the respondent regarding the use of cookies to website visitors, in the cookie window at the bottom of the homepage of the website <https://bisnodeandyou.be>, is only available in English. Furthermore, the two options on the homepage of the website are not presented equally, and the cookie window disappears after clicking on the language button at the top right of the homepage of the website. Finally, the respondent does not provide any explanation to website visitors on how they can withdraw their given consent.

181. Regarding the website <https://www.permesso.be>, the Inspection Service finds that the information about the use of cookies is available in both Dutch and French, and clearly indicates that in addition to essential cookies, other cookies are also placed. Additionally, the two options on the homepage of the website are not presented equally, and the Dutch version of the cookie window disappears after clicking on the language button. Finally, the respondent does not provide any explanation to website visitors on how they can subsequently withdraw their given consent.

182. Based on the preceding findings, the Inspection Service concludes that the respondent does not obtain valid consent within the meaning of Article 4.11) GDPR, and consequently cannot demonstrate that the data subjects have given valid consent for the placement of cookies on their devices.

II.6.2. Position of the respondent

183. The respondent acknowledges that there were certain shortcomings in its previous cookie policy, but emphasizes that after the publication of the guidelines on the website of the GBA in 2020, it was decided to conduct an analysis of the existing cookie practices of the respondent in order to identify and remedy shortcomings. However, due to various acquisitions, this has fallen by the wayside, according to the respondent, and it was ultimately decided by BLACK TIGER BELGIUM to only use strictly necessary cookies.

Decision on the merits 07/2024 - 77/114

II.6.3. Opinion of the Dispute Chamber

184. The Dispute Chamber is unable to establish a violation of the regulations regarding the placement of cookies solely based on the screenshots of <https://bisnodeandyou.be/> and <https://www.permesso.be/>. Indeed, regarding the first website, it can only be inferred that the website places a consent cookie (“OptanonConsent”), linked to the domain bisnodeandyou.be, with an expiration period of one year. Therefore, the Dispute Chamber cannot conclude that this cookie supports a non-essential function. With respect to the second website, it cannot be inferred that the respondent would place non-essential cookies without the prior consent of the data subjects. The only cookies that the Inspection Service has identified, in addition to the aforementioned OptanonConsent, are two session cookies (PHPSESSID and wml_browser_redirect_test). Both of these are functional cookies, linked to the website [permesso.be](https://www.permesso.be). Furthermore, the Dispute Chamber, after its own investigation, finds that the website <https://bisnodeandyou.be/> is no longer accessible, and the website <https://www.permesso.be/> has not been in use since at least July 25, 2021.

Consequently, the Dispute Chamber decides not to uphold the findings of the Inspection Service

related to the placement of cookies on the two aforementioned websites of the respondent.

II.7. Accountability of the respondent (Article 5.2, Article 24.1, as well as Article 25.1 and 25.2 GDPR)

II.7.1. Position of the Inspection Service

185. The respondent refers in its response to the questions from the Inspection Service to various initiatives and documents regarding data protection. However, the Inspection Service emphasizes that the respondent has committed a violation of Article 5.2, Article 24.1, and Article 25.1 GDPR, as well as with respect to certain articles of the GDPR concerning the rights of the data subject. The unfilled and unsigned model agreements to which the respondent refers in its responses do not, according to the Inspection Service, demonstrate that those templates are effectively and systematically used. Additionally, it appears from the documents provided by the respondent that these have not been effectively approved by the highest management level of the respondent, nor that the

206 Documents 10 to 12 submitted by the respondent to the Inspection Service.

207 Documents 1 to 38 submitted by the respondent to the Inspection Service.

Decision on the Merits 07/2024 - 78/114

compliance with the rules and guidelines mentioned therein is effectively monitored and that violations are effectively sanctioned.

II.7.2. Position of the Respondent

186. The respondent argues that the findings by the Inspection Service regarding the documents concerning the protection of personal data are unfounded. The respondent contends that during the investigation by the Inspection Service, he consistently provided complete, precise, detailed, and fully transparent information in response to all questions posed, and asserts that the identified shortcomings are, in any case, minor and appear to have no consequences. Furthermore, the respondent regrets that the inspection report did not take into account the more global implementation of the GDPR by the respondent to fulfill his obligations under the regulation. The fact that he possesses model agreements and standard documents demonstrates, according to the respondent, that he has implemented a reasonable level of internal compliance and readiness in case of the exercise of rights by data subjects or an investigation or audit by the GBA. The respondent further states that he is in no way "obliged [to] prove that these templates are actually used, especially since the Inspection Service does not mention any concrete cases in which they were not used and the respondent also shows that he indeed uses standard responses to respond to access requests from data subjects."

187. The respondent then refutes the findings of the Inspection Service regarding the effective and systematic use of model agreements, the approval of policy documents by the highest management level, as well as the lack of evidence of the implementation of the prescribed control and sanction measures in the event of breaches of internal procedures. The respondent states that there is no legal obligation to prepare a report for every meeting of the board of directors, in which the precise decisions are established. He also refers to the contradictory statements of the Inspection Service, which on the one hand accuses that standard letters are used, and on the other hand reproaches the respondent for not using the submitted standard documents. The respondent believes that he is also not obliged to prove that the submitted templates are actually used, especially since the Inspection Service does not mention any concrete cases in which the templates would not have been used.

188. Furthermore, the respondent refers to the fact that BLACK TIGER BELGIUM was in no way involved in the events that the complainants alleged, and moreover reported very quickly to the GBA to express his position. Additionally, the respondent emphasizes once again that the CMX database has since been removed and that the activities of Data Delivery ceased three months after the acquisition by BLACK TIGER, and therefore requests the Dispute Chamber to carefully choose an appropriate sanction. In short, the respondent requests the Dispute Chamber to declare that no sanction is necessary, as the respondent has voluntarily and definitively ceased the contentious processing activities. The respondent clarifies that BLACK TIGER BELGIUM has since the cessation of the Data Delivery activities only acted as a processor in the context of Data Quality services to clients. However, this does not prevent BLACK TIGER BELGIUM from taking appropriate technical and organizational measures and maintaining the necessary documentation, as was also submitted to the Inspection

Service during the investigation. In addition, the respondent refers to the letter from the CEO of BLACK TIGER BELGIUM addressed to the GBA, in which the revised strategy as well as the decision to switch to a pure Data Quality service was explained, but remained unanswered by the Inspection Service.

II.7.3. Opinion of the Dispute Chamber

189. The Dispute Chamber rules that there can be no doubt that BLACK TIGER BELGIUM must be held responsible for the processing activities that took place prior to the acquisition of BISNODE BELGIUM by BLACK TIGER GROUP and the subsequent name change. This responsibility, which is independent of the involvement of the 'new' company in the disputed processing activity, directly arises from the transition of BISNODE BELGIUM to BLACK TIGER BELGIUM, whereby the decision-making authority over the means and purposes of the processing of personal data was unequivocally taken over. Assuming the opposite would imply a vacuum regarding the responsibility for transferred personal data, to the detriment of the protection of the fundamental rights and freedoms of the data subjects, especially when the 'acquirer' continues the processing activities for a certain period after the acquisition. Moreover, the Dispute Chamber emphasizes that the company numbers of BISNODE BELGIUM and BLACK TIGER BELGIUM are identical.

190. Article 5.2 and Article 24 of the GDPR impose general accountability obligations and compliance requirements on data controllers. Article 5.2 of the GDPR holds the data controller accountable for compliance with the general principles regarding their processing of personal data. Pursuant to Article 24 of the GDPR, data controllers must, in particular, take into account the nature, scope, context, and purpose of the processing, appropriate technical and organizational measures.

Decision on the Merits 07/2024 - 80/114

measures to be taken to ensure the right to data protection and to demonstrate that the processing is carried out in accordance with the GDPR.

191. In the present case, the Dispute Chamber has since ruled that the respondent could not demonstrate that the contested data processing operations comply appropriately with the provisions of the GDPR. The Dispute Chamber has established that the respondent improperly invoked Article 6.1(f) GDPR as the basis for the CMX and Spectron databases, in which the personal data of the complainants are also processed. In doing so, the respondent did not conduct a proper balancing of its own interests and those of its customers, on the one hand, and the interests as well as the fundamental rights and freedoms of the data subjects, on the other hand²⁰⁸. Furthermore, the respondent unlawfully shifts its information obligation regarding the data subjects to the data sources as well as to its customers, resulting in the data subjects being inadequately or belatedly informed about the processing of their personal data in the context of the commercial services offered by the respondent²⁰⁹. Regarding the handling of requests by data subjects, the Dispute Chamber has also concluded that the chosen course of action, particularly sending responses to requests for access by post, although the requests can be submitted electronically, does not comply with the provisions of Article 15 GDPR²¹⁰. Additionally, the Dispute Chamber notes that a number of submitted policy documents have not been updated since their last amendment in 2018, although a series of points require active follow-up by the data controller. The Dispute Chamber specifically refers to the established retention period of 15 years, for which the data controller indicated that it still needed to document a justification²¹¹. This finding is further supported by the mention "See Data Retention Policy (under review)" in the register of processing activities submitted to the Inspection Service by the respondent²¹².

Consequently, the Dispute Chamber considers the violation of Article 5, Article 24.1, as well as Article 25.1 and 25.2 GDPR to be proven, regarding the inability to ensure and also demonstrate that the processing takes place in accordance with the principles of data protection laid down in Article 5.1 GDPR and with respect for the fundamental rights and freedoms of the data subjects, as laid down in Articles 12, 14, and 15 GDPR.

²⁰⁸ See paragraphs 134 to 141 in this decision.

²⁰⁹ See paragraphs 151 to 162 in this decision.

²¹⁰ See paragraphs 170 to 173 in this decision.

211 Document 1 ("DPIA Bisnode May 23, 2018 - Consu -Spectron-Permesso") as submitted by the respondent to the Inspection Service in the context of the investigation, p. 15 in fine.

212 Translated: "See Data Retention Policy (currently under review)" in Document 30 ("Bisnode Belgium - Copy of Record of Processing") as submitted by the respondent to the Inspection Service in the context of the investigation.

Decision on the Merits 07/2024 - 81/114

192. The Dispute Chamber, on the other hand, decides not to take into consideration the other findings of the Inspection Service regarding the handing over of unfilled and unsigned model agreements, as well as the lack of control and sanction measures in a number of documents, as well as a formal approval by the highest management level of the defendant. The Inspection Service fails to sufficiently demonstrate that the defendant has actually violated the provisions of the GDPR related to the accountability of the data controller. Finally, these findings do not fall within the scope of the initial complaint.

II.8. Register of Processing Activities (Article 30.1, 30.2, and 30.3 GDPR)

II.8.1. Position of the Inspection Service

193. The defendant considers itself a processor for various processing activities recorded in its register of processing activities. However, the Inspection Service finds that this register does not meet the minimum requirements, as the description of the categories of data subjects and the categories of personal data is incomplete, the retention periods of the personal data are not mentioned, a general description of the technical and organizational security measures ("TOMs") is missing, and finally, the name and contact details of each data controller on behalf of whom the defendant acts as a processor are not listed in the register.

II.8.2. Position of the Defendant

194. The defendant states that Article 30.1.c) GDPR does not obligate it to name the data subjects in an identified form in its register of processing activities. According to the defendant, it is sufficient to refer to the data subjects as consumers, clients, employees, etc. Moreover, Article 30.1.c) GDPR merely requires a description of the categories of processed personal data. The defendant believes it complies with this by listing, among others, the following categories in the data register: identification data (contact data), socio-demographic and lifestyle data (socio-demo and lifestyle data), and family typology (family typology). The defendant also disputes that it has violated Article 30 GDPR by merely referring to internal policy documents that include the intended retention periods as well as a description of the technical and organizational measures. The defendant believes that the register of processing activities is primarily intended for internal use as a supporting document and must align with the operational reality of the data controller. Finally, the defendant points out that its activities as a processor are included in the internal register of processing activities but are only accessible "to certain persons." Since the Inspection Service did not request it, the defendant did not provide this information, which is available.

II.8.3. Judgment of the Dispute Chamber

195. The Dispute Chamber finds that the submitted register of processing activities is limited to the mention of the categories of data subjects, without further describing these categories. Article 30.1.c) GDPR explicitly requires that the register "provides a description of the categories of data subjects and of the categories of personal data" (own emphasis). Since the requirement to actually describe the relevant categories is also present in the English and French translations of the GDPR, the Dispute Chamber concludes that there can be no doubt about the scope of this provision. As previously raised in this decision, the descriptions of the categories of personal data processed by the defendant vary depending on the policy document referenced. It is, however, of utmost importance that each data controller clearly defines for itself which personal data is precisely processed under its supervision and documents this in the register of processing activities, as required under the accountability obligation (Article 5.2 in conjunction with Article 24 GDPR). An appropriate level of granularity in the internal register of processing activities is all the more important as the information that data controllers must provide to data subjects under Articles 13 and 14 GDPR is limited to the relevant categories of personal data. However, as soon as a data subject exercises their right of access, the data controller must, in accordance with the guidelines of the EDPB, nonetheless provide a complete picture of the

processed personal data to the requester, including the specific personal data concerning them that the data controller actually processes. Consequently, the Dispute Chamber finds the violation of Article 30.1.c) GDPR by the defendant to be proven.

196. Regarding the reference to external policy documents in which the retention periods as well as the technical and organizational measures are described, the Dispute Chamber understands, contrary to the Inspection Service, that such information is not...

213 "(c) a description of the categories of data subjects and of the categories of personal data;" and "(c) une description des catégories de personnes concernées et des catégories de données à caractère personnel;"

214 See paragraph 107 in this decision.

215 Decision on the Merits 15/2020 of April 15, 2020, paragraph 142 (available on the GBA website).

216 EDPB – Guidelines 01/2022 on Data Subject Rights – Right of Access (v2.0, March 28, 2023), paragraph 115.

Decision on the Merits 07/2024 - 83/114

must be systematically included in the register of processing activities, considering the different wording of Article 30.1(f) and 30.1(g) GDPR. As long as the register appropriately refers to the policy documents in which the aforementioned information can be easily verified, there is, according to the Dispute Chamber, no infringement of Article 30.1 GDPR.

197. In his conclusions, the respondent argues that the Inspection Service could have received the register of processing activities as a processor if it had requested it. However, upon further examination of the relevant register, the Dispute Chamber finds that it is possible to filter activities as a processor under the column "Controller or processor?". The Dispute Chamber therefore concludes that the respondent uses one central processing register, in which the data processing as a data controller as well as the processing that the respondent carries out on behalf of another data controller are documented.

198. However, the Dispute Chamber notes that the processing activities belonging to the second category do not mention "a) the name and contact details [...] of every data controller on behalf of which the processor is acting, and, where applicable, of the representative of the data controller [...] and of the data protection officer;". The infringement of Article 30.2(a) GDPR is therefore established.

199. Finally, the Dispute Chamber rules that there can be no infringement of Article 30.3 GDPR solely due to the finding that the register of processing activities does not contain all the mandatory information.

II.9. Involvement of the DPO (Article 38.1 and Article 39.1 GDPR)

II.9.1. Position of the Inspection Service

200. Although the role of the DPO is clearly defined and supported in the performance of his tasks, the Inspection Service finds that the respondent has not provided any information and/or advice from the DPO regarding (a) transparent information to the data subjects and (b) the register of processing activities to the Inspection Service, and consequently, the respondent has not demonstrated the involvement of the DPO on the aforementioned subjects. Most documents cited by the respondent to prove the activities of his DPO also do not demonstrate how and when the DPO specifically intervened, or what concrete measures the respondent may have taken in response to advice from his DPO.

Decision on the Merits 07/2024 - 84/114

II.9.2. Position of the Respondent

201. The respondent states that compliance with Articles 38.1 and 39.1 GDPR is demonstrated by the evidence of the involvement and key role that the DPOs have played since 2018. This includes the maintenance of DPIAs for each of the databases, the creation of the website www.bisnodeetvous.be as well as the establishment of a process for requests from data subjects to exercise their rights, the review of technical and organizational measures, and finally the rollout of the DPIA process. More generally, the role of the DPO, his tasks, and his importance within the company are demonstrated by the production of two essential documents from the BISNODE GROUP, which the then BISNODE BELGIUM has adopted mutatis mutandis after their departure from the group. The respondent refutes

the finding of the Inspection Service, according to which he has not demonstrated that the DPO was indeed involved, together with other legal advisors within the company, in the determination of the information to be provided to data subjects, as well as in the drafting of the register. According to the respondent, it is sufficiently evident from the submitted documents that the DPO was involved at all levels, and is, in the projects, decisions, as well as the daily operations concerning the processing of personal data. The fact that specific documents were not provided to the Inspection Service does not, according to the respondent, prove that the DPO was not involved. The respondent refers in this regard to the lack of questions directed to the respondent on this matter during the investigation. Additionally, the respondent notes that the GDPR does not prescribe anywhere how a data controller can or must demonstrate the involvement of the DPO. The mention of the various functions involved in a project or that have contributed to a document is not only customary but, according to the respondent, at least constitutes a beginning of evidence, or a reasonable indication of the involvement of the aforementioned functions.

II.9.3. Opinion of the Dispute Chamber

202. The Dispute Chamber understands from the submitted documents and the arguments put forward by the respondent that BISNODE BELGIUM had already initiated an extensive implementation process prior to the entry into force of the GDPR²¹⁷, and that the then DPO and his successor were involved in the drafting of policy documents related to the processing of personal data by the data controller. Additionally, the Dispute Chamber notes that the Inspection Service, in the context of the

217 Document 32 as provided by the respondent to the Inspection Service in the context of the investigation.

Decision on the Merits 07/2024 - 85/114

The investigation did not pose any additional questions to the respondent in order to obtain further evidence regarding the involvement of the DPO in specific projects.

In this regard, the Dispute Chamber therefore does not have sufficient elements to support the violation of Article 38.1 and 39.1 GDPR as held by the Inspection Service. Consequently, the Dispute Chamber cannot uphold the violations of the GDPR regarding the involvement of the DPO as determined by the Inspection Service.

II.10. Additional Considerations Regarding the Inspection Report

203. The inspection report lists three circumstances that would play a role for the Inspection Service in assessing the severity of the alleged violations.

- i. The respondent systematically and on a large scale processes personal data as a core activity;
- ii. The nature of the established violations is serious, and the respondent does not fulfill its promises;
- iii. The register of processing activities is incomplete and unclear.

204. The respondent believes that these circumstances are incorrectly presented. Firstly, the respondent cannot be blamed for processing personal data on a large scale as long as it complies with the rules regarding the protection of personal data. Furthermore, the respondent emphasizes that the scope and extent of the processing are not further qualified or characterized in the report of the Inspection Service, which merely states that the respondent presents itself as a specialist in direct marketing.

On the other hand, the Dispute Chamber judges that the determination of large-scale data processing should not merely be considered as an aggravating circumstance but indeed as part of the balancing test between the fundamental rights and freedoms of the data subjects, on the one hand, and the interests presented by the respondent and its clients, on the other hand.

205. Secondly, the respondent argues that the investigation report would confuse the violations as such with the aggravating circumstances of those same violations. The Inspection Service would not have presented any concrete circumstance, apart from the alleged violation itself, on the basis of which the severity of the violation could be assessed. Regarding the privacy statements on the website, the respondent disputes the accusations, which are not even demonstrated, that the respondent intentionally sought to mislead the trust of the data subjects.

Decision on the Merits 07/2024 - 86/114

The Dispute Chamber has already ruled in the present decision that there are sufficient indications that

the respondent consciously opted to place the information obligation regarding the data subjects primarily on its partners (who provide the personal data) and its clients (who receive the personal data). The Dispute Chamber has also concluded that such conduct is incompatible with the provisions of Article 14 GDPR²¹⁸.

206. Thirdly, the respondent claims that it cannot reasonably be disputed that it has implemented robust and adequate internal procedures, policies, and rules to protect personal data, nor that the respondent has made a good faith effort to comply with the GDPR both in spirit and letter. The respondent refers to its choice to voluntarily cease the activities of Data Delivery — a choice that had not yet been announced at the time the inspection report was issued — as well as to limit its current activities to data analysis and services that do not involve acting as a data broker. This reorientation should, according to the respondent, play a decisive role in assessing the severity of the alleged violations as well as the good faith of the respondent.

The Dispute Chamber will take into account the fact that the respondent decided to cease a number of services after the acquisition in the context of the subsequent determination of sanctions and corrective measures.

207. Fourthly, the respondent claims that, even without knowledge of the investigation report and before it was issued on May 20, 2021, it made several attempts to contact the Inspector General and the then-chairman of the GBA to inform them of this significant adjustment to the business activities and to engage in a constructive dialogue with them as the respondent had also done with the CNIL in France. However, the respondent believes that it was unsuccessful in obtaining a meeting with the GBA.

In this regard, the Dispute Chamber reminds that a party during an ongoing investigation cannot, in principle, demand to be heard, given the specific powers granted to the Inspection Service²¹⁹. The Market Court also ruled in its judgment of March 1, 2023, that the GBA, as a supervisory authority under Article 52 GDPR, is fully independent in the execution of the tasks and powers assigned to it under the GDPR²²⁰.

²¹⁸ See paragraph 166 in this decision

²¹⁹ See point 4.1.e) of the Charter of the Inspection Service, available on the GBA website:

<https://www.gegevensbeschermingsautoriteit.be/publications/charter-van-de-inspectiedienst.pdf>.

²²⁰ Court of Appeal Brussels (Market Court section), X v. GBA, Judgment 2022/AR/1085 of March 1, 2023, p. 7.

Decision on the Merits 07/2024 - 87/114

III. Sanctions and Corrective Measures

III.1. Established Violations

208. The Dispute Chamber is of the opinion that there are serious violations of the fundamental rights of the parties involved in this case. The Dispute Chamber further holds that these violations must be categorized into separate conducts. More specifically, the Dispute Chamber identifies violations of the following provisions of the GDPR, concerning three different conducts of the data controller, outlined below:

i.

Violation of Article 5 GDPR; Article 6 GDPR; Article 12 GDPR; Article 14 GDPR; Article 24 GDPR and Article 25 GDPR — The Dispute Chamber finds that the respondent indirectly collected personal data from the parties involved on a large scale and for a period of at least 15 years, without providing individual information to the parties from whom the respondent nonetheless had contact details, for both Data Delivery and Data Quality services.

The processing activities associated with these services are, in fact, in violation of Article 5.1 GDPR, and more specifically, the principle of lawfulness, fairness, and transparency (5.1.a) GDPR), the principle of data minimization (5.1.c) GDPR), and the principle of storage limitation (5.1.e) GDPR). By opting for indirect information provision to the parties involved, either 'upstream' through the respondent's data sources or 'downstream' through the respondent's clients when they first communicate with the parties involved, the respondent also violates its information obligation as laid down in Articles 14.1 and 14.2 GDPR, read in conjunction with Article 12.1 GDPR.

For the processing of personal data without proactive information provision to the parties involved, the respondent cannot lawfully rely on its legitimate interests or those of its clients (6.1.f) GDPR), as these interests do not outweigh the interests and fundamental rights of the parties involved, and the data processing activities that support these interests do not fall within the reasonable expectations of the parties involved. Furthermore, the respondent has violated Article 25 GDPR due to the lack of appropriate technical and organizational measures to effectively ensure compliance with the data protection principles, particularly the principles of data minimization and storage limitation. Since the respondent ultimately fails to sufficiently demonstrate — as required by the accountability obligation that rests on every data controller — that the processing of personal data of the parties involved in the aforementioned services occurred in accordance with the principles of data protection and with respect for the fundamental rights and freedoms of the parties involved, the respondent has also committed a violation of Article 5.2 GDPR, read in conjunction with Article 24.1 GDPR.

ii.

Violation of Article 12 GDPR as well as Article 15 GDPR — The Dispute Chamber finds that the respondent has inadequately handled the requests for access from the complainants, in violation of the obligation to facilitate the rights of the parties involved and the requirement to provide the parties involved with complete access and information regarding the processing of their personal data.

The respondent has opted to provide its written responses to the complainants' access requests by post rather than in a commonly used electronic form, which constitutes a violation of Articles 12.1 and 12.2 GDPR as well as Article 12.3 in conjunction with Article 15.3 GDPR. Additionally, the respondent has failed to mention the source of the statistical information regarding the complainants in the responses to their access requests, resulting in the respondent also violating Article 15.1.g) GDPR.

Finally, it is established that the respondent, due to serious negligence, has violated Article 15.1.c) GDPR, read in light of the guidelines of the Article 29 Working Party and the EDPB as well as the case law of the Court of Justice in its judgment C-154/21, by only disclosing the categories of recipients in the response to the complainants, although the respondent was able to identify the specific recipients.

iii.

Violation of Article 30 GDPR — Finally, the respondent has failed to include a description of the categories of data subjects and the processed personal data in its register of processing activities, as is required by Article 30.1.c) GDPR. The respondent has also violated Article 30.2.a) GDPR by failing to document the identity of the data subjects in the centralized processing register, in which the processing activities as a data controller as well as in the capacity of processor are documented.

Decision on the Merits 07/2024 - 89/114

data controllers to be mentioned for whom the respondent acts as a processor.

209. Pursuant to Article 100 of the WOG, the Dispute Chamber has the authority to:

“1° dismiss a complaint;

2° order the discontinuation of prosecution;

3° order a suspension of the ruling;

4° propose a settlement;

5° formulate warnings and reprimands;

6° order compliance with the requests of the data subject to exercise their rights;

7° order that the data subject be informed of the security issue;

8° order that the processing be temporarily or permanently frozen, limited, or prohibited;

9° order that the processing be brought into compliance;

10° order the rectification, limitation, or deletion of data and notification thereof to the recipients of the data;

11° order the withdrawal of the recognition of certification bodies;

12° impose penalties;

13° impose administrative fines;

14° order the suspension of cross-border data flows to another State or an international institution;

15° transfer the file to the public prosecutor's office in Brussels, which will inform it of the action taken on the file;

16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection

Authority.”

III.2. Measures Imposed by the Dispute Chamber

III.2.1. Corrective Measures to Bring Processing into Compliance with the GDPR

210. Pursuant to Article 58.2.d) GDPR as well as Article 100, § 1, 8° and 9° WOG, the Dispute Chamber orders the respondent to cease and maintain the cessation of the violation of Article 5.1 GDPR, Article 6.1 GDPR, Article 12.1 GDPR, as well as Article 14.1 and 14.2 GDPR, in the context of the B2B Data Quality service, until the processing is brought into compliance with the GDPR.

The respondent can comply by ceasing the processing of personal data in the Spectron database, before proactively and individually informing the data subjects whose contact details the respondent possesses about the processing of their personal data by the respondent. The respondent must also provide the data subjects with the opportunity to object to the processing of their personal data in a simple and effective manner for a period of 3 months from the provision of information, before resuming the processing.

Regarding the other categories of data subjects for whom the respondent does not possess contact details, the Dispute Chamber decides to permanently prohibit the processing of their personal data due to the lack of a lawful basis for processing.

Given that the respondent has already destroyed the CMX (including Permesso) database on July 30, 2021, the B2C Data Quality service has not been offered since that date, and the B2C Data Delivery service has been completely discontinued since October 30, 2021, the Dispute Chamber finds it unnecessary in the present case to order the respondent to bring the data processing related to the aforementioned services into compliance with the GDPR.

211. Pursuant to Article 58.2.d) GDPR as well as Article 100, § 1, 9° WOG, the Dispute Chamber orders the respondent to remedy the violation of Article 5.1 and 5.2 GDPR, Article 24.1 GDPR, as well as Article 25.1 and 25.2 GDPR, by taking appropriate technical and organizational measures so that the retention period of the personal data — which the respondent may only further process on the condition that the previous order has been complied with — is proportionate to the purposes of the processing, and so that the respondent, in the context of its current Data Quality service, only retains the most current personal data of data subjects, as required by the principle of data minimization. Additionally, the Dispute Chamber orders the respondent to supplement or adjust the current documentation related to the processing of personal data and compliance with the GDPR, in order to take into account the actual circumstances under which the respondent processes personal data and thus fulfill the accountability obligation that rests on the respondent.

212. Pursuant to Article 58.2.d) GDPR as well as Article 100, § 1, 9° WOG, the Dispute Chamber orders the respondent to remedy the violation of Article 30.1 and 30.2 GDPR by supplementing the register of processing activities with a clear description of the categories of personal data and data subjects, as well as by naming all data controllers for whom the respondent believes it acts as a processor.

223 Response from the respondent to the sanction form dated November 24, 2023, p. 3, (ii), (iii) and (iv) a.

224 Response from the respondent to the sanction form dated November 24, 2023, p. 3, (iv) d.

Decision on the Merits 07/2024 - 91/114

213. Pursuant to Article 58.2(d) GDPR as well as Article 100, § 1, 9° WOG, the Dispute Chamber orders the respondent to submit proof of the implementation of the aforementioned compliance measures to the Dispute Chamber within a period of three months following the notification of the decision.

III.2.2. Administrative Fines

214. In addition to the corrective measure to bring the processing into compliance with Articles 5, 6, 12, 14, 15, 24, 25, and 30 GDPR, the Dispute Chamber also decides to impose administrative fines, which are not intended to terminate a violation that has occurred, but are imposed with a view to a robust enforcement of the rules of the GDPR. As is clearly stated in Recital 148 GDPR²²⁵, the GDPR indeed establishes that in the case of any serious infringement — including a first finding of an infringement — penalties, including administrative fines, shall be imposed in addition to or instead of appropriate

measures. In the same vein, the CJEU has recently confirmed²²⁶ that “the principles, prohibitions, and obligations laid down in the GDPR are particularly directed at the ‘controllers’, who — as emphasized in Recital 74 of the GDPR — are responsible for any processing of personal data carried out by or on their behalf and who therefore must not only take appropriate and effective measures but must also be able to demonstrate that their processing activities comply with the GDPR, which includes ensuring that the measures they have taken are effective in guaranteeing that compliance. When an infringement referred to in Article 83, paragraphs 4 to 6, of this regulation has occurred, this responsibility forms the basis for imposing an administrative fine on the controller in accordance with that Article 83.”

215. Regarding the administrative fine that may be imposed under Article 83 of the GDPR and Articles 100, 13° and 101 WOG, Article 83.1 and 83.2 GDPR stipulates:

“1. Each supervisory authority shall ensure that the administrative fines imposed under this Article for the infringements referred to in paragraphs 4, 5, and 6 of this regulation are effective, proportionate, and dissuasive.

225 Recital 148 GDPR states: “In order to ensure a stronger enforcement of the rules of this regulation, penalties, including administrative fines, should be imposed for any infringement of the regulation, in addition to or instead of appropriate measures imposed by the supervisory authorities under this regulation. In the case of a minor infringement or if the expected fine would impose an excessive burden on a natural person, a reprimand may be chosen instead of a fine. However, account must be taken of the nature, seriousness, and duration of the infringement, the intentionality of the infringement, the damage-limiting measures, the degree of responsibility, any previous relevant infringements, the manner in which the infringement became known to the supervisory authority, compliance with measures taken against the controller or processor, adherence to a code of conduct, and any other aggravating or mitigating factors. The imposition of penalties, including administrative fines, must be subject to appropriate procedural safeguards in accordance with the general principles of Union law and the Charter, including effective judicial protection and a fair trial” (own emphasis).

226 CJEU, December 5, 2023, C-807/21, Deutsche Wohnen SE v. Staatsanwaltschaft Berlin (ECLI:EU:C:2023:950), para. 38.

Decision on the Merits 07/2024 - 92/114

2. Administrative fines shall be imposed, depending on the circumstances of the specific case, alongside or instead of the measures referred to in Article 58, paragraph 2, under a) to h) and under j). In deciding whether to impose an administrative fine and determining its amount, the following shall be duly considered for each specific case:

- a) the nature, seriousness, and duration of the infringement, taking into account the nature, scope, or purpose of the processing in question as well as the number of affected data subjects and the extent of the damage suffered by them;
- b) the intentional or negligent nature of the infringement;
- c) the measures taken by the data controller or the processor to mitigate the damage suffered by data subjects;
- d) the degree of responsibility of the data controller or the processor, considering the technical and organizational measures they have implemented in accordance with Articles 25 and 32;
- e) previous relevant infringements by the data controller or the processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate its possible negative effects;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether, and if so to what extent, the data controller or the processor reported the infringement;
- i) compliance with the measures referred to in Article 58, paragraph 2, insofar as they have previously been taken against the data controller or the processor in question regarding the same matter;
- j) adherence to approved codes of conduct in accordance with Article 40 or to approved certification mechanisms in accordance with Article 42; and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as

financial gains made or losses avoided, whether or not directly resulting from the infringement.”

216. The Dispute Chamber points to the guidelines on the calculation of administrative fines²²⁷ adopted by the EDPB on May 24, 2023, following a public consultation, which the Dispute Chamber takes into account for the determination of the fine amounts in the present case.

217. It is important to place the shortcomings of the respondent in their context to determine the most appropriate sanctions. In this regard, the Dispute Chamber will take into account

227 EDPB — Guidelines 04/2022 on the calculation of administrative fines under the GDPR (v2.1, May 24, 2023).

Decision on the Merits 07/2024 - 93/114

with all relevant circumstances of the case, including — within the limits it indicates below — the response of the respondent to the intended sanctions communicated to him via the sanction form²²⁸.

218. The Dispute Chamber wishes to point out that it is its sovereign responsibility as an independent administrative authority — taking into account the relevant articles of the GDPR and the WOG — to determine the appropriate corrective measure(s) and sanction(s). This follows from Article 83 of the GDPR itself, but the Market Court has also emphasized in its case law the existence of a broad discretionary power of the Dispute Chamber regarding the choice of sanction and its extent, as highlighted in its judgments of July 7, 2021, September 6, 2023, and December 20, 2023²²⁹.

219. The Dispute Chamber will demonstrate below that the main violations committed by the respondent are by no means minor infringements. The fact that this is a first determination of a violation of the GDPR committed by the respondent does not in any way detract from the Dispute Chamber's ability to impose an administrative fine in accordance with Article 58.2.i) GDPR. The instrument of administrative fines is by no means solely aimed at terminating violations; the GDPR and the WOG provide for a number of corrective measures, including the orders mentioned in Article 100, § 1, 8° and 9° WOG.

220. In the following paragraphs, the Dispute Chamber justifies the imposition of an administrative fine in concrete terms for each of the three behaviors of the respondent distinguished above, taking into account Article 83 GDPR and the case law of the Market Court²³⁰, as well as the criteria established in the EDPB guidelines on the calculation of administrative fines²³¹.

III.2.2.1.

Annual Turnover of the Data Controller

221. In order to impose fines that are effective, proportionate, and deterrent, the supervisory authorities must apply the definition of the term “enterprise” as established by the Court of Justice of the European Union for the application of Articles 101 and 102 TFEU, namely that the term enterprise is understood as an economic unit that can be formed by the parent company and all involved subsidiaries. According to EU law and case law, an enterprise must therefore be viewed as an economic unit

228 Sanction form dated October 31, 2023; Response of the respondent to the sanction form dated November 24, 2023.

229 Court of Appeal Brussels (Market Court section), X v. GBA, Judgment 2021/AR/320 of July 7, 2021, pp. 37-47; Court of Appeal Brussels (Market Court section), X v. GBA, Judgment 2020/AR/1160 (2023/5782) of September 16, 2023, p. 34; Court of Appeal Brussels (Market Court section), X v. GBA, Judgment 2023/AR/817 (2023/8986) of December 20, 2023, para. 61 et seq.

230 Court of Appeal Brussels (Market Court section), X v. GBA, Judgment 2020/1471 of February 19, 2020.

231 EDPB – Guidelines 04/2022 on the calculation of administrative fines under the GDPR (v2.0, May 24, 2023).

Decision on the Merits 07/2024 - 94/114

exercising commercial/economic activities, regardless of its legal form²³².

According to the case law of the CJEU, there is a rebuttable presumption that a parent company indeed exerts decisive influence over the behavior of a subsidiary in which it holds 100% of the capital²³³.

222. Furthermore, Articles 83.4 and 83.6 GDPR stipulate that the total global annual

turnover of the preceding financial year must be used for the calculation of administrative fines, also to prevent the fine from having a disproportionately heavy impact on the defendant. In this regard, it is stated that the term “preceding” must be interpreted in accordance with the case law of the CJEU in competition law, so that the relevant event for the calculation is the fine decision of the supervisory authority, and not the time of the sanctioned infringement²³⁴.

223. When the Dispute Chamber, based on the powers it has under Article 58.2 GDPR, decides to impose an administrative fine on the defendant — who is currently part of BLACK TIGER GROUP²³⁵ in the sense of Articles 101 and 102 TFEU — in accordance with Article 83 GDPR, the Dispute Chamber must therefore base its calculation of the administrative fines for the infringements referred to in Articles 83.4 to 83.6 GDPR on the concept of “undertaking” in the sense of those Articles 101 and 102 TFEU²³⁶.

224. In accordance with the above, the Dispute Chamber therefore concludes that it can rely on the consolidated turnover figures of the financial year 2022 of BLACK TIGER BELGIUM as well as of the parent company [the parent company Z1] (BLACK TIGER GROUP) — now “[the parent company Z2]” —, namely [...] for determining the amount of the administrative fine it intends to impose on the defendant. The Dispute Chamber refers to:

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the report with registration number [...], as filed with the Registry of the Commercial Court in Paris on [...], which shows that [the

232 Recital 150 of the GDPR; EDPB – Guidelines for the application and determination of administrative fines under

the GDPR (WP 253), pp. 6-7. The definition in the case law of the Court of Justice of the European Union is: “the

concept of undertaking encompasses any entity engaged in an economic activity, regardless of its legal form and the

manner in which it is financed” (CJEU, C-41/90, Höfner and Elser/Macrotron, (ECLI:EU:C:1991:161, para. 21). Under the

concept of undertaking “must be understood an economic unit, even if this economic unit is legally formed by

different natural or legal persons” (CJEU, C-217/05, Confederación Española de Empresarios de Estaciones

de Servicio, ECLI:EU:C:2006:784, para. 40).

233 CJEU, September 10, 2009, C-97/08 P, Akzo Nobel nv et al. v. Commission, ECLI:EU:C:2009:536), paras. 60-61.

234 EDPB – Guidelines 04/2022 on the calculation of administrative fines under the GDPR (v2.0, May 24, 2023), para. 131. See

also CJEU, December 5, 2023, C-807/21, Deutsche Wohnen SE v. Staatsanwaltschaft Berlin (ECLI:EU:C:2023:950), paras. 55

to 58.

235 See para. 37 in this decision.

236 CJEU, December 5, 2023, C-807/21, Deutsche Wohnen SE v. Staatsanwaltschaft Berlin (ECLI:EU:C:2023:950), para. 59.

Decision on the Merits 07/2024 - 95/114

[Parent Company] — now “[Parent Company Z2]” — owns 100% of the capital of BLACK TIGER BELGIUM²³⁷;

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the annual accounts of BLACK TIGER BELGIUM as filed with the National Bank of Belgium (NBB) on June 19, 2023, showing a revenue of [...]; and

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the annual accounts of [Parent Company Z1] — now “[Parent Company Z2]” — as filed with the Registry of the Commercial Court in Paris²³⁸, showing a revenue of [...].

225. The Dispute Chamber specifies in this regard that at the time of sending the sanction form dated October 31, 2023, it did not yet have the revenue figures for the year 2022 and therefore had to take into account the revenue figures from 2021. Since the revenue of [Parent Company Z1] — of which it has been publicly known since November 16, 2023, that the name was changed to “[Parent Company Z2]”, which the respondent also did not mention in his response to the sanction form — has slightly increased for the year 2022 compared to 2021, the Dispute Chamber will calculate its administrative fines based on the most recent available revenue figures.

Since the respondent has failed to contest the revenue figures as mentioned in the sanction form, if applicable, using more recent annual accounts, the Dispute Chamber assumes that there are no other revenue figures available than those it considers in the present decision.

III.2.2.2.

First Conduct — Unlawful and Unfair Processing of Personal Data, without Proactively, Individually, and Transparently Informing the Data Subjects, and Lack of Safeguards for Compliance with the Core Principles of the GDPR

Categorization in Abstract of the Violation under Article 83.4 to 83.6 GDPR

226. The Dispute Chamber has already decided that the respondent has committed a violation of Article 5 GDPR; Article 6 GDPR; Article 12 GDPR; Article 14 GDPR; as well as Article 24 GDPR and Article 25 GDPR through his first conduct. The Dispute Chamber rules that the first conduct is characterized by a single act comprising various violations,

237 Cf. Annex III.

238 [https://commandes.greffe-tc-paris.fr/fr/societe/\[...\]](https://commandes.greffe-tc-paris.fr/fr/societe/[...]).

239 Sanction form dated October 31, 2023, p. 10; Response of the respondent to the sanction form dated November 24, 2023, p. 3-4.

Decision on the Merits 07/2024 - 96/114

which arise from a uniform will and are so closely connected spatially and temporally that they must be regarded as a single coherent conduct.

227. Indeed, due to the conscious choice not to proactively or individually inform the data subjects about the indirect collection of their personal data from third parties, as well as about the subsequent processing of their personal data in the context of commercial services, over a period of 15 years and in violation of the core principles of minimal data processing and storage limitation, the respondent cannot validly invoke his legitimate interests or those of his data sources or customers as a basis for the data processing.

228. For a violation of the fundamental principles regarding processing in accordance with Articles 5 and 6 GDPR, as well as the rights of data subjects in accordance with Articles 12 and 14 GDPR, the Dispute Chamber may impose an administrative fine of up to 20,000,000 EUR or, for an enterprise, up to 4% of the total worldwide annual revenue in the preceding financial year, if this figure is higher. A violation of the aforementioned provisions consequently gives rise to the highest monetary fines in accordance with Article 83.5 GDPR.

Severity of the Violations in the Present Case

229. In accordance with the guidelines of the EDPB and the GDPR, supervisory authorities must duly take into account the nature, severity, and duration of the violation, considering the nature, scope, or purpose of the relevant data processing, as well as the number of data subjects affected and the extent of the damage they have suffered (Article 83.2.a) GDPR); the intentional or negligent character of the infringement (Article 83.2.b) GDPR); and the categories of personal data to which the infringement relates (Article 83.2.g) GDPR).

230. Nature, Severity, and Duration of the Violation (Article 83.2.a) GDPR) — Regarding the severity of the violation, the Dispute Chamber notes that the principles of lawfulness (Article 5.1.a) and Article 6 GDPR) and transparency (Articles 12 and 14 GDPR) are fundamental principles of the protection guaranteed by the GDPR.

The accountability principle laid down in Article 5.2 GDPR and further elaborated in Article 24 GDPR is

also central to the GDPR and reflects the paradigm shift that the GDPR brings about, namely a shift from a regime based on prior declarations and authorizations by the supervisory authority to a greater accountability and responsibility of the data controller. Compliance with his Decision on the Merits 07/2024 - 97/114

obligations of the data controller and its ability to demonstrate compliance have therefore only become more important.

A valid legal basis and transparent information are core elements of the fundamental right to data protection. The principle of transparency is indeed the "gateway" that enhances the control of data subjects over their personal data and enables the exercise of other rights granted to data subjects by the GDPR, such as the right to object and the right to erasure. Breaches of these core principles therefore constitute serious infringements, which can be punished with the highest administrative fines provided for by the GDPR.

The contested processing activities in the context of the Data Delivery and Data Quality services that underlie this decision were, and still are, part of the core activities of the respondent, which compels the Dispute Chamber to give more weight to the infringements of the GDPR arising from these core activities.

Moreover, the respondent has acknowledged in policy documents that the processing of personal data could have negative consequences for the data subjects, such as annoyance, irritation, or stress, but also the feeling that they had to adjust their lifestyle if they wanted to prevent any processing of their personal data by the respondent and its clients.²⁴⁰ The Dispute Chamber has also emphasized that the contested processing activities could potentially lead to invisible discrimination based on the profiling data compiled by the respondent.²⁴¹

Regarding the scope of the processing, the EDPB guidelines for data protection impact assessments recommend considering not only the number of data subjects but also the volume of data, the duration or permanent nature of the data processing, as well as the geographical scope of the processing to determine whether personal data is processed on a large scale.²⁴² In this case, the Dispute Chamber first notes that the activities of the respondent cover the entire Belgian market. The fact that the respondent is a significant market player and that the contested processing activities also pertained to two different markets (B2C and B2B) leads the Dispute Chamber to conclude that there is indeed large-scale processing of personal data in this instance.

As for the duration of the infringement, the Dispute Chamber notes that the respondent, after the acquisition of BISNODE BELGIUM, decided to...

240 See paragraph 129 in this decision.

241 See paragraphs 129-133 in this decision.

242 Article 29 Data Protection Working Party – Guidelines on Data Protection Impact Assessments and Determining Whether a Processing Activity "Likely Results in a High Risk" under Regulation 2016/679 (WP248, rev01, October 4, 2017), p. 12.

Decision on the Merits 07/2024 - 98/114

to cease processing activities associated with Data Delivery. However, this determination does not prevent²⁴³ the fact that the personal data was processed in a non-transparent and unlawful manner long before the acquisition of BISNODE BELGIUM by BLACK TIGER, and that the respondent remains responsible for the processing of the acquired BISNODE BELGIUM, including the processing activities that continued due to contractual agreements even after the official cessation date. Also considering the established retention period of 15 years and the fact that the respondent still publicly announces on its website²⁴⁴ that the company "has been active [since the early 1970s] in the Belgian and European market" and "has built up more than 30 years of expertise in data quality and data management" when it was part of "various international groups ([...] and Bisnode), before becoming part of the Black Tiger group," the Dispute Chamber concludes that the contested processing occurred for at least 15 years, up to and including July 30, 2021²⁴⁵.

231. Negligence or Intentional Nature of the Violation (Article 83.2.b) GDPR) — The Dispute Chamber reminds that "intent" generally includes both knowledge and willfulness regarding the characteristics of an offense, while "unintentional" means that there was no intent to cause the violation, although the

data controller or processor has violated the duty of care prescribed by law²⁴⁶. In other words, two cumulative elements are required to consider a violation as intentional, i.e., knowledge of the breach and intent regarding this act²⁴⁷.

Regarding the question of whether the violation was committed intentionally or out of negligence by a data controller, the CJEU clarified in its recent judgment that a supervisory authority may impose an administrative fine for a violation referred to in Articles 83.4 to 83.6 GDPR, if it is demonstrated that the data controller committed this violation intentionally or out of negligence. Therefore, a condition for imposing such a fine is that the violation in question was committed culpably²⁴⁸.

Concerning the intentionality component, the Dispute Chamber also reminds that the CJEU has established a high threshold for an act to be considered intentional.

243 See also paragraph 114 in this decision.

244 <https://www.blacktigerbelgium.tech/wie-zijn-wij/?lang=nl>, consulted on December 15, 2023.

245 On this date, the CMX database was destroyed according to the respondent.

246 Article 29 Data Protection Working Party – Guidelines on the application and setting of administrative fines under Regulation (EU) 2016/679 (WP253, October 3, 2017), p. 12.

247 See also EDPB – Binding Decision 1/2023 on the dispute submitted by the IE SA on data transfers by Meta Platforms Ireland Ltd (Facebook), paragraph 103, available at https://edpb.europa.eu/system/files/2023-05/edpb_bindingdecision_202301_ie_sa_facebooktransfers_en.pdf.

248 CJEU, December 5, 2023, C-807/21, Deutsche Wohnen SE v. Staatsanwaltschaft Berlin (ECLI:EU:C:2023:950), paragraph 75.

Decision on the Merits 07/2024 - 99/114

consider. Thus, the CJEU has ruled in criminal cases that there is “serious negligence” rather than “intent” when “the liable person commits a qualified breach of their duty of care that they should and could have taken into account given their status, knowledge, skills, and individual situation”²⁴⁹. Even though a company whose processing of personal data is at the core of its business activities is expected to take sufficient measures to protect personal data and to thoroughly recognize its obligations in this regard, such a qualified breach does not necessarily indicate that there is an intentional violation²⁵⁰.

In other words, this means that a data controller can also be penalized with an administrative fine under Article 83 GDPR for behavior falling within the scope of this regulation when this data controller could not have been unaware that their behavior constituted a breach, regardless of whether they were aware that they were violating the provisions of the GDPR²⁵¹.

In this case, the Dispute Chamber notes that BISNODE POLAND was fined by the Polish Data Protection Authority in 2019 for a breach of the information obligation²⁵². There is therefore no doubt that the respondent was aware of that decision but did not consider it necessary to subsequently provide information to Belgian data subjects from whom the respondent collected personal data indirectly, in a (more) proactive manner. Although the Dispute Chamber cannot definitively establish that the respondent intentionally violated Article 14 GDPR, there are nevertheless sufficient indications for the Dispute Chamber that, particularly considering the nature of the disputed processing activities, there is a high degree of negligence on the part of the respondent, who consciously opted to place their information obligation under Article 14 GDPR primarily on third parties.

The above results in the breach concerning the processing basis also not being of an intentional nature, as the respondent did indeed conduct a thorough analysis to determine which legal basis would be most suitable in this case. There is therefore no — apparent — intent on the part of the respondent to knowingly violate the GDPR by using an inappropriate processing basis, but at least there is a case of serious negligence.

232. Categories of personal data to which the breach relates (Article 83.2.g GDPR) — As previously established in this decision, the disputed processing relates not only to the contact details of data subjects but also to personal data that could be used to segment the data subjects for direct marketing-related purposes. The nature of the processed personal data thus includes various categories, including financial information (average income), housing, family composition, as well as socio-demographic and lifestyle data such as the social class to which the data subjects belong.

Although such personal data are prima facie not of a sensitive or special nature, the Dispute Chamber determines that they nonetheless belong to categories of personal data of such a nature that they can affect the privacy of data subjects and which data subjects would generally not reasonably expect to be collected indirectly by and subsequently processed by third parties.

Categorization in concreto of the severity of the violations and determination of the appropriate starting amount

233. Based on the evaluation of the criteria outlined above, the breach is deemed to be of minor, moderate, or high severity. These categories do not affect the question of whether or not a fine can be imposed.

- In calculating the administrative fine for breaches of minor severity, the supervisory authority will set the base amount for further calculation at an amount between 0 and 10% of the applicable legal maximum.
- In calculating the administrative fine for breaches of moderate severity, the supervisory authority will set the starting amount for further calculation at an amount between 10 and 20% of the applicable legal maximum.
- In calculating the administrative fine for breaches of high severity, the supervisory authority will set the starting amount for further calculation at an amount between 20 and 100% of the applicable legal maximum²⁵³.

253 EDPB – Guidelines 04/2022 on the calculation of administrative fines under the GDPR (v2.0, May 24, 2023), para. 60.

Decision on the Merits 07/2024 - 101/114

234. In this case, the Dispute Chamber finds that the violations of the legality, propriety, and transparency principles (Article 5.1.a) GDPR), as well as the accountability principle (Article 5.2 GDPR), in combination with the violations of the information obligation towards the data subjects (Article 12 in conjunction with Article 14 GDPR), are of high severity. Therefore, the Dispute Chamber must apply a theoretical starting amount for the further calculation of the administrative fine for the violations related to the first behavior (falling under Article 83.5 GDPR, with a high degree of severity) between 4,000,000 EUR and 20,000,000 EUR.

235. Based on the previous assessment of the circumstances in light of Article 83.2.a), b), and g) GDPR, the Dispute Chamber decides to consider a theoretical starting amount of 10,000,000 EUR.

236. Taking into account the minimum and maximum amounts established in the guidelines per level, on the one hand, and the relevant annual turnover of the data controller, on the other hand, the Dispute Chamber concretely decides to lower the final starting amount for the first category of violations (falling under Article 83.5 GDPR, with a high degree of severity) to an adjusted starting amount of 185,000 EUR.

Aggravating and Mitigating Factors

237. After assessing the nature, severity, and duration of the violation, as well as the intentional or negligent character of the violation and the categories of personal data involved, the supervisory authority must also take into account the remaining aggravating and mitigating factors, as listed under Article 83.2 GDPR.

238. Measures taken to mitigate the damage suffered by data subjects (Article 83.2.c) GDPR) — The Dispute Chamber takes into account the efforts made by the respondent to promote transparency towards the data subjects, through web pages as well as the mandatory mention of the identity of BISNODE BELGIUM, now BLACK TIGER BELGIUM, at the bottom of the direct marketing communications received by the data subjects from the customers of the respondent.

The Dispute Chamber also considers the initiative of the respondent to cease the Data Delivery activities and to destroy the CMX database prior to the substantive treatment by the Dispute Chamber following the acquisition of BISNODE BELGIUM.

254 See paragraphs 230 to 232 in this decision.

255 EDPB – Guidelines 04/2022 on the calculation of administrative fines under the GDPR (v2.0, May 24, 2023), paragraph 65.

256 Response of the respondent to the sanction form dated November 24, 2023, p. 1, (i).

Decision on the Merits 07/2024 - 102/114

239. The extent to which the respondent is responsible given the technical and organizational measures he has implemented in accordance with Articles 25 and 32 GDPR (Article 83.2.d) GDPR) — In the context of the substantive procedure, and particularly during the hearing on February 22, 2023, the respondent has consistently maintained that the information provided by the recipients of the personal data, being the customers of BLACK TIGER BELGIUM, was sufficient to meet the information and transparency obligations. It is also established that BLACK TIGER BELGIUM bears full responsibility after the acquisition for establishing an appropriate retention period for the processed personal data, as well as for compliance with the fundamental principles of the GDPR in the context of continued data processing. For these reasons, the Dispute Chamber finds it proven that BLACK TIGER BELGIUM can be held responsible for the further processing of personal data of data subjects, including the complainants, after the acquisition of BISNODE BELGIUM.

However, considering the submitted documents as well as the defenses presented, the Dispute Chamber is not sufficiently convinced that the respondent has taken appropriate technical and organizational measures, despite having sufficient resources and influence to ensure compliance with the fundamental principles of the GDPR — such as the principles of storage limitation and data minimization.

240. Previous relevant violations by the data controller or the processor (Article 83.2.e) GDPR) — Although the facts in the present case bear strong similarities to the circumstances in the decision regarding BISNODE POLAND by the Polish supervisory authority, the Dispute Chamber takes into account the fact that BISNODE BELGIUM, now BLACK TIGER BELGIUM, was not found guilty of previous violations of the GDPR.

241. The extent to which there has been cooperation with the supervisory authority to remedy the violation and mitigate its possible negative consequences (Article 83.2.f) GDPR) — The Dispute Chamber notes that the respondent, through a letter dated April 27, 2021, from the DPO of BISNODE BELGIUM addressed to the Inspector General, communicated his position regarding the complaints of the complainants at an early stage of the procedure. The Dispute Chamber also acknowledges the willingness of the respondent, who provided extensive policy documents to the Inspection Service during the investigation and expressed readiness to answer further questions from the Inspection Service.

242. Other aggravating circumstances (Article 83.2.k) GDPR) — The Dispute Chamber first takes into account the fact that the respondent made a profit arising from the unlawful processing as an aggravating circumstance. The respondent's argument that the Dispute Chamber should not consider the business loss of...

Decision on the Merits 07/2024 - 103/114

BLACK TIGER BELGIUM in 2022, following the cessation of Data Delivery activities, is insufficient in this regard as the adjusted starting amount already adequately accounts for the business loss incurred in 2022. Furthermore, the Dispute Chamber notes that the respondent has consistently maintained in both his written defenses and during the hearing that BLACK TIGER BELGIUM was in no way obliged to inform the data subjects directly and individually about the processing, although Article 14 GDPR prescribes that communication to the data subjects falls under the responsibility of the data controller and should, in principle, be proactive.

Decision of the Dispute Chamber regarding the first infringement

243. The entirety of the elements outlined above justifies an effective, proportionate, and deterrent sanction as referred to in Article 83 GDPR, taking into account the assessment criteria specified therein. The Dispute Chamber points out for the record that the other criteria of Article 83.2 GDPR in this case are not of such nature that they would lead to a different administrative fine than that which the Dispute Chamber has established in the context of this decision.

244. Given the previous assessment of the relevant documents as well as the circumstances specific to this case, the Dispute Chamber finds it appropriate to impose an administrative fine of 129,500 EUR on the respondent pursuant to Article 58.2.i) GDPR as well as Articles 100, § 1, 13° WOG and 101 WOG, in accordance with Article 83.2 GDPR.

245. The Dispute Chamber judges that the serious negligence with which the respondent has processed and commercialized the personal data of the complainants as well as other data subjects for years, without respecting the core principles of the GDPR, and in particular failing to appropriately fulfill his information and transparency obligations towards the data subjects, must be penalized with an administrative fine. Furthermore, further processing of personal data, without proactive and individual information provision to the data subjects, must be effectively discouraged. The Dispute Chamber is finally of the opinion that the amount of the fine, which remains well below the maximum amount within the permissible range, is proportionate to the seriousness of the infringements contained in the first infringement.

Decision on the Merits 07/2024 - 104/114

III.2.2.3.

Second infringement — Failure to appropriately respond to the requests of the data subjects to exercise their right of access

Categorization in abstracto of the infringement under Articles 83.4 to 83.6 GDPR

246. The Dispute Chamber recalls that the right of access is included not only in Article 15 GDPR but also in Article 8.2 of the European Charter, thus forming one of the core elements of the fundamental right to data protection. By failing to mention all sources to the complainant, the respondent has infringed Article 15 GDPR. It is also established that the respondent deliberately failed to respond electronically to the access requests, which were submitted electronically, in violation of Article 12 in conjunction with Article 15 GDPR. Naturally, Article 15 GDPR must be read in conjunction with Article 12 GDPR, whereby the data controller must facilitate the exercise of rights granted to data subjects by the GDPR. Finally, the Dispute Chamber finds that the respondent has also violated Article 15 GDPR by merely communicating the categories of recipients in the response to the complainants, despite the fact that the respondent was then able to identify the specific recipients.

247. For an infringement of the rights of data subjects in accordance with Articles 12 and 15 GDPR, the Dispute Chamber may impose an administrative fine of up to 20,000,000 EUR or, for an undertaking, up to 4% of the total worldwide annual turnover in the preceding financial year, if this figure is higher, based on Articles 83.5.a) and 83.5.b) GDPR. A violation of the aforementioned provisions thus gives rise to the highest fines in accordance with Article 83.5 GDPR.

Severity of the infringements in the present case

248. In accordance with the GDPR, as explained in the guidelines of the EDPB, supervisory authorities must duly take into account the nature, severity, and duration of the infringement, considering the nature, scope, or purpose of the relevant data processing, as well as the number of data subjects affected and the extent of the damage suffered by them (Article 83.2.a) GDPR); the intentional or negligent character of the infringement (Article 83.2.b) GDPR); and the categories of personal data affected by the infringement (Article 83.2.g) GDPR).

249. Nature, severity, and duration of the infringement (Article 83.2.a) GDPR) — The right of access constitutes the gateway and thus also the cornerstone for the exercise of other rights provided for by the GDPR, such as the right to object to the processing of personal data (Article 21 GDPR) and the so-called right to be forgotten (Article 17 GDPR).

Decision on the Merits 07/2024 - 105/114

GDPR). It is therefore of utmost importance that data subjects exercising their right of access actually obtain access to all personal data concerning them that has been collected by the data controller, as well as receive concise, transparent, and understandable information about the circumstances under which their personal data is processed. By failing to provide complete and sufficiently detailed information to the data subjects, the data controller deprives them of the opportunity to exercise an appropriate degree of control over their own personal data.

Furthermore, the complainant rightly notes that the failure to provide all relevant information immediately after the first request unnecessarily complicates the further exercise of their rights by the data subjects. Although the Dispute Chamber finds that the respondent timely complied with the requests, the fact that the provided answers were not complete from the outset and that it was not easy for the data subjects to respond to them — e.g., to contest the provided information or to request

further clarification — contributes to the unnecessary hindrance of the data subjects in exercising their rights.

250. Negligence or intentional nature of the infringement (Article 83.2.b) GDPR)²⁵⁷ — Regarding the manner in which the respondent provided the data subjects access to the processing of their personal data, and in particular by only mentioning the categories of recipients although the respondent must possess the specific identity of these recipients; by not disclosing the sources exhaustively; and by delivering the answers by post although the requests were submitted electronically, the Dispute Chamber finds it sufficiently proven that the respondent has violated Articles 12 and 15 GDPR due to serious negligence.

251. Categories of personal data to which the infringement relates (Article 83.2.g) GDPR) — As previously established in this decision, the contested processing involved not only the contact details of the data subjects but also various personal data that can subsequently be used to segment the data subjects for direct marketing-related purposes. The nature of the processed personal data therefore includes various categories, including financial information (average income), housing, family composition, as well as socio-demographic and lifestyle data such as the social class to which the data subjects belong.

Although such personal data is *prima facie* not of a sensitive or special nature, the Dispute Chamber judges that they nonetheless belong to categories of personal data that data subjects would generally not reasonably expect to be indirectly collected from and subsequently processed by third parties.

Categorization in concreto of the severity of the infringements and determination of the appropriate starting amount based on the annual turnover of the data controller

252. Based on the evaluation of the criteria outlined above, the infringement is deemed to be of low, medium, or high severity. These categories do not affect the question of whether or not a fine can be imposed.

- In calculating the administrative fine for infringements of low severity, the supervisory authority will establish the base amount for further calculation at an amount between 0 and 10% of the applicable legal maximum.
- In calculating the administrative fine for infringements of medium severity, the supervisory authority will establish the starting amount for further calculation at an amount between 10 and 20% of the applicable legal maximum.
- In calculating the administrative fine for infringements of high severity, the supervisory authority will establish the starting amount for further calculation at an amount between 20 and 100% of the applicable legal maximum²⁵⁸.

253. In this case, the Dispute Chamber finds that the infringements related to the right of access of the data subjects (Article 15 GDPR) are of medium severity. The Dispute Chamber must therefore use a theoretical starting amount for the further calculation of the administrative fine for the infringements related to the second behavior (falling under Article 83.5 GDPR, with medium severity) between 2,000,000 EUR and 4,000,000 EUR.

254. Based on the previous assessment of the circumstances in light of Article 83.2.a), b), and g) GDPR²⁵⁹, the Dispute Chamber decides to consider a theoretical starting amount of 2,800,000 EUR.

255. Taking into account the minimum and maximum amounts established in the guidelines per level, on the one hand, and the relevant annual turnover of the data controller, on the other hand, the Dispute Chamber decides in concreto to set the final starting amount for

258 EDPB – Guidelines 04/2022 on the calculation of administrative fines under the GDPR (v2.0, May 24, 2023), para. 60.

259 See paras. 230 to 232 in this decision.

Decision on the Merits 07/2024 - 107/114

to reduce the second category of infringements (falling under Article 83.5 GDPR, with moderate severity) to an adjusted starting amount of 51,800 EUR²⁶⁰.

Aggravating and Mitigating Factors

256. After assessing the nature, severity, and duration of the infringement, as well as the intentional or negligent character of the infringement and the categories of personal data involved, the supervisory

authority must also take into account the remaining aggravating and mitigating factors, as listed under Article 83.2 GDPR.

257. Degree of responsibility of the respondent given the technical and organizational measures they have implemented in accordance with Articles 25 (Article 83.2.d) GDPR) — It is established by the Dispute Chamber, and is not contested by the respondent, that BLACK TIGER BELGIUM is fully responsible for the management of the website, including the online contact form through which data subjects can exercise their rights against the respondent, as well as the manner in which requests from data subjects are granted, if applicable.

258. Other mitigating circumstances (Article 83.2.k) GDPR) — The Dispute Chamber establishes that the respondent offers a centralized contact form on its website, through which data subjects can submit their requests to exercise their rights under the GDPR. This demonstrates that the respondent indeed aims to facilitate the submission of requests by data subjects²⁶¹.

Furthermore, the Dispute Chamber believes that every data controller is always required to provide all specific information to data subjects who request it in the context of their request for access. However, the Dispute Chamber is aware that the CJEU has only confirmed after the disputed facts under which circumstances data controllers must disclose the exact identity or the categories of recipients.

Finally, the Dispute Chamber decides to take into account the efforts of the respondent, i.e., the fact that the respondent has indeed — although not fully or in a standard electronic form — and timely responded to the requests for access²⁶².

259. Other aggravating circumstances (Article 83.2.k) GDPR) — The above means that the respondent also determines which personal data, in this case identification and contact details, are collected and here establishes both the means and purposes of the processing. The Dispute Chamber, however, notes that the respondent collects not only the postal address of data subjects but also their electronic contact details, despite the fact that the respondent consciously chose to respond to requests exclusively by post. Thus, the respondent violates the principle of data minimization under Article 5.1.c) GDPR as well as the principle of data protection by design provided for in Article 25 GDPR. However, since this finding was not subjected to contradictory debate in the context of the substantive procedure, the Dispute Chamber decides not to increase the adjusted starting amount.

Decision of the Dispute Chamber regarding the second behavior

260. The entirety of the elements outlined above justifies an effective, proportionate, and deterrent sanction as referred to in Article 83 GDPR, taking into account the assessment criteria set forth therein. The Dispute Chamber points out for the sake of clarity that the other criteria of Article 83.2 GDPR in this case are not of such a nature that they would lead to a different administrative fine than that which the Dispute Chamber has established in the context of this decision.

261. Given the previous assessment of the relevant documents as well as the circumstances specific to this case, the Dispute Chamber finds it appropriate to impose an administrative fine of 41,440 EUR on the respondent pursuant to Article 58.2.i) GDPR as well as Articles 100, § 1, 13° WOG and 101 WOG, in accordance with Article 83.2 GDPR.

262. The Dispute Chamber deems it justified, given the specific circumstances as well as the conscious choice of the respondent regarding how requests from data subjects were handled, to impose an administrative fine aimed at appropriately sanctioning this behavior and to encourage the respondent not to grant requests to exercise rights conferred under the GDPR in such a manner in the future. The Dispute Chamber also believes that the amount of this fine, which remains well below the maximum amount within the permitted range, is proportionate to the severity of the infringements contained in the second behavior.

260 EDPB – Guidelines 04/2022 on the calculation of administrative fines under the GDPR (v2.0, May 24, 2023), para. 65.

261 Response from the respondent to the sanction form dated November 24, 2023, p. 2, (ii).

262 Ibid.

Decision on the Merits 07/2024 - 108/114

Decision on the Merits 07/2024 - 109/114

III.2.2.4.

Third Conduct — Failure to include a description of the categories of data subjects and the categories of personal data, as well as the identity of the data controllers for whom the respondent acts as a processor, in the processing register

Categorization in Abstracto of the Violation under Article 83.4 to 83.6 GDPR

263. The Dispute Chamber finds that the respondent has failed to include a description of the categories of data subjects and the processed personal data in its register of processing activities, in addition to merely mentioning these categories, as explicitly required by Article 30 GDPR.

Furthermore, the respondent has violated Article 30 GDPR by failing to document the identity of the data controllers for whom the respondent acts as a processor in the centralized processing register. In this regard, the Dispute Chamber reminds that the register of processing activities is an essential and central file that every data controller obligated under Article 30 GDPR must appropriately establish and maintain, and must be able to present to the supervisory authority upon request. This is also the reason why the EU legislator has explicitly provided for the possibility of imposing a fine for non-compliance with the aforementioned provision, unlike other policy documents that fall under Article 24 GDPR, for which no fine is provided under Article 83.4 GDPR or Article 83.5 GDPR.

264. For a breach of the obligations of the data controller and the processor in accordance with Article 30 GDPR, the Dispute Chamber may impose an administrative fine of up to EUR 10,000,000 or, for an undertaking, up to 2% of the total worldwide annual turnover in the preceding financial year, if that figure is higher.

Severity of the Violations in the Present Case

265. In accordance with the guidelines of the EDPB and the GDPR, the supervisory authorities must duly take into account the nature, severity, and duration of the violation, considering the nature, scope, or purpose of the relevant data processing, as well as the number of data subjects affected and the extent of the damage suffered by them (Article 83.2.a) GDPR); the intentional or negligent character of the infringement (Article 83.2.b) GDPR); and the categories of personal data affected by the infringement (Article 83.2.g) GDPR).

Decision on the Merits 07/2024 - 110/114

266. Nature, Severity, and Duration of the Violation (Article 83.2.a) GDPR) — The Dispute Chamber points out that, in order to effectively apply the obligations contained in the GDPR, it is essential that the data controller and processors maintain a complete and accurate overview of the processing of personal data they carry out. This register is primarily a tool to assist the data controller or processor in complying with the GDPR for the various data processing activities they perform, as the register makes the main characteristics of these activities visible. The Dispute Chamber is of the opinion that this processing register is an essential instrument in the context of the aforementioned accountability obligation (Article 5.2 GDPR and Article 24 GDPR) and that this register underlies all obligations imposed on the data controller and processor by the GDPR. It is therefore of utmost importance that this is complete and accurate.

267. Negligence or Intentional Nature of the Violation (Article 83.2.b) GDPR)263 — In the present case, the Dispute Chamber finds that the violation of Article 30 GDPR is due to serious negligence on the part of the data controller, considering the nature of the core activities of the respondent as well as the statements made by the respondent that its activities are in compliance with the GDPR.

Categorization in Concreto of the Severity of the Violations and Determination of the Appropriate Starting Amount Based on the Annual Turnover of the Data Controller

268. Based on the evaluation of the criteria outlined above, the violation is deemed to be of low, medium, or high severity. These categories do not affect the question of whether or not a fine can be imposed.

- In calculating the administrative fine for violations of low severity, the supervisory authority will set the base amount for further calculation at an amount between 0 and 10% of the applicable legal maximum.
- In calculating the administrative fine for violations of medium severity, the supervisory authority will set the starting amount for further calculation at an amount between 10 and 20% of the applicable legal maximum.

- In calculating the administrative fine for violations of high severity, the supervisory authority will set the starting amount for further

263 See paragraph 231 in this decision for a detailed explanation of the distinction between negligence and intent.

Decision on the Merits 07/2024 - 111/114

establishing the calculation at an amount between 20 and 100% of the applicable legal maximum²⁶⁴.

269. In this case, the Dispute Chamber determines that the violation regarding the register of processing activities (Article 30 GDPR) is of minor severity. Therefore, the Dispute Chamber must use a theoretical starting amount for the further calculation of the administrative fine for the violations related to the third behavior (falling under Article 83.4 GDPR, with a minor severity level) of at most 1,000,000 EUR.

270. Based on the previous assessment of the circumstances in light of Article 83.2.a), b), and g) GDPR²⁶⁵, the Dispute Chamber decides to consider a theoretical starting amount of 200,000 EUR.

271. Taking into account the minimum and maximum amounts established per level in the guidelines, on the one hand, and the relevant annual turnover of the data controller, on the other hand, the Dispute Chamber concretely decides to lower the final starting amount for the third category of infringements (falling under Article 83.4 GDPR, with a minor severity level) to an adjusted starting amount of 3,700 EUR²⁶⁶.

Aggravating and Mitigating Factors

272. After assessing the nature, severity, and duration of the infringement, as well as the intentional or negligent character of the infringement and the categories of personal data involved, the supervisory authority must also take into account the remaining aggravating and mitigating factors, as listed under Article 83.2 GDPR.

Given the specific nature of this violation, and in the absence of comments regarding this from the respondent, the Dispute Chamber does not take any further aggravating or mitigating circumstances into account.

Decision of the Dispute Chamber regarding the third behavior

273. The entirety of the elements outlined above justifies an effective, proportionate, and deterrent sanction as referred to in Article 83 GDPR, taking into account the assessment criteria specified therein. The Dispute Chamber points out for the sake of clarity that the other criteria of Article 83.2 GDPR in this case are not of such a nature that they would lead to a different administrative fine than the one established by the Dispute Chamber in the context of this decision.

264 EDPB – Guidelines 04/2022 on the calculation of administrative fines under the GDPR (v2.0, May 24, 2023), para. 60.

265 See paras. 230 to 232 in this decision.

266 EDPB – Guidelines 04/2022 on the calculation of administrative fines under the GDPR (v2.0, May 24, 2023), para. 65.

Decision on the Merits 07/2024 - 112/114

274. Given the previous assessment of the relevant documents as well as the circumstances specific to this case, the Dispute Chamber finds it appropriate to impose an administrative fine of 3,700 EUR on the respondent for the violation of Article 30 GDPR due to the failure to maintain a comprehensive and sufficiently detailed register of processing activities, pursuant to Article 58.2.i) GDPR as well as Articles 100, § 1, 13° WOG and 101 WOG, in accordance with Article 83.2 GDPR.

III.3. Other Complaints

275. The Dispute Chamber decides not to uphold the other complaints and findings of the Inspection Service²⁶⁷, as the Dispute Chamber cannot conclude based on the facts and the documents in the file that there has been a violation of the GDPR. These complaints and findings by the Inspection Service are therefore considered manifestly unfounded within the meaning of Article 57.4 of the GDPR²⁶⁸.

IV. Publication of the Decision

276. Given the importance of transparency regarding the decision-making of the Dispute Chamber, this decision will be published on the website of the Data Protection Authority with the identification

details of the respondent, considering the public interest of this decision, on the one hand, and the inevitable re-identification of the respondent in the case of pseudonymization, on the other hand. However, it is not necessary for the identification details of the complainants to be disclosed in this publication.

267 See paras. 192, 196, 199, and 202 in this decision.

268 See point 3.1.A.2 of the Dispute Chamber's Non-Prosecution Policy dated June 18, 2021, available at

<https://www.gegevensbeschermingsautoriteit.be/publications/sepotbeleid-van-de-geschillenkamer.pdf>.
Decision on the Merits 07/2024 - 113/114

FOR THESE REASONS,

the Dispute Chamber of the Data Protection Authority decides, after deliberation, to:

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Pursuant to Article 58.2(d) GDPR as well as Article 100, § 1, 8° and 9° WOG, order the respondent to cease and refrain from the violation of Article 5.1 GDPR, Article 6.1 GDPR, Article 12.1 GDPR, as well as Article 14.1 and 14.2 GDPR, in the context of the B2B Data Quality services, until the processing is brought into compliance with the GDPR, by halting the processing of personal data in the Spectron database, before proactively and individually informing the data subjects whose contact details the respondent possesses about the processing of their personal data by the respondent. The respondent must also provide the data subjects with the opportunity to object to the processing of their personal data in a simple and effective manner for a period of three months from the provision of information, before resuming the processing. Regarding the other categories of data subjects, for whom the respondent does not possess contact details, the Dispute Chamber decides, due to the lack of a lawful basis for processing, to prohibit the processing of their personal data definitively.

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Pursuant to Article 58.2(d) GDPR as well as Article 100, § 1, 9° WOG, order the respondent to remedy the violation of Article 5.1 and 5.2 GDPR, Article 24.1 GDPR as well as Article 25.1 and 25.2 GDPR by taking appropriate technical and organizational measures so that the retention period of the personal data — which the respondent may only further process on the condition that the previous order has been complied with — is proportionate to the purposes of processing, and so that the respondent, in the context of its current Data Quality services, only retains the most up-to-date personal data of data subjects, as required by the principle of data minimization. Additionally, the Dispute Chamber orders the respondent to supplement or adjust the current documentation regarding the processing of personal data and compliance with the GDPR, in order to take into account the actual circumstances under which the respondent processes personal data and thereby fulfill the accountability obligation that rests on the respondent.

Decision on the Merits 07/2024 - 114/114

(get). Hielke HIJMANS

Chairman of the Dispute Chamber

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Pursuant to Article 58.2(d) GDPR as well as Article 100, § 1, 9° WOG, order the respondent to remedy the violation of Article 30.1(c) GDPR as well as Article 30.2 GDPR by supplementing the register of processing activities with a clear description of the categories of personal data and of data subjects, as well as by naming all data controllers for whom the respondent believes it acts as a processor.

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Pursuant to Article 58.2(d) GDPR as well as Article 100, § 1, 9° WOG, order the respondent to submit evidence of the implementation of the aforementioned compliance measures to the Dispute Chamber within a period of three months from the notification of the decision.

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Pursuant to Article 58.2(i) GDPR as well as Articles 100, § 1, 13° WOG and 101 WOG, impose an administrative fine of 129,500 EUR on the respondent for the violation of Article 5 GDPR; Article 6 GDPR; Article 12 GDPR; Article 14 GDPR; Article 24 GDPR and Article 25 GDPR.

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Pursuant to Article 58.2(i) GDPR as well as Articles 100, § 1, 13° WOG and 101 WOG, impose an administrative fine of 41,440 EUR on the respondent for the violation of Article 12 GDPR and Article 15 GDPR.

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Pursuant to Article 58.2(i) GDPR as well as Articles 100, § 1, 13° WOG and 101 WOG, impose an administrative fine of 3,700 EUR on the respondent for the violation of Article 30 GDPR.
Against this decision, an appeal can be lodged pursuant to Article 108, § 1 WOG, within a period of thirty days from the notification, at the Market Court, with the Data Protection Authority as the respondent.